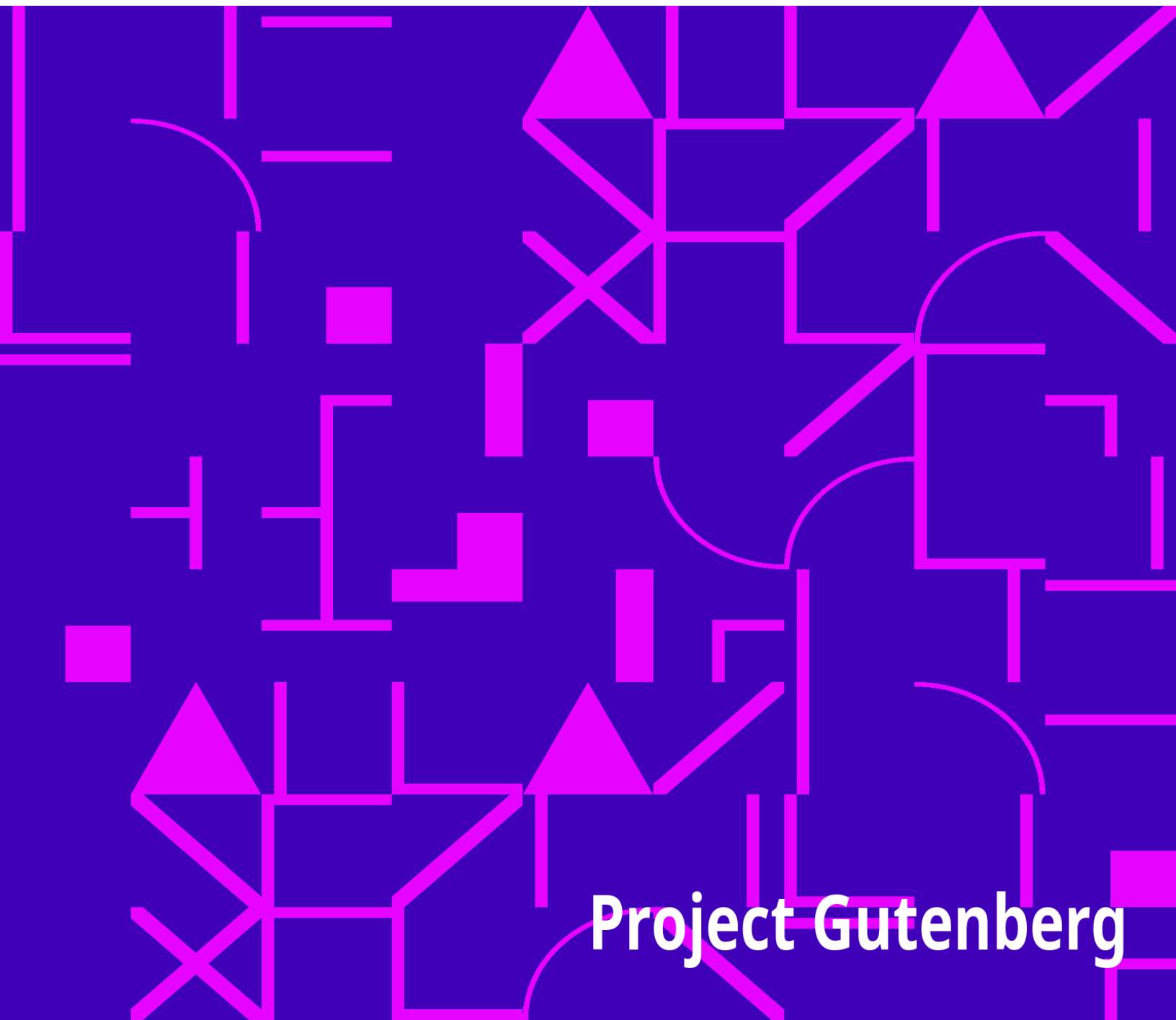


# The Atlantic Monthly, Volume 06, No. 33, July, 1860

Various

An abstract geometric pattern composed of various shapes including squares, triangles, circles, and lines, rendered in shades of blue and green on a black background.

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**The Atlantic Monthly, Volume 06, No. 33,  
July, 1860**

Various

An abstract geometric pattern consisting of various shapes like squares, triangles, circles, and lines, arranged in a complex, overlapping manner. The pattern is primarily black and white, with some gray areas.

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# THE ATLANTIC MONTHLY.

A MAGAZINE OF LITERATURE, ART, AND  
POLITICS.

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VOL. VI.--JULY, 1860.--NO. XXXIII.

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# **METEOROLOGY**

## **A GLANCE AT THE SCIENCE.**

The purpose of this article is to present, in a brief and simple manner, the leading principles on which the science of Meteorology is founded,--rather, however, in the spirit of an inquirer than of a teacher. For, notwithstanding the rapid progress it has made within the last thirty years, it is far from having the authority of an exact science; many of its phenomena are as yet inexplicable, and many differences of opinion among the learned remain unreconciled on points at first sight apparently easy to be settled.

Meteorology has advanced very far beyond its original limits. Spherical vapor and atmospheric space give but a faint idea of its range. We find it a leading science in Physics, and having intimate relations with heat, light, electricity, magnetism, winds, water, vegetation, geological changes, optical effects, pneumatics, geography,--and with climate, controlling the pursuits and affecting the character of the human race. It is so intimately blended, indeed, with the other matters here named, as scarcely to have any positive boundary of its own; and its vista seems ever lengthening, as we proceed.

Without dwelling upon the numerous consequences which flow from meteorological influences, let us see what is properly included under the subject of Meteorology. And first, of the Atmosphere.

This is a gaseous, vapor-bearing, elastic fluid, surrounding the earth. Its volume is estimated at 1/29th, and its weight at about 43/1000ths, that of the globe. It is composed of 21 parts in weight of Oxygen and 77 of Nitrogen, with a little Carbonic Acid, Aqueous Vapor, and a trace of Carburetted Hydrogen. There are numerous well-known calculations of the proportions of the various constituents of the atmosphere, which we owe to Priestley, Dalton, Black, Cavendish, Liebig, and others; but that given by Professor Ansted is sufficiently simple and intelligible. In 10 volumes or parts of it, he gives to

|                                                                                                  |        |
|--------------------------------------------------------------------------------------------------|--------|
| Oxygen, the great supporter of life .<br>.....                                                   | 2.100  |
| Nitrogen, (not condensible under 50<br>atmospheres, and not respirable or<br>combustible,). .... | 7.750  |
| .....                                                                                            |        |
| Aqueous Vapor. ....                                                                              | .142   |
| .....                                                                                            |        |
| Carbonic Acid. ....                                                                              | .004   |
| .....                                                                                            |        |
| Carburetted Hydrogen. ....                                                                       | .004   |
| .....                                                                                            |        |
| .....                                                                                            | <hr/>  |
| .....                                                                                            | 10.000 |
| .....                                                                                            |        |

and he adds a trace of Ammoniacal Vapor. It is *usual* to state the proportions of air as being 1 Oxygen to 4 Nitrogen.

It is a curious fact, that, while there are six varieties of compounds of nitrogen and oxygen, but one of these is fitted to sustain life, and that is our atmosphere.

It is well enough to note, that, when we use the word volume or measure, in speaking of the atmosphere or any gaseous body, we adopt the theory of Gay- Lussac, who discovered that gases unite with each other in definite proportions whenever they enter into combination. This theory led to important results; for by knowing the elements of a compound gas, we easily determine its specific gravity.

It has been attempted to apply the principle to organic bodies; but it has not yet been carried to a full and satisfactory conclusion. It may be noticed, too, that Dalton affirmed that simple substances unite with each other in definite weights to form compound substances, thus supporting the idea of Lussac. These discoveries were made about the same time, Dalton having the credit of originating them. Various modifications of the principle have been from time to time presented to public attention.

Whether the constituents of the atmosphere are chemically or mechanically combined,--one of the things about which the learned are not fully agreed,--it is found to be chemically the same in its constituents, all over the world, whether collected on mountains or on plains, on the sea or on the land, whether obtained by aëronauts miles above the earth or by miners in their deepest excavations. On the theory of its mechanical combination, however, as by volume, and that each constituent acts freely for itself and according to its own laws, important speculations (conclusions, indeed) have arisen, both as regards temperature and climatic differences. It should be observed, that volume, as we have used the word, is the apparent space occupied, and differs from mass, which is the *effective* space occupied, or the real bulk of matter, while density is the relation of mass to volume, or the quotient resulting from the division of the one by the other. Those empty spaces which render the volume larger than the mass are technically called its pores.

Has the composition of the atmosphere changed in the lapse of years? On this point both French and German philosophers have largely speculated. It is computed that it contains about two millions of cubic geographical miles of oxygen, and that 12,500 cubic geographical miles of carbonic acid have been breathed out into the air or otherwise given out in the course of five thousand years. The inference, then, should be, that the latter exists in the air in the proportion of 1 to 160, whereas we find but 4 parts in 10,000. Dumas and Bossingault decided that no change had taken place, verifying their conclusion by experiments founded on observations for more than thirty-five years. No *chemical* combination of oxygen and nitrogen has ever been detected in the atmosphere, and it is presumed none will be.

The atmosphere possesses, as may be readily imagined, many important characteristics. One of these is Weight.

This is demonstrated by simple, yet decisive experiments. The discovery of the *fact* is attributed to the illustrious Galileo, but to modern science we owe all the certainty, variety, and elegance of the demonstration. A vessel containing a quantity of air is weighed; the air is exhausted from it and it is weighed again. An accurate scale will then detect the difference of weight.



A cubic foot of air weighs 1.2 oz. Hence a column of air of one inch in diameter and a mile in height weighs 44 oz.

The atmosphere is supposed to have an elevation of from 45 to 50 miles, but its weight diminishes in proportion to its height. The whole pressure at the surface of the earth is estimated to be 15 lbs. to the square inch; a person of ordinary size is consequently pressed upon by a weight of from 13 to 14 tons. Happily for us, the pressure from without is counteracted by the pressure from within.

The weight of the air is of great importance in the economy of Nature, since it prevents the excessive evaporation of the waters upon the earth's surface, and limits its extent by unalterable laws. Water boils at a certain temperature when at the earth's surface, where the weight of the atmosphere is greatest, but at different temperatures at different elevations from the surface. At the level of the sea it boils at  $212^{\circ}$ . On the high plains of Quito, 8,724 feet above the sea, it boils at  $194^{\circ}$ , and an egg cannot be cooked there in an open vessel. At Potosí the boiling-point is still lower, being  $188^{\circ}$ , and the barometrical column stands at  $18^{\circ}$ . Indeed, the experiment is often exhibited at our chemical lectures, of a flask containing a small quantity of water, which, exhausted of air, is made to boil by the ordinary heat of the hand.

Fahrenheit proposed to ascertain the height of mountains by this principle, and a simple apparatus was contrived for the purpose, which is now in successful use. The late Professor Forbes of Edinburgh, whose untimely death the friends of science have had so much reason to deplore, ascertained that the temperature of boiling water varied arithmetically with the height, and at the rate of one degree of the thermometric scale for every 549.05 feet. Multiplying the difference of the boiling-point by this number of feet, we have the elevation. The weight of the atmosphere, as indicated by the barometer, is also a means for ascertaining the height of mountains or of plains; but correction must be made for the effects of expansion or contraction, and for capillarity, or the attraction between the mercury and the glass tube, at least whenever great exactness is required. Tables for the convenience of calculation are given in several scientific works, and particularly in a paper of Professor Forbes, Ed. Trans. Vol. 15. Briefly,

however, we may state, that between  $0^{\circ}$  and  $32^{\circ}$ , 34 thousandths of an inch must be allowed for depression or contraction, and between  $32^{\circ}$  and  $52^{\circ}$  33 thousandths. The weight of the atmosphere is not only affected by rarefaction, but by currents of air, which give it a sudden density or rarity. Those who have ascended mountains have experienced both these changes.

A common experiment to prove the weight of air is that of the Magdeburg Hemispheres, a simple contrivance of Otto Guericke, a merchant of that city. It is a part of every complete philosophical apparatus. It consists of brass caps, which, when joined together, fit tightly and become a globe. The air within being exhausted, it will be found difficult to separate them. If the superficies be 100 square inches and the height of the mercury be 30 inches, the atmosphere will press on these hemispheres with a weight of 1,475 lbs, requiring the efforts of seven or eight powerful men to tear them asunder. One of these instruments, of the diameter of a German ell, required the strength of 24 horses to separate it. The experiment was publicly made in 1650 at the Imperial Diet at Rendsborg, in the presence of the Emperor Ferdinand III. and a large number of princes and nobles, much to their astonishment.

As compared with water, the air (the barometer indicating  $30^{\circ}$ , and the thermometer  $55^{\circ}$ ) is 833 times lighter.

It is this weight of the atmosphere which counterbalances that of a column of mercury 29 inches in height, and a column of water 32 to 34 feet in height.

The old quaint notion of Nature's abhorring a vacuum was found to be practically only an assertion that the air had weight. The ordinary pump, commonly called the suction-pump, is constructed on this principle. The weight of the atmosphere at the level of the sea is found to be the same all over the world.

We find the atmosphere with another characteristic,--Elasticity.

However it may be compressed, air returns, on liberation, to its original volume, and while thus perfectly elastic it is also the most compressible of bodies. This elasticity arises from the repulsive force of its particles, and is always equal to the compressive force which it balances. A glass vessel full of air, placed under a receiver and then exhausted by the air-pump, will burst into atoms. Water, on the other hand, is almost the reverse. Twenty cubic inches, introduced into a cannon whose sides are three inches thick, cannot be compressed into nineteen inches without bursting it. This non-elastic property of water, with another, that of communicating, when under the action of any force, an equal pressure in all directions, led to the invention of the hydraulic press.

The elasticity of the air enables fishes to rise and sink in water, through the action of the air-bladder.

The sudden compression of air liberates its latent heat, and produces fire. On this principle the pneumatic tinder-box is constructed.

Brockhaus says that air has as yet been compressed only into one-eighth of its original bulk.

For every degree of heat between the freezing-point and the boiling-point,  $32^{\circ}$  and  $212^{\circ}$ , the expansion of air is about  $1/490$ th part, so that any invention which seeks to use rarefied air as a motive power must employ a very intense degree of heat, enough to fuse many kinds of metals.

To the celebrated Mr. Boyle and to Henry Cavendish, both of Great Britain, we are indebted for most of what we know of this particular property of the air.

Density, or closeness, is another quality of the atmosphere. It has been found to be 770 times less than that of water, and 770 cubic inches of air weigh as much as a cubic inch of water. It is in direct ratio with its elasticity, and there are tables by which it may be determined at different altitudes. At the surface of the earth, this density is indicated as 1; at  $2\frac{1}{2}$

miles, as  $1/2$ ; at 5 miles, as  $1/4$ ; and so on, the difference being in a geometrical progression.

As we proceed in the consideration of our general subject, we shall find, under the appropriate heads, that density is not without material influence on reflection and refraction, on transparency and the transmission of light, the presence or absence of moisture, and the amount of heat at the earth's surface,- -and we might add, on health, and the increase or diminution of the vital energies.

Temperature is another branch of our subject, and one involving a series of subordinate topics on which volumes have been written, and to which are still devoted the labors of the most learned men of our day. In this place, merely an out-line can be attempted.

Temperature is the degree of heat or cold in the particles of all bodies, which is perceptible by sensation, and is measurable by their expansion or contraction. It is the key to the theory of the winds, of rain, of aerial and oceanic currents, of vegetation and climate with all their multifarious and important differences. While the inclined position of the earth on its axis and its movement in its elliptical orbit influence the general amount of heat, it is rather to the consequences of these in detail that we are called when we speak of temperature. If the sun shone on a uniformly level surface, everywhere of the same conducting and radiating power, there would be but little difficulty in tracing the monotonous effects of temperature.

The reformer Luther, as eccentric as he was learned and sincere, is reported to have said, that, if he had been consulted at the Creation, he would have placed the sun directly over the centre of the world and kept it there, to give unchanging and uniform light and heat! It is certainly much better that he was not consulted. In that case, every parallel of latitude would have been isothermal, or of equal mean annual temperature. The seasons would have been invariable in character. Some portions of the earth would have been scorched to crispness, others locked up in never-changing ice.

Vegetation, instead of being universal, would have been confined to a narrow zone; and the whole human race would have been driven together into one limited habitable space, to interfere with, incommode, and destroy each other. The arrangement is best as it is.

We find very important modifications of temperature, occasioned not only by astronomical influences, but by local causes and geographical characteristics. For while, as a general rule, the nearer we approach the equator, the warmer we shall be, yet temperature is greatly affected by mountains, seas, currents of air or water, by radiation, by forests, and by vegetation. It is found, in fact, that the lines of temperature, (the happy conception of Humboldt,) when they are traced upon the map, are anything but true zones or circles.

The line of the greatest mean warmth is not coincident with the equator, but falls to the north of it. This line at 160° W. Long, from Greenwich is 4° below the geographical equator; at 80° it is about 6° north, sweeping along the coast of New Granada; at 20° it comes down and touches the equator; at 40° E. Long., it crosses the Red Sea about 16° north of the equator, and at 120° it falls at Borneo, several degrees below it;--and the points of the greatest heat, in this line, are in Abyssinia, nearer the tropic of Cancer than to the equator. On the other hand, the greatest mean cold points, according to the opinions of Humboldt, Sir David Brewster, and others, do not coincide, as would seem natural, with the geographical poles, but they are both to be found in the northern hemisphere, in Latitude 80°, 95° E. Long. and 100° W. Long. from Greenwich. The western is ascertained to be 4-1/2° colder than the eastern or Siberian. If this be the fact,--but it is not positively admitted,--an open sea at the pole may be considered as probable, on the ground of its having a higher mean temperature than is found at 80°. Kaemtz places one of these cold points at the north of Barrow's Straits,--the other near Cape Taimur, in Siberia. Burghaus, in his Atlas, transfers the American cold pole to 78° N. Lat. It is perhaps too early to determine rigorously the true temperature of these points.

A noticeable fact also is this,--that places in the same latitude rarely receive the same amount of heat. Quebec, in British America, and Drontheim, in Norway, enjoy about the same quantity, while the former is in 47° and the

latter in 68° N. Lat. The mean winter temperature of Pekin, 39° 45' N. Lat., is 5° below the freezing-point; while at Naples, which is north of Pekin, it seldom, if ever, goes below it, and Paris, 500 miles farther north, has a mean winter temperature of 6° above the freezing-point. The city of New York, about 11° south of London, has a winter temperature of much greater severity. The mean temperature of the State of New York, as determined by a long series of observations, is 44° 31'.

The mean temperature of countries is found to be very stable, and but very small variations have been detected in modern times. But that there have been important climatic changes, since the Christian era, cannot be doubted, unless we doubt history. Not many centuries ago, it was a common thing for all the British rivers to freeze up during the winter, and to remain so for several months. If space permitted, an interesting statement could be made of the changes which have taken place in vegetation in Greenland, and throughout certain northern parts of Europe,--also in Palestine, Greece, and other southern countries,--while we know that the earth's inclination upon its axis has been unchanged.

Mrs. Somerville remarks, that, though the temperature of any one place may be subject to very great variations, yet it never differs from the mean state more than a few degrees.

Without this atmospheric covering of ours, it is considered that the temperature of the earth at its surface would be the same as that of the celestial spaces, supposed to be at least 76° below zero, or *possibly*, says Humboldt, 1400° below! Human life, without our atmosphere, could not exist for a single moment.

It is computed, that, if the annual heat received by the earth on its surface could be equally distributed over it, it would melt, in the course of a year, a stratum of ice 46 feet thick, though it covered the whole globe, and as a consequence the amount of unradiated heat would render it uninhabitable.

The relative position of the sun affects temperature, rather than its distance. In winter the earth is three millions of miles nearer the sun than in summer, but the oblique rays of the former season reach us in less quantity than the more direct. The distribution of land and water, the nature of the soil, the

indentation of bays, the elevation of land above the sea-level, insularity, etc., all, as we have already suggested, have a modifying influence on temperature.

The atmosphere possesses also a reflecting and refracting power, arising from its varying density, and, perhaps, in the latter case, somewhat from its lenticular outline.

But for this property we should have no twilight. The sun, instead of sending up his beams while  $18^{\circ}$  below the visible horizon, would come upon us out of an intense darkness, pass over our sky a brazen inglorious orb, and set in an instant amid unwelcome night.

Reflection is the rebound of the rays of light or heat from an opposing surface at the same angle as that at which they fall upon it. These are called angles of incidence and reflection, and are equal.

Refraction is the bending of a ray passing obliquely from a rarer into a denser medium. This may be observed when a rod is placed slantingly in a vessel of clear water; the part immersed will appear bent or broken. This is ordinary refraction. Terrestrial refraction is the same thing, occurring whenever there is a difference of density in the aerial strata.

The atmosphere absorbs some portion of the light which it receives. It is not all reflected or refracted or even penetrative.

Objects seen under various degrees of light, either convected or retarded by different media, appear near or distant, distinct or confused. Thus, we are often surprised at the apparent nearness and brightness of an opposite shore or neighboring island, in some conditions of the air, while at other times they seem distant and lie in shadowy obscurity.

The looming up of a vessel on the water is another common instance of the principle of refraction.

It has been noticed by almost every one, that, during the warm and moist nights of summer, the moon, as she rises above the horizon, appears much larger than when at the zenith. So the setting sun is seen of apparently increased size. Sir John Herschel asserts that the appearance is an illusion, and so do some others. Professor Carey says, that, if we look through a paper tube at the moon when on the horizon, the paper being folded so as to make the aperture of its exact size, and then look again at it when it reaches the zenith, we shall find there is no difference.

On the other hand, an experiment is offered by a German Professor, of the name of Milo, of this kind: If we look through a tube so constructed as to have one side filled with spirits of wine and the other with common air, the half of the object seen through the former will be found to appear much larger to the eye than the other half seen through the latter.

It is laid down, that, where extraordinary refraction takes place laterally or vertically, the visual angle of the spectator is singularly enlarged, and objects are magnified, as if seen through a telescope. Dr. Scoresby, a celebrated meteorologist and navigator, mentions some curious instances of the effects of refraction seen by him in the Arctic Ocean.

Many remarkable phenomena attend this state of the atmosphere, known as the Fata Morgana of Sicily, the Mirage of the Desert, the Spectre of the Brocken, and the more common exhibitions of halos, coronæ, and mock suns. The Mountain House at Catskill has repeatedly been seen brightly pictured on the clouds below. Rainbows are also due to this condition of the atmosphere.

We might occupy the remainder of the space allowed us by enlarging on various topics which belong to this part of our subject. The twilight gray, the hues of the evening and morning sky, the peculiarity of the red rays of light, the scintillation of stars, their flashing changes of colors, are all meteorological in their character, as well as strikingly beautiful and interesting.



Polarity of light is another of the wonders of which Meteorology takes cognizance. The celebrated Malus, in 1808, while looking at the light of the setting sun shining upon the windows of the Luxembourg, was led to the discovery that a beam of light which was reflected at a certain angle from transparent and opaque bodies, or by transmission through several plates of uncrystallized bodies, or of bodies crystallized and possessing the property of double refraction, changed its character, so as to have sides, to revolve around poles peculiar to itself, and to be incapable of a second reflection. The angle of polarity was found to be  $54^{\circ}$ .

The beam of polarized light was also found to have the peculiar property of penetrating into the molecules of bodies, illuminating them and, enabling the eye to determine as to their structure. The production of beautiful spectres, prismatic colors of gorgeous hues, and the most remarkable system of rings, has followed the discovery, and important results are expected from the continuation of the researches. It has already enabled the astronomer to determine what heavenly bodies do or do not shine with their own light. The subject is still under investigation.

Color from light comes also under the notice of the meteorologist. The received opinion is, that there is no inherent color in any object we look at, but that it is in the light itself which falls upon and is reflected from the object. Each object, having a particular reflecting surface of its own, throws back light at its own angle, absorbing some rays and dispersing others, while it preserves its own. In this sense it may be said that the rose has no color,--its hues are only borrowed. If the idea should be carried out, it would certainly destroy much of the poetry of color. Thus, in praising the modest blush which crimsones the cheek of beauty, we should destroy all its charm, if we attributed it to a sudden change in the reflecting surface of the epidermis,--a mere mechanical rushing of blood to the skin, and a corresponding change in its angle of reflection!

Without light, however, there is no color. Agriculturists and chemists understand this. Plants without light retain their oxygen, which bleaches them.

The theory of color has never been fully agreed upon. Some writers maintain that the character of its hues depends on the number of undulations of a ray. Goethe's theory is substantially, that colors are produced by the thinning or thickening and obstructing of light. Brewster contends that there are but three primary colors,--red, yellow, and blue. Wollaston finds four,--red, yellowish green, blue, and violet. But this, as well as the consideration of the solar spectrum of Newton, is more the specialty of Optics. The atmospheric relations of color are more apposite to our purpose.

The color of the clouds, which may be occasionally affected by electricity, is owing to the state of the atmosphere and its reflecting and refracting properties.

The color of snow is white because it is composed of an infinite variety of crystals, which reflect all the colors of light, absorbing none, and these, uniting before they reach the eye, appear white, which is the combination of all the colors.

Wind, the atmosphere in action, though not picturesque, is always wonderful, often terrible and sublime. The origin of wind, its direction and its force, its influence on the health of man, his business, his dwelling-place, and the climate where he perpetuates his race, have attracted the profound attention of the greatest philosophers.

To the rarefaction of the air at the equator, and the daily revolution of the earth, is attributed the origin of the Trade-Winds, which blow from the east or a little to the north of east, north of the equator, and east or south of east after we are south of the equator. The hot current of ascending air is replaced by cold winds from the poles.

But why are we not constantly subject to the action of north winds, which we rarely are? Because of the diurnal motion of the earth, which at the equator equals one thousand miles an hour, the polar winds in coming down to the equator do not have any such velocity, because there is a less comparative diurnal speed in the higher latitudes. The air at the poles revolves upon itself without moving forward;--at the equator, the velocity, as we have mentioned, is enormous. If, then, says Professor Schleiden, we

imagine the air from the pole to be carried to the equator, some time must elapse before it will acquire the same velocity of motion from west to east which is always found there. Therefore it would remain behind, the earth gliding, as it were, from beneath it; or, in other words, it would have the appearance of an east wind. Lieutenant Maury adopts the same explanation. It is, indeed, that of Halley, slightly modified.

The warm air, ascending from the equatorial regions, rushes to the poles to be cooled in turn, sliding over the heavy strata of cold air below.

The northern trade-wind prevails in the Pacific between  $2^{\circ}$  and  $25^{\circ}$  of N. Latitude; the southern trade, between  $10^{\circ}$  and  $21^{\circ}$  of S. Latitude. In the Atlantic the trades are generally limited by the 8th and 28th degrees of N. Latitude. The region of calms lies between these trades, and beyond them are what are styled the Variables. In the former the seaman finds baffling winds, rain, and storms. Occasionally, from causes not yet fully explained, north and south periodical winds break in upon them, such as the Northers which rage in the Gulf of Mexico.

There are many curious facts connected with the Trades, and with the Monsoons, or trade-winds turned back by continental heat in the East Indies, the Typhoons, the Siroccos, the Harmattans, land and sea breezes and hurricanes, the Samiel or Poison Wind, and the Etesian. The Cyclones, or rotary hurricanes, offer a most inviting field for observation and study, and are an important branch of our subject. But we are obliged to omit the consideration of these topics, to be taken up, possibly, at some other opportunity. The theory of the Cyclones may be justly considered as original with our countryman, Mr. Redfield. Colonel Reid, Mr. Piddington, and other learned Englishmen have adopted it; and so much has been settled through the labors of these eminent men, that intelligent seamen need fear these storms no longer. By the aid of maps and sailing-directions they may either escape them altogether, or boldly take advantage of their outward sweep, and shorten their passages.

We have yet to ascertain the causes of the many local winds prevailing both on the ocean and the land, and which do not appear to be influenced by any such general principle as the Trades or the Monsoons.

The force of air in motion gives us the gentle breeze, the gale, or the whirlwind. At one hundred miles an hour it prostrates forests. In the West Indies, thirty-two pound cannon have been torn by it from their beds, and carried some distance through the air. Tables of the velocity of winds are familiar to our readers.

Let us next advert to the connection of the atmosphere with Vapor and Evaporation. The vapor rising from the earth and the sea by evaporation, promoted by dry air, by wind, by diminished pressure, or by heat, is borne along in vesicles so rare as to float on the bosom of the winds, sometimes a grateful shade of clouds, at other times condensed and gravitating in showers of rain. Thus it enriches the soil, or cools the air, or reflects back to the earth its radiated heat. At times the clouds, freighted with moisture, present the most gorgeous hues, and we have over us a pavilion more magnificent than any ever constructed by the hand of man. These clouds are not merely the distilleries of rain, but the reservoirs of snow and hail, and they are the agents of electric and magnetic storms.

Notwithstanding their variety, clouds are easily classified, and are now by universal consent distinguished as follows.

In the higher regions of the air we look for the Cirri, the Curl Clouds. They are light, lie in long ranges, apparently in the direction of the magnetic pole, and are generally curled up at one extremity. They are sometimes called Mackerel Clouds. They are composed of thin white filaments, disposed like woolly hair, feather crests, or slender net-work. They generally indicate a change of weather, and a disturbance of the electric condition of the atmosphere. When they descend into the lower regions of the air, they arrange themselves in horizontal sheets and lose much of their original type. The Germans call them Windsbäume, or wind-trees.

The Cumulus is another form of cloud, which floats along in fleecy masses, in the days of summer, but dissolves at night. Sometimes it resembles a great stack or pile of snow, sometimes it has a silvery or a golden edge, as if we saw a little of the lining. Sometimes they lie motionless in the distance, and are mistaken by mariners for land. They rest upon a large base, and are

borne along by surface-winds. Their greatest height is not more than two miles. They carry large quantities of moisture with them, and, when preceding rain, fall rapidly into other shapes.

The Stratus, or Fall Cloud, is horizontal in its figure, lies near the earth, and its length is usually greater than its breadth. It floats in long bands with rounded or sharpened points, and is seen rising from rivers or lakes, at first as a fog. In the morning it indicates fine weather. The Fall Cloud never discharges rain.

This comes only from the Nimbus, which is quite unlike the others. It puts on a dark gray color, has irregular transparent edges, and increases rapidly so as to obscure the sky. It appears to absorb the other clouds, to be a union of their differently electrified particles, which are attracted to each other, form drops of water, and descend as rain.

Of the first three forms we have three modifications or varieties. The Cirro-Cumulus is a congeries of roundish little clouds in close horizontal position, varying in size and roundness, and often, to use the words of the poet Bloomfield, appearing as

"The beauteous semblance of a flock at rest."

The Cirro-Stratus is more compact than the Cirrus,--the strata being inclined or horizontal. It is sometimes seen cutting the moon's disc with a sharp line. The Cumulo-Stratus, or Twain Cloud, is denser than the Cumulus, and more ragged in its outlines. It overhangs its base in folds, and often bears perched on its summit some other form of cloud, which inosculates itself with it. Sometimes a Cirro-Stratus cloud comes along and fastens itself to it parasitically. It is one of our most picturesque forms of clouds.

Within the last two years we have twice observed in the city of New York, during the summer afternoons, large masses of clouds coming over from the southwest, and hanging rather low, which could not be well placed in any of the classes already described, or recognized as such by meteorologists. They consisted of a great number of hemispherical forms of large diameter, hanging vertically from a Stratus cloud or plane above them, and to which

they appeared attached. They were regular in shape, and very distinct; they barely touched each other, and were of a gray color. They might be compared to a hay-field turned upside down, with innumerable hay-cocks hanging below it. Unfortunately, the circumstances under which the spectacle was observed did not; admit of any resort to the barometer, thermometer, or anemometer. Should further observations verify these remarks, it might perhaps be proper to style this variety the Hemispherical.

Dew is another atmospheric product. It is the condensation of the warmer vapor of the atmosphere, in calm and serene nights, and in the absence of clouds, by the cold surface of bodies on which it rests. In some countries it is copious enough to supply the want of rain. The earth radiates its own acquired heat, grows colder than the atmosphere, and so condenses it.

What is thermometrically called the dew-point is that degree at which the moisture present in the atmosphere, on being subjected to a decrease of temperature, begins to be precipitated or condensed. It is the same as the point of saturation. Daniell calls it "the constituent temperature of atmospheric vapor." It is our criterion for ascertaining how much moisture there is in the air, and at what degree of heat or cold it would be precipitated. When the air is saturated, a dry bulb and a wet bulb will read alike.

The dew-point has been a puzzle to most persons. Very few treatises explain it satisfactorily. The definition just given, though explicit, is not quite enough. For it will be perceived that an ordinary subtraction of the degrees of temperature on a wet thermometer, which had cooled down by evaporation, from the actual temperature indicated by a dry thermometer, will not give us the dew- point.

For example,--if a free or dry thermometer indicates  $63^{\circ}$ , and the one with the wet bulb has by evaporation cooled down to  $54^{\circ}$ , the difference would be  $9^{\circ}$ . The dew-point would not be  $54^{\circ}$ , but that degree to which the mercury would fall in the free thermometer, for the atmosphere to become saturated with the quantity of moisture then actually existing in it. It would be  $46.8^{\circ}$ .

This dew-point, which figures so largely in all well-kept meteorological reports, is the key to many important conditions of the atmosphere, affecting health, vegetation, and climate.

It is found that the air at different degrees of heat has different degrees of elasticity, different degrees of tension, and different degrees of capacity to hold vapor. Dalton, by a series of experiments with barometer-tubes, into which he introduced air and vapor at certain temperatures, found what its force was upon the mercurial column from degree to degree. He also experimentally determined the ratio of the weight of moisture and of air, the former being five-eighths of the latter,--in other words, how many grains of moisture additional could be held by the air, advancing from degree to degree of temperature. This being ascertained, a table of factors was constructed, in other words, a set of figures contrived, which should, by a multiplication of the subtracted difference between the range of the dry bulb and the wet bulb of the thermometers, furnish the amount of deduction from the former which would indicate the dew-point, or the point to which the mercury in the dry thermometer must fall to show how much more moisture the air could hold without its condensation. These tables of factors have been constructed at the Greenwich Observatory, and are generally used.

The Hygrometer, invented by Mr. Daniell, gives the dew-point by inspection.

It is an error to suppose that dew falls like rain from the air; it forms on the body which is cooled down below the temperature of the air. It differs in quantity with the radiating or cooling surface; that which has absorbed and retained the most heat during the day radiates the most at night and furnishes the most cold in return.

Hoar-frost, such as we find on our window-panes, or on the grass, is the moisture of the warm air cooled down and frozen, and is produced when the cold at the surface is below the freezing-point. What we in common parlance call the action of frost, and which in this climate is well known to be very powerful, is not particularly injurious to organized bodies.

Mists are the vapor near the ground rendered visible by the temperature of the air falling below that of the vapor. When we see our breath in a cold

morning, we see a mist. Where the surface is comparatively warm and damp, and the air is cooler, we have mists, which, if dense, are called fogs. These are found plentifully on the banks of Newfoundland; and with icebergs on the one hand and the Gulf Stream on the other, we must always expect to have them.

The distribution of rain, which is one of the offices of the clouds, is another of the more important features of Meteorology. The amount of water taken up by evaporation into the atmosphere is almost incredible. It is calculated by Lieutenant Maury that there is annually taken up in the torrid zone a belt of water three thousand miles in breadth and sixteen feet deep. Rain occurs regularly and irregularly in different parts of the earth. In some places it may be calculated upon to a day; in others it is quite unknown. Latitude and longitude may indicate the points of distribution, but the causes are dependent on temperature, winds, locality, and, what may seem a strange assertion, upon the conduct of man himself. The greatest quantity falls near the equator, diminishing towards the poles. Much more falls on islands and coasts than in the interior of continents,--more in the region of the variables and less in that of the trades. There are, however, tropical countries of great extent where rain is scarcely ever seen.

The influence of man upon rain is seen in the progress of civilization, the destruction of forests, and the drying-up of meres, swamps, and water-courses.

Forests undoubtedly affect the distribution of rain, and the supplies of streams and springs. Their cooling influence precipitates the vapor passing over them, and the ground beneath them not getting heated does not readily evaporate moisture. Lands, on the contrary, which are cleared of forests become sooner heated, give off larger quantities of rarefied air, and the passing clouds are borne away to localities of greater atmospheric density.

The Canary Islands, when first discovered, were thickly clothed with forests. Since these have been destroyed, the climate has been dry. In Fuerteventura the inhabitants are sometimes obliged to flee to other islands to avoid perishing from thirst. Similar instances occur in the Cape Verdes.



Parts of Egypt, Syria, and Persia, that once were wooded, are now arid and sterile deserts.

In the temperate zones these results are not so immediately apparent. It is now much in doubt whether the climate of our country has changed its character within the last two hundred years. Jefferson and Dr. Rush both contended that it had. Our oldest inhabitants assert that in their day our winters began nearly two months earlier than they do now.

The general laws laid down in relation to rain are these:--

1. It decreases in quantity as we approach the poles.
2. It decreases as we pass from maritime to inland countries.
3. It decreases in the temperate zones on eastern coasts as compared with western coasts, but within the tropics it is the reverse.
4. More rain falls in mountainous than in level countries.
5. Most rain falls within the tropics.

The rainless regions, not deserts, are parts of Guatemala, the table-land of Mexico, the Peruvian coast, parts of Morocco, Egypt, Arabia, Persia, etc.

The electric character of the air is another subject of interest, and a leading one in Meteorology. What can be more magnificent, what more awful, than those storms of lightning and thunder which are witnessed sometimes even in our own latitudes?

Faraday, who as a chemist and philosophical writer is of the highest authority, professes to have demonstrated that one single gram of water contains as much electricity as can be accumulated in eight hundred thousand Leyden jars, each requiring to charge it thirty turns of the large machine at the Royal Institution.

It is not intended that this astounding statement should be received without some grains of allowance; but a very elegant and scientific writer, who adopts it without hesitation, adds, "We can from this crystal sphere [of water] evoke heat, light, electricity in enormous quantities, and beyond these we can see powers or forces for which, in the poverty of our ideas and our words, we have not names."

Flashes of electricity have been detected, during warm, close weather, issuing from some species of plants. The Tuberose and African Marigold have been seen to emit these mimic lightnings. (Goethe is the authority for this.) To atmospheric electricity we doubtless owe the coruscations of the Aurora, one of the most beautiful of our meteors.

The usual forms of lightning are the zigzag or forked sharply defined,--the sheet-lightning, illuminating a whole cloud, which it seems to open,--heat-lightning, not emanating from any cloud, but apparently diffused through the air and without report. There are also fireballs which shoot across the sky, leaving a train often visible for seconds and minutes. These last, when they project any masses to the earth, are termed aërolites.

Atmospheric electricity has much to do with the distribution of rain, the precipitation of vapor, the condition of our nervous system, and, according to Humboldt, with the circulation of the organic juices. Atmospheric electricity has heretofore been a great obstacle to the success of the Magnetic Telegraph, and curiously disturbs its operation; but there has recently been invented an instrument called a Mutator, which is connected with the wires, and carries off all the disturbing influences of the atmosphere without interfering with the working current. On the other hand, artificially created electricity has led to important advances in many of the arts and sciences.

Ice is water frozen under a very curious and peculiar law. Hail is the congelation of drops of rain in irregular forms, always sudden,--by some attributed to electricity and currents of air violently rarefied by it, and by others to rain-drops falling through a cold stratum of air and suddenly

congealed. Snow, the ermine of the earth, is the crystallized moisture of the air, and is in subjection to unchanging laws.

Water contracts as it grows colder, until it falls in temperature to  $42^{\circ}$ . It then expands till it reaches  $32^{\circ}$ , when it becomes solid, though its density is actually diminished, and its specific gravity is reduced to .929, while that of unfrozen water is 1.000. Of course it is much lighter, and it floats. This admirable arrangement prevents our rivers being frozen up and our lakes becoming solid. Ice thickens because it is porous, and allows the heat of the water to pass up and the cold to descend; but this is happily a slow process, as ice is a bad conductor. Salt water freezes at the temperature of  $7^{\circ}$ ,  $25^{\circ}$  below freezing- point. There are many things to be said about ice, whether as glaciers, or Arctic bergs, or, as it is found sometimes, contrary to its general law, at the bottom of rivers and ponds, its geological movements in the transportation of boulders, and as an article of luxury;--but we are compelled to leave them for the present.

Snow, which, in its crystallization, surpasses the most perfect gems, is invariably found arranged in determinate angles, to wit,  $60^{\circ}$ , and its double,  $120^{\circ}$ , and formed of six-sided prisms. More than one hundred kinds have been described by Dr. Scoresby and others, and all these are combinations of the six- sided prism. The uses of snow, from its non-conducting qualities, whether as appreciated by the Esquimaux as a material for huts, or by the agriculturists of our own climate as sheltering the seed, are too well known to require any particular remarks. Strange as it may appear, the proximate cause of the formation of snow is not yet fully agreed upon by the learned.

The connection between Sound and the atmosphere is an important one. The air is a conductor of sound, and in some conditions one of the best. A bell rung in an exhausted receiver gives no sound. In the Arctic regions ordinary conversations have been distinctly heard for the distance of a mile and a half.

All that we have thus far said in this article bears directly, in some form or other, on another of the great features of Meteorology, one of its great objects, and an unceasing topic,--namely, Climate.

The term Climate, in its general sense, indicates the changes and condition of the atmosphere, such as we have been considering. It has something to do with all of them; it is not entirely controlled by any. Thus, places having the same mean annual temperature often differ materially in climate. In some (we quote Mrs. Somerville) the winters are mild and the summers cool, whereas in others the extremes of heat and cold prevail.

Climates are not found coincident with lines of latitude; they are quite as often found parallel to lines of longitude. If you connect the extreme points of the mean annual temperatures by a line passing round the earth, you have a zone, but never a true circle. The curves are longitudinal.

Climate is dependent on temperature, winds, the elevation of land, soil, ranges of mountains, and proximity of bodies of water; and it is also the expression, if we may so term it, of the changes in the atmosphere sensibly affecting our organs. Humboldt refers it to humidity, temperature, changes in barometric pressure, calmness or agitation of the air, amount of electric force, and transparency of the sky.

When mountains range themselves in lines of latitude across a continent, they are barriers to civilization, to the mingling of races, and the union of states. Thus, the Pyrenees have always kept France and Spain apart, the Alps and the Apennines have secluded Switzerland from its neighbors. In our own country, Providence has placed our great mountains on a northern and southern axis; the slopes, the direction, the prevailing winds, the facilities for transportation and travel favor no one of our northern, southern, and western States more than another.

Climate affects vegetation and the distribution of animal life, and thus greatly modifies commerce.

Whatever of importance is accomplished in those countries where climate has overpowered a race is best and principally done by the men of the temperate zones, who carry with them perseverance, courage, and ability,

and maintain their ascendancy, true to their type, while they have their life to live.

But with our own eyes we may perceive how much climate affects agriculture. The humidity or dryness of soils, their natural or acquired heat or cold, the prevailing winds, the quantity of rain, the snows, the dews, all affect the planter of the seed and the tiller of the ground; they increase or diminish the aggregate of the products of countries, the value of their imports and exports,- in short, their material power, their resources, their influence, their very existence.

The climate of our own country is exceedingly variable. The transitions from heat to cold are very sudden, the range of the mercury is very great. In the North, we have almost the Arctic winters; in the South, almost the peculiarities of the tropics. Of the State of Pennsylvania it has been said, that in this respect it is a compound of all the countries in the world. Mr. Jefferson and Dr. Rush, as before observed, insisted that our climate has changed; and Williams, the historian of Vermont, contends that New England has deteriorated in its seasons, temperature, harvests, and health, since its early settlement. Our winds blow from every point of the compass, but a due north wind is very rare. Our great western lakes have a large influence on our climate. Some learned men have asserted, that, if they were land, their area being about ninety-four thousand square miles, the region would be so cold as to be scarcely inhabitable.

Such is an outline of our subject. The science itself is by no means systematized. Many things are taken for granted which may yet be disproved. If, says Humboldt, we perceive a want of connection in the phenomena of certain sciences, we may anticipate the revelation of new facts, whose importance will probably be commensurate with the attention directed to other branches of study. What we want is a larger class of observers, and not only those who are professional persons, but those who would commune with Nature, and seek to invigorate their minds by the acquisition of new ideas, and a recourse to rich and pure sources of enjoyment.

But more than this. It is a requirement of the present age, says the same authority, that there should be an equal appreciation of all branches of mathematical and physical science; for the material wealth and the growing prosperity of nations are principally based upon a more enlightened employment of the products and forces of Nature.

Much attention has of late years been paid to this subject. Many distinguished men in Europe have connected their great reputations indissolubly with it, and it is absolutely true that more persons are engaged in a common effort to promote this science than any other of our time. In Paris there is a large and flourishing society where the most brilliant of its savans combine their efforts. In London, that which was established in 1850 has met with remarkable success, and a most unexpected crowd of supporters. The finest instruments, the most accurate observations, and entire uniformity of purpose have been the result. In Germany, equal zeal prevails among its naturalists. There are more than eight hundred stations throughout the world where regular observations are made, and upwards of three hundred and sixty of them are in the United States. The Smithsonian Institution has been also a wise patron of this science, by its numerous publications, its lucid directions for observing meteorological changes, and the bestowal of standard instruments in large numbers to efficient and well-placed observers. By a recent arrangement, a portion of this work is to be performed by the Patent Office.

Observation, and accuracy in observation, are the foundation of this science. The results are compared to the leaves of a book, which will some day be arranged and bound together in one volume. The instruments in use are delicate, ingenious, and indispensable. Their history, uses, and importance would be topic enough for a separate article.

While at the first view Meteorology may appear to occupy but a limited sphere, upon a closer examination it will be found to embrace almost all the sciences, and to be commensurate with Nature itself. It is continually influencing us, by its agencies appealing to our senses, ministering to our wants, and governing our conduct.

Its influence upon its votaries is equally remarkable; for, as a rule, they are distinguished among the learned, their characters are in harmony with their

pursuits, and they are recognized everywhere for disinterestedness, philanthropy, and public and private virtue. While Mental Philosophy, has made but little progress since the times of Plato, and the world is but little better for scholastic disputations, Natural Science has civilized man, elevated his condition, increased the circle of his exertions, and, by the development of some of its simplest principles, united the intelligent, the learned, the enterprising, and the virtuous of all nations into a recognized and a noble brotherhood.

## TREASURE-TROVE

Once, the Castle of Chalus, crowned  
With sullen battlements, stood and frowned  
    On the sullen plain around it;  
But Richard of England came one day,  
And the Castle of Chalus passed away  
In such a rapid and sure decay  
    No modern yet has found it.

Who has not heard of the Lion King  
Who made the harps of the minstrels ring?  
    Oh, well they might imagine it  
Hard for chivalry's ranks to show  
A knight more gallant to face a foe,  
With a firmer lance or a heavier blow,  
    Than Richard I. Plantagenet;

Or gayer withal: for he loved his joke,  
As well as he loved, with slashing stroke,  
    The haughtiest helm to hack at:  
Wine or blood he laughingly poured;  
'Twas a lightsome word or a heavy sword,  
As he found a foe or a festive board,  
    With a skull or a joke to crack at.

Yet some their candid belief avow,  
That, if Richard lived in England now,  
    And his lot were only a common one,  
He ne'er had meddled with kings or states,  
But might have been a bruiser of pates  
And champion now of the "heavy weights,"--  
    A first-rate "Fighting Phenomenon."



A vassal bound in peace and war  
To Richard I. was Vidomar,--  
    A noble as proud and needy  
As ever before that monarch bowed,  
But not so needy and not so proud  
    As the monarch himself was greedy.

Vicomte was he of the Limousin,  
Where stones were thick and crops were thin,  
And profits small and slow to come in.  
But slow and sure, the father's plan, did  
Not suit the son. Sire lived close-handed;  
Became, not rich, but very landed.  
The only debt that ever he made  
Was Nature's debt, and that he paid  
About the time of the Third Crusade,--  
A time when the fashion was fully set  
By Richard of running in tilts and debt,  
When plumes were high and prudence low,  
And every knight felt bound to "go  
The pace," and just like Richard do,  
By running his purse and a Paynim through.  
Yet do not suppose that Vidomar  
Was ever a knight in the Holy War:  
For Richard many a Saracen's head  
Had lopped before the old Count was dead;  
And Richard was home from Palestine,  
Home from the dungeon of Tiernstein,  
And many a Christian corpse had made,  
Ere the time in which the story is laid.  
But the fashion he set became so strong,  
That Vidomar was hurried along,  
And did as many a peer has done  
On reaching a title and twenty-one,  
And met the fate that will meet a peer  
Who lives in state on nothing a year.

Deserted by all, except some Jews,  
Holding old post-obits and IOUs,  
Who hunted him up and hunted him down,  
He left Limoges, the capital town,  
    For his country castle Chalus,  
(As spendthrift lords to Boulogne repair,  
To give their estates a chance to air,)  
    And went to turning fallows;  
At least, he ordered it, (much the same,)  
And went himself in pursuit of game  
    Or any rural pleasure,  
Till one fine day, as he rode away,  
A serf came running behind to say  
They'd found a crock of treasure.  
    No more he thought of hawk or hound,  
But spurred to the spot, and there he found,  
    Beyond his boldest thoughts,  
A sum to set him afloat again,--  
The leading figure, 'twas very plain,  
    Was followed by several 0s.

Oh, who can tell of the schemes that flew  
Through his head, as the treasure met his view,  
And he knew that again his note was good?  
He may have felt as a debtor would  
    Who has dodged a dogging dun,  
Or a bank-cashier in his hour of dread  
With brokers behind and breakers ahead,  
Or a blood with his last "upon the red,"--  
    And each expecting a run.  
What should he do? 'Twas very true  
That all of his debts were overdue;  
But the "real- whole-souled" must use their gold  
To run new scores,--not to pay off old.  
That night he lay till the break of day,  
    The doubtful question solving:  
Himself in his bed, and that in his head,

He kept by turns revolving.

That selfsame day, not very far  
From the country castle of Vidomar,  
The king had been progressing:  
A courtly phrase, when the king was out  
On a chivalrous bender; any route  
As good as another: what about  
Were little good in guessing.

That night, as he sat and drank, he frowned,  
While courtiers moodily stood around,  
All wondering what the journey meant,  
Till a scout reported, "Treasure found!"--  
With a rap that made the glasses bound,  
He swore, "By Arthur's table round,  
I'll have another tournament!"

No more, as he sat and drank, he frowned,  
Or courtiers moodily stood around,  
But all were singing, drinking;  
And louder than all the songs he led,  
And louder he said, "Ho! pass the red!"  
Till he went to bed with a ring in his head  
That seemed like gold a- chinking.

'Twere wrong to infer from what you're read  
That Richard awoke with an aching head;  
For nerves like his resisted  
With wonderful ease what we might deem  
Enough to stagger a Polypheme,  
And his spirits would never more than seem  
A trifle too much "assisted."

And yet in the morn no fumes were there,  
And his eyes were bright,--almost as a pair

Of eyes that you and I know;  
For his head, the best authorities write,  
(See the Story of Tuck,) was always right  
And sound as ever after a night  
Of "*Pellite curas vino!*"

As soon as the light broke into his tent,  
Without delay for a herald he sent,  
And bade him don his tabard,  
And away to the Count to say, "By law  
*That gold* was the king's: unless he saw  
The same ere noon, his sword he would draw  
And throw away the scabbard."

An hour, for his morning exercise,  
He swayed that sword of wondrous size,--  
'Twas called his great "persuader";  
Then a mace of steel he smote in two,--  
A feat which the king would often do,  
Since Saladin wondered at that *coup*  
When he met our stout crusader.

A trifle for him: he "trained to light,"--  
Grown lazy now: but his appetite,  
On the whole, was satisfactory,--  
As the vanishing viands, warm and cold,  
Most amply proved, ere, minus the gold,  
The herald returned and trembling told  
How the Count had proved refractory:

Had owned it true that his serfs had found  
A treasure buried somewhere in the ground,--  
Perhaps not strictly a nugget:  
Though none but Norman lawyers chose  
To count it tort, if the finders "froze"  
To treasure-trove,--especially those  
Who held the land where they dug it,--

For quits he'd give up half,--down,--cash;  
And that, for one who had gone to smash,  
Was a liberal restitution:  
His neighbor Shent-per-Shent did sue  
On a better claim, and put it through,--  
Recovered his suit, but not a *sou*  
At the tail of an execution.

Coeur gazed around with the ominous glare  
Of the lion deprived of the lion's share,--  
A look there was no mistaking,--  
A look which the courtiers never saw  
Without a sudden desire to draw  
Away from the sweep of the lion's paw  
Before their bones were aching.

He caught the herald,--'twas by the slack  
Of garments below and behind his back,--  
Then twirled him round for a minute;  
And when at last he let him free,  
He shied him at a neighboring tree,  
A distance of thirty yards and three,  
And lodged him handsomely in it:

Then seized his ponderous battle-axe,  
And bade his followers mount their hacks,  
With a look on his countenance so stern,  
So little of fun, so full of fight,  
That, when he came in the Count's full sight,  
In something of haste and more of fright,  
The Count rode out of the postern;

And crowding leagues from his angry liege,  
He left his castle to storm or siege,--  
His poor beef-eaters to hold out,  
Or save themselves as well as they could,

Or be food for crows: what noble should  
Waste thought on such? As a noble would,  
He prudently smuggled the gold out.

In the feudal days, in the good old times  
Of feudal virtues and feudal crimes,  
A point of honor they'd make in it,  
Though sure in the end their flag must fall,  
To show stout fight and never to call  
A truce till they saw a hole in the wall  
Or a larder without any steak in it.

The fight began. Shouts filled the air,--  
"St. George!" "St. Denis!"--as here and there  
The shock of the battle shifted;  
There were catapult-shots and shots by hand,  
Ladders with desperate climbers manned,  
Rams and rocks, hot lead, and sand  
On the heads of the climbers sifted.

But the sturdy churls would not give way,  
Though Richard in person rushed to the fray  
With all of his rash proclivity  
For knocks; till, despairing of knightly fame  
In doughty deeds for a doubtful claim,  
The hero of Jaffa changed his game  
To a masterly inactivity.

He stretched his lines in a circle round,  
And pitched his tent on a rising ground  
For general supervision  
Of both the hostile camps, while he  
Could join with Blondel in minstrel glee,  
Or drink, or dice with Marcadee,  
And *they*-- consume provision.

To starve a garrison day by day

You may not think a chivalrous way  
To take a fortification.  
The story is dull: by way of relief,  
I make a digression, very brief,  
And leave the "ins" to swallow their beef,  
The "outs" their mortification.

Many there were in Richard's train  
More known to fame and of higher degree,  
But none that suited his fickle vein  
So well as Blondel and Marcadee.  
Blondel had grown from a minstrel-boy  
To a very romantic troubadour  
Whose soul was music, whose song was joy,  
Whose only motto was *Vive l'amour!*  
In lady's bower, in lordly hall,  
From the king himself to the poorest clown,  
A joyous welcome he had from all,  
And Care in his presence forgot to frown.  
Sadly romantic, fantastic and vain,  
His heart for his head still made amends;  
For he never sang a malicious strain.  
And never was known to fail his friends.  
Who but he, when the captive king,  
By a brother betrayed, was left to rot,  
Would have gone disguised to seek and sing,  
Till he heard his tale and the tidings brought?  
Little the listening sentries dreamed,  
As they watched the king and a minstrel play,  
That what but an idle rhyming seemed  
Would rouse all England another day!  
'Twas the timely aid of a friend in need,  
And, seldom as Richard felt the power  
Of a service past, he remembered the deed  
And cherished him ever from that hour:  
He made him his bard, with nought to do  
But court the ladies and court the Nine,

And every day bring something new  
To sing for the revellers over their wine;  
With once a year a pipe of Sherry,  
A suit of clothes, and a haunch of venison,  
To make himself and his fellows merry,--  
The salary now of Alfred Tennyson.

Marcadee was a stout Brabançon,  
With conscience weak and muscles strong,  
Who roamed about from clime to clime,  
The side of virtue or yet of crime  
Ready to take in a regular way  
For any leader and regular pay;  
Who trusted steel, and thought it odd  
To fear the Devil or honor God.  
His *forte* was not in the field alone,  
He was no common fighter,  
For in all accomplishments he shone,--  
At least, in all the lighter.  
To lance or lute alike *au fait*,  
With grasp now firm, now light,  
He flourished this to knightly lay,  
And that to lay a knight.  
Ready in fashion to lead the *ton*,  
In the battle-field his men,  
He danced like a Zephyr, and, harness on,  
Could walk his mile in ten.  
And Nature gave him such a frame,  
His tailor such a fit,  
That, whether a head or a heart his aim,  
He always made a hit.  
Wherever he went, the ladies dear  
Would very soon adore him,  
And, quite of course, the lords would sneer,--  
But never sneer before him!  
Perhaps it fared with the ladies worse  
Than it fared with their gallants;



For he broke a vow with as slight remorse  
As he ever broke a lance.  
Thus, tilting here and jilting there,  
He fought a foe or he fooled a fair,  
But little recking how;  
So deadly smooth, so cruel and vain,  
He might have made a capital Cain,  
Or a splendid dandy now.  
In short, if you looked o'er land and sea,  
From London to the Niger,  
You certainly must have said with me,--  
If Richard was lion, Marcadee  
Might well have been the tiger.

A month went by. They lay there still,  
And chafed with nothing but time to kill,--  
A tough old foe. Observe the way  
They laid him out, as thus:--One day,--  
'Twas after dinner and afternoon,  
When the noise was over of knife and fork,  
And only was heard an occasional cork  
And Blondel idly thrumming a tune,--  
King Richard pushed the wine along,  
And rapped the table, and cried, "A song!  
Dulness I hold a shame, a sin  
Against good wine. Come, Blondel, begin!"  
Blondel coughed,--was "half afraid,"--  
Was "out last night on a serenade,  
And caught a cold,"--his "voice was gone,--  
And really, just now, his head"--"Go on!"  
He bowed, and swept the chords-- "Brrrrang"--  
With a handful of notes, and thus he sang:--

BLONDEL.

Life is fleeting,--make it pleasant;  
Care for nothing but the present;  
For the past we leave behind us,  
And the future may not find us.  
    Though we cannot shun its troubles,  
        Care and sorrow we may banish;  
    Though its pleasures are but bubbles,  
        Catch the bubbles ere they vanish.

There is joy we cannot measure,--  
Joy we may not win with treasure.  
When the glance of Beauty thrills us',  
When her love with rapture fills us,  
    Let us seize it ere it passes;  
        Be our motto, "Love is mighty."  
    Fill, then, fill your brimming glasses!  
    Fill, and drink to Aphrodite!

Of course they drank with a right good will,  
For they never missed a chance "to fill."  
And yet a few, I'm sorry to own,  
Made side-remarks in an undertone,  
Like those we hear, when, nowadays,  
Good-natured friends, with seeming praise,  
Contrive to damn. In the midst of the hum  
They heard a loud and slashing thrum:  
'Twas the king; and each his breath drew in  
Till you might have heard a falling pin.  
Some little excuse, at first, he made,  
While over the lute his fingers strayed:--  
"You know my way,--as the fancies come,  
I improvise."--There was ink on his thumb.  
That morning, alone, good hours he spent  
In writing despatches never sent.

RICHARD.

There is pleasure when bright eyes are glancing  
And Beauty is willing; but more  
When the war-horse is gallantly prancing  
And snuffing the battle afar,--  
When the foe, with his banner advancing,  
Is sounding the clarion of war.

Where the battle is deadly and gory,  
Where foeman 'gainst foeman is pressed,  
Where the path is before me to glory,  
Is pleasure for me, and the best.  
Let me live in proud chivalry's story,  
Or die with my lance in its rest!

The plaudits followed him loud and free  
As he tossed the lute to Marcadee,  
Who caught it featly, bowing low,  
And said, "My liege, I may not know  
To improvise; but I'll give a song,  
The song of our camp,--we've known it long.  
It suits not well this tinkle and thrum,  
But needs to be heard with a rattling drum.  
Ho, there! Tambour!--He knows it well,--  
'The Brabançon!--Now make it tell;  
Let your elbows now with a spirit wag  
In the outside roll and the double drag."

MARCADEE.

I'm but a soldier of fortune, you see:  
Huzza!  
Glory and love,--they are nothing to me:  
Ha, ha!  
Glory's soon faded, and love is soon cold:  
Give me the solid, reliable gold:

Hurrah for the gold!

Country or king I have none, I am free:

Huzza!

Patriot's quarrel,-- 'tis harvest for me:

Ha, ha!

A soldier of fortune, my creed is soon told,--

I'd fight for the Devil, to pocket his gold:

Hurrah for the gold!

He turned to the king, as he finished the verse,

And threw on the table a heavy purse

With a pair of dice; another, I trow,

Still lurked *incog.* for a lucky throw:--

""Tis mine; 'twas thine. If the king would play,

Perchance he'd find his revenge to-day.

Gambling, I own, is a fault, a sin;

I always repent--unless I win."

*Le jeu est fait.* --"Well thrown! eleven!

My purse is gone.--Double-six, by heaven!"

At this unlucky point in the game

A herald was ushered in. He came

With a flag of truce, commissioned to say

The garrison now were willing to lay

The keys of the castle at his feet,

If he'd let them go and let them eat:

They'd done their best; could do no more

Than humbly wait the fortune of war

And Richard's word. It came in tones

That grated harshly:--"D--n the bones

And double-six! Marcadee, you've won.--

Take back my word to each mother's son,

And tell them Richard swore it:

Be the smoke of their den their funeral pall!

By the Holy Tomb, I'll hang them all!

They've hung out so well behind their wall,

They'll hang out well before it."  
Then Richard laughed in his hearty way,  
Enjoying his joke, as a monarch may;  
He laughed till he ached for want of breath:  
If it lacked in life, it was full of death:  
Like many, believing the next best thing  
To a joke with a point is a joke with a sting.  
Loud he laughed; but he laughed not long  
Ere he leaped to the back of his charger strong,  
And bounded forward, axe on high,  
Circling the tents with his battle-cry,--  
"Away! away! we shall win the day:  
In the front of the fight you'll find me:  
The first to get in my spurs shall win,--  
My boots to the wight behind me!"

\* \* \* They have reached the moat;  
The draw is up, but a wooden float  
Is thrust across, and onward they run;  
The bank is gained and the barbican won;  
The outer gate goes down with a crash;  
Through the portcullis they madly dash,  
And with shouts of triumph they now assail  
The innermost gate. The crushing hail  
Of rocks and beams goes through the mass,  
Like the summer-hail on the summer-grass;--  
They falter, they waver. A stalwart form  
Breaks through the ranks, like a bolt in the  
storm:  
'Tis the Lion King!--"How, now, ye knaves!  
Do ye look for safety? Find your graves!"--  
One blow to the left, one blow to the right,--  
Two recreants fall;--no more of flight.  
One stride to the front, and, stroke on stroke,  
His curtle-axe rends the double oak.  
Down shower the missiles;--they fall in vain;  
They scatter like drops from the lion's mane.

He is down,--he is up;--that right arm! how  
'Tis nerved with the strength of twenty, now!  
The barrier yields,--it shivers,--it falls.  
"Huzza! Saint George! to the walls! to the walls!  
Throw the rate to the moat! cut down! spare not!  
No quarter! remember----*Je--su!* I'm shot!"

On a silken pallet lying, under hangings stiff with  
gold,  
Now is Coeur-de-Lion sighing, weakly sighing, he  
the bold!  
For with riches, power, and glory now forever he  
must part.  
They have told him he is dying. Keen remorse is at  
his heart  
Life is grateful, life is glorious, with the pulses  
bounding high  
In a warrior frame victorious: it were easy so to die.  
Yet to die is fearful ever; oh, how fearful, when the  
sum  
Of the past is lengthened murder,--and a fearful  
world to come!  
Where are now the wretched victims of his wrath?  
The deed is done.  
He has conquered. They have suffered. Yonder,  
blackening in the sun,  
From the battlements they're hanging. Little joy it  
gives to him  
Now to see the work of vengeance, when his eye is  
growing dim!  
One was saved,--the daring bowman who the fatal  
arrow sped;  
He was saved, but not for mercy; better numbered  
with the dead!  
Now, relenting, late repenting, Richard turns to  
Marcadee,

Saying, "Haste, before I waver, bring the captive youth to me."  
He is brought, his feet in fetters, heavy shackles on his hands,  
And, with eye unflinching, gazing on the king, erect he stands.  
He is gazing not in anger, not for insult, not for show;  
But his soul, before its leaving, Richard's very soul would know.  
Death is certain,-- death by torture: death for him can have no sting,  
If that arrow did its duty,--if he share it with the king.  
Were he trembling or defiant, were he less or more than bold,  
Once again to vengeful fury would he rouse the fiend of old  
That in Richard's breast is lurking, ready once again to spring.  
Dreading now that vengeful spirit, with a wavering voice, the king  
Questions impotently, wildly: "Prisoner, tell me, what of ill  
Ever I have done to thee or thine, that me thou wouldst kill?"  
Higher, prouder still he bears him; o'er his countenance appear,  
Flitting quickly, looks of wonder and of scorn: what does he hear?

"And dost thou ask me, man of blood, what evil thou hast done?  
Hast thou so soon forgot thy vow to hang each mother's son?  
No! oft as thou hast broken vows, I know them to be strong,

Whene'er thy pride or lust or hate has sworn to do  
a wrong.  
But churls should bow to right divine of kings, for  
good or ill,  
And bare their necks to axe or rope, if 'twere thy  
royal will?  
Ah, hadst thou, Richard, yet to learn the very  
meanest thing  
That crawls the earth in self-defence would turn  
upon a king?  
Yet deem not 'twas the hope of life which led me  
to the deed:  
I'd freely lose a thousand lives to make thee,  
tyrant, bleed!--  
Ay! mark me well, canst thou not see somewhat of  
old Bertrand?  
My father good! my brothers dear!--all murdered  
by thy hand!  
Yes, one escaped; he saw thee strike, he saw his  
kindred die,  
And breathed a vow, a burning vow of vengeance;-  
-it was I!  
I've lived; but all my life has been a memory of the  
slain;  
I've lived but to revenge them,--and I have not  
lived in vain!  
I read it in thy haggard face, the hour is drawing  
nigh  
When power and wealth can aid thee not,--when,  
Richard, thou must DIE!  
What mean those pale, convulsive lips? What  
means that shrinking brow?  
Ha! Richard of the lion- heart, thou art a coward  
now!  
Now call thy hireling ruffians; bid them bring the  
cord and rack,  
And bid them strain these limbs of mine until the



sinews crack;  
And bid them tear the quivering flesh, break one  
by one each bone;--  
Thou canst not break my spirit, though thou mayst  
compel a groan.  
I die, as I would live and die, the ever bold and  
free;  
And I shall die with joy, to think I've rid the world  
of thee."

Swords are starting from their scabbards, grim and  
hardened warriors wait  
Richard's slightest word or gesture that may seal the  
bowman's fate.  
But his memory has been busy with the deeds of  
other times.  
In the eyes of wakened conscience all his glories turn  
to crimes,  
And his crimes to something monstrous; worlds were  
little now to give  
In atonement for the least. He cries, in anguish, "Let  
him live.  
He has reason; never treason more became a traitor  
bold.  
Youth, forgive as I forgive thee! Give him freedom,--  
give him gold.  
Marcadee, be sure, obey me; 'tis the last, the dying  
hest  
Of a monarch who is sinking, sinking fast,--oh, not  
to rest!  
Haply, He above, remembering, may relieve my dark  
despair  
With a ray of hope to light the gloom when I am  
suffering-- there!"

The captain neared the royal bed  
And humbly bowed his helmèd head,  
And laid his hand upon the plate  
That sheathed his breast, and said, "Though late  
Thy mercy comes, I hold it still  
My duty to do thy royal will.  
If I should fail to serve thee fair,  
May I be doomed to suffer--there!"

I've often met with a fast young friend  
More ready to borrow than I to lend;  
I've heard smooth men in election-time  
Prove every creed, but their own, a crime:  
Perhaps, if the fast one wished to borrow,  
I've taken his word to pay "to-morrow";  
Perhaps, while Smooth explained his creed,  
I've thought him the man for the country's need;  
Perhaps I'm more of a trusting mood  
Than you suppose; but I think I would  
Have trusted that man of mail,  
If I had been the dying king,  
About as far as you could sling  
An elephant by the tail!

Good subjects then, as now, no doubt,  
When a king was dead, were eager to shout  
In time, "God save" the new one!  
One trouble was always whom to choose  
Amongst the heirs; for it raised the deuse  
And ran the subject's neck in a noose,  
Unless he chose the true one.

Another difficult task,--to judge  
If the coming king would bear a grudge  
For some old breach of concord,

And take the earliest chance to send  
A trusty line by a trusty friend  
To give his compliments at the end  
Of a disagreeable strong cord.

And whoever would have must seize his own.  
Thus a dying king was left alone,  
With a sad neglect of manners;  
Ere his breath was out, the courtiers ran,  
With fear or zeal for "the coming man,"  
In time to escape from under his ban,  
Or hurry under his banners.

So Richard was left in a shabby way  
To Marcadee, with an abbot to pray  
And pother with "consolation,"  
Reminding 'twas never too late to search  
For mercy, and hinting that Mother Church  
Was never known to leave in the lurch  
A king with a fat donation.  
But the abbot was known to Richard well,  
As one who would smoothen the road to hell,  
And quite as willing to revel  
As preach; and he always preached to "soothe,"  
With a mild regard for "the follies of youth,"--  
Himself, in epitome, proving the truth  
Of the world, the flesh, and the Devil.

This was the will that Richard made:--  
"My body at father's feet be laid;  
And to Rouen (it loved me most)  
My heart I give; and I give my ins-  
Ides to the rascally Poitevins;  
To the abbot I give my darling--sins;  
And I give "--He gave up the ghost.

The abbot looked grave, but never spoke.

The captain laughed, gave the abbot a poke,  
And, without ado or lingering,  
"Conveyed" the personals, jewels, and gold,  
Omitting the formal To Have and to Hold  
From the royal finger, before it was cold,  
He slipped the royal finger-ring.

There might have been in the eye of the law  
A something which lawyers would call a flaw  
Of title in such a conversion:  
But if weak in the law, he was strong in the  
hand,  
And had the "nine points."--He summoned his  
band,  
And ordered before him the archer Bertrand,  
Intending a little diversion.

He called the cutter,--no cutter of clothes,  
But such as royalty kept for those  
Who happened to need correcting,--  
And told him that Richard, before he died,  
Desired to have a scalpel applied  
To the traitor there. With professional pride,  
The cutter began dissecting.

Now Bones was born with a genius to flay:  
He might have ranked, had he lived to-day,  
As a capital taxidermist:  
And yet, as he tugged, they heard him say,  
Of all the backs that ever lay  
Before him in a professional way,  
That was of all backs the firmest.

Kind reader, allow me to drop a veil  
In pity; I cannot pursue the tale  
In the heartless tone of the last strophe.  
'Tis done, and again I'll be the same.

They triumphed not, if they felt no shame:  
No muscle quivered, no murmur came,  
Until the final catastrophe.

The captain jested a moment, then  
He waved his hand and bowed to his men  
With a single word, "Disbanded,"  
And galloped away with three or four  
Stout men-at-arms to the nearest shore,  
Where a gallant array not long before  
With the king in pride had landed.

He coasted around, went up the Rhine,  
So famous then for robbers and wine,  
So famous now as a ramble.  
The wine and the robbers still are there;  
But they rob you now with a bill of fare,  
And gentlemen bankers "on the square"  
Will clean you out, if you gamble.

He built him a Schloss on--something-Stein,  
And became the first of as proud a line  
As e'er took toll on the river,  
When barons, perched in their castles high,  
On the valley would keep a watchful eye,  
And pounce on travellers with their cry,  
"The Rhine-dues! down! deliver!"

And crack their crowns for any delay  
In paying down. And that, by the way,  
About as correctly as I know,  
Is the origin true of an ancient phrase  
So frequently heard in modern days,  
When a gentleman quite reluctantly pays,--  
I mean, "To come down with the rhino."

# **A LEGEND OF MARYLAND**

## **"AN OWRE TRUE TALE."**

The framework of modern history is, for the most part, constructed out of the material supplied by national transactions described in official documents and contemporaneous records. Forms of government and their organic changes, the succession of those who have administered them, their legislation, wars, treaties, and the statistics demonstrating their growth or decline,--these are the elements that furnish the outlines of history. They are the dry timbers of a vast old edifice; they impose a dry study upon the antiquary, and are still more dry to his reader.

But that which makes history the richest of philosophies and the most genial pursuit of humanity is the spirit that is breathed into it by the thoughts and feelings of former generations, interpreted in actions and incidents that disclose the passions, motives, and ambition of men, and open to us a view of the actual life of our forefathers. When we can contemplate the people of a past age employed in their own occupations, observe their habits and manners, comprehend their policy and their methods of pursuing it, our imagination is quick to clothe them with the flesh and blood of human brotherhood and to bring them into full sympathy with our individual nature.

History then becomes a world of living figures,--a theatre that presents to us a majestic drama, varied by alternate scenes of the grandest achievements and the most touching episodes of human existence.

In the composing of this drama the author has need to seek his material in many a tangled thicket as well as in many an open field. Facts accidentally encountered, which singly have but little perceptible significance, are sometimes strangely discovered to illustrate incidents long obscured and incapable of explanation. They are like the lost links of a chain, which, being found, supply the means of giving cohesion and completeness to the heretofore useless fragments. The scholar's experience is full of these

reunions of illustrative incidents gathered from regions far apart in space, and often in time. The historian's skill is challenged to its highest task in the effort to draw together those tissues of personal and local adventure which, at first without seeming or suspected dependence, prove, when brought into their proper relationship with each other, to be unerring exponents of events of highest concern.

It is pleasant to fall upon the course of one of these currents of adventure,--to follow a solitary rivulet of tradition, such as by chance we now and then find modestly flowing along through the obscure coverts of time, and to be able to trace its progress to the confluence of other streams,--and finally to see it grow, by the aid of these tributaries, to the proportions of an ample river, which waters the domain of authentic history and bears upon its bosom a clear testimony to the life and character of a people.

The following legend furnishes a striking and attractive exemplification of such a growth, in the unfolding of a romantic passage of Maryland history, of which no annalist has ever given more than an ambiguous and meagre hint. It refers to a deed of bloodshed, of which the only trace that was not obliterated from living rumor so long as a century ago was to be found in a vague and misty relic of an old memory of the provincial period of the State. The facts by which I have been enabled to bring it to the full light of an historical incident, it will be seen in the perusal of this narrative, have successively, and by most curious process of development, risen into view through a series of accidental discoveries, which have all combined, with singular coincidence and adaptation, to furnish an unquestionable chapter of Maryland history, altogether worthy of recital for its intrinsic interest, and still more worthy of preservation for the elements it supplies towards a correct estimate of the troubles which beset the career and formed the character and manners of the forefathers of the State.

## **CHAPTER I.**

### **TALBOT'S CAVE.**

It is now many years ago,--long before I had reached manhood,--that, through my intimacy with a friend, then venerable for his years and most attractive to me by his store of historical knowledge, I became acquainted with a tradition touching a strange incident that had reference to a mysterious person connected with a locality on the Susquehanna River near Havre de Grace. In that day the tradition was repeated by a few of the oldest inhabitants who dwelt in the region. I dare say it has now entirely run out of all remembrance amongst their descendants, and that I am, perhaps, the only individual in the State who has preserved any traces of the facts to which I allude.

There was, until not long ago, a notable cavern at the foot of a rocky cliff about a mile below the town of Port Deposit. It was of small compass, yet sufficiently spacious to furnish some rude shelter against the weather to one who might seek refuge within its solitary chamber. It opened upon the river just where a small brook comes brattling down the bank, along the base of a hill of some magnitude that yet retains the stately name of Mount Ararat. The visitor of this cavern might approach it by a boat from the river, or by a rugged path along the margin of the brook and across the ledges of the rock. This rough shelter went by the name of Talbot's Cave down to a very recent period, and would still go by that name, if it were yet in existence. But it happened, not many years since, that Port Deposit was awakened to a sudden notion of the value of the granite of the cliff, and, as commerce is a most ruthless contemner of all romance, and never hesitates between a speculation of profit and a speculation of history, Talbot's Cave soon began to figure conspicuously in the Price Current, and in a very little while disappeared, like a witch from the stage, in blasts of sulphur fire and rumbling thunder, under the management of those effective scene-shifters, the quarrymen. A government contract, more potent than the necromancy of the famed wizard Michael Scott, lifted this massive rock from its base, and, flying with it full two hundred miles, buried it fathoms below the surface of the Atlantic, at the Rip Raps, near Hampton Roads; and thus it happens that I cannot vouch the ocular proof of the Cave to certify the legend I am about to relate.

The tradition attached to this spot had nothing but a misty and spectral outline. It was indefinite in the date, uncertain as to persons, mysterious as



to the event,--just such a tradition as to whet the edge of one's curiosity and to leave it hopeless of gratification. I may relate it in a few words.

Once upon a time, somewhere between one and two hundred years ago, there was a man by the name of Talbot, a kinsman of Lord Baltimore, who had committed some crime, for which he fled and became an outlaw and was pursued by the authorities of the Province. To escape these, he took refuge in the wilderness on the Susquehanna, where he found this cave, and used it for concealment and defence for some time,--how long, the tradition does not say. This region was then inhabited by a fierce tribe of Indians, who are described on Captain John Smith's map as the "Sasquesahannocks," and who were friendly to the outlaw and supplied him with provisions. To these details was added another, which threw an additional interest over the story,--that Talbot had a pair of beautiful English hawks, such as were most prized in the sport of falconry, and that these were the companions of his exile, and were trained by him to pursue and strike the wild duck that abounded, then as now, on this part of the river; and he thus found amusement to beguile his solitude, as well as sustenance in a luxurious article of food, which is yet the pride of gastronomic science, and the envy of *bons vivants* throughout this continent.

These hawks my aged friend had often himself seen, in his own boyish days, sweeping round the cliffs and over the broad expanse of the Susquehanna. They were easily distinguished, he said, by the residents of that district, by their peculiar size and plumage, being of a breed not known to our native ornithology, and both being males. For many years, it was affirmed,--long after the outlaw had vanished from the scene,--these gallant old rovers of the river still pursued their accustomed game, a solitary pair, without kindred or acquaintance in our woods. They had survived their master,--no one could tell how long,--but had not abandoned the haunts of his exile. They still for many a year saw the wilderness beneath their daily flight giving place to arable fields, and learned to exchange their wary guard against the Indian's arrow for a sharper watch of the Anglo-Saxon rifle. Up to the last of their appearance the country-people spoke of them as Talbot's hawks.

This is a summary of the story, as it was told to me. No inquiry brought me any addition to these morsels of narrative. Who this Talbot was,--what was his crime,--how long he lived in this cave, and at what era,--were questions upon which the oracle of my tradition was dumb.

Such a story would naturally take hold of the fancy of a lover of romance, and kindle his zeal for an enterprise to learn something more about it; and I may reasonably suppose that this short sketch has already stirred the bosoms of the novel-reading portion, at least, of my readers with a desire that I should tell them what, in my later researches, I have found to explain this legend of the Cave. Even the outline I have given is suggestive of inferences to furnish quite a plausible chapter of history.

First, it is clear, from the narrative, that Talbot was a gentleman of rank in the old Province,--for he was kinsman to the Lord Proprietary; and there is one of the oldest counties of Maryland that bears the name of his family,--perhaps called so in honor of himself. Then he kept his hawks, which showed him to be a man of condition, and fond of the noble sport which figures so gracefully in the annals of Chivalry.

Secondly, this hawking carries the period of the story back to the time of one of the early Lords Baltimore; for falconry was not common in the eighteenth century: and yet the date could not have been much earlier than that century, because the hawks had been seen by old persons of the last generation somewhere about the period of our Revolution; and this bird does not live much over a hundred years. So we fix a date not far from sixteen hundred and eighty for Talbot's sojourn on the river.

Thirdly, the crime for which he was outlawed could scarcely have been a mean felony, perpetrated for gain, but more likely some act of passion,--a homicide, probably, provoked by a quarrel, and enacted in hot blood. This Talbot was too well conditioned for a sordid crime; and his flight to the wilderness and his abode there would seem to infer a man of strong purpose and self-reliance.

And, lastly, as he must have had friends and confederates on the frontier, to aid him in his concealment, and to screen him from the pursuit of the government officers, and, moreover, had made himself acceptable to the

Indians, to whose power he had committed himself, we may conclude that he possessed some winning points of character; and I therefore assume him to have been of a brave, frank, and generous nature, capable of attracting partisans and enlisting the sympathies and service of bold men for his personal defence.

So, with the help of a little obvious speculation, founded upon the circumstantial evidence, we weave the network of quite a natural story of Talbot; and our meagre tradition takes on the form, and something of the substance, of an intelligible incident.

## **CHAPTER II.**

### **STRANGE REVELATIONS.**

At this point I leave the hero of my narrative for a while, in order that I may open another chapter.

Many years elapsed, during which the tradition remained in this unsatisfactory state, and I had given up all hope of further elucidation of it, when an accidental discovery brought me once more upon the track of inquiry.

There was published in the city of Baltimore, in the year 1808, a book whose title was certainly as little adapted to awaken the attention of one in quest of a picturesque legend as a treatise on Algebra. It was called "The Landholder's Assistant," and was intended, as its name imported, to assist that lucky portion of mankind who possessed the soil of Maryland in their pursuit of knowledge touching the mysteries of patents, warrants, surveys, and such like learning, necessary to getting land or keeping what they had. The character and style of this book, in its exterior aspect, were as unpromising as its title. It was printed by Messrs. Dobbin & Murphy, on rather dark paper, in a muddy type,-- such as no Mr. Dobbin nor Mr. Murphy of this day would allow to bear his imprimatur,--though in 1808, I doubt not, it was considered a very creditable piece of Baltimore

typography. This unpretending volume was compiled by Chancellor Kilty. It is a very instructive book, containing much curious matter, is worthy of better adornment in the form of its presentation to the world, and ought to have a title more suggestive of its antiquarian lore. I should call it "Fossil Remains of Old Maryland Law, with Notes by an Antiquary."

It fell into my hands by a purchase at auction, some twenty years after I had abandoned the Legend of the Cave and the Hawks as a hopeless quest. In running over its contents, I found that a Colonel George Talbot was once the Surveyor- General of Maryland; and in two short marginal notes (the substance of which I afterwards found in Chalmers's "Annals") it was said that "he was noted in the Province for the murder committed by him on Christopher Rousby, Collector of the Customs,"--the second note adding that this was done on board a vessel in Patuxent River, and that Talbot "was conveyed for trial to Virginia, from whence he made his escape; and after being retaken, and" (as the author expresses his belief) "tried and convicted, was finally pardoned by King James the Second."

These marginal notes, though bringing no clear support to the story of the Cave, were embers, however, of some old fire not entirely extinct,--which emitted a feeble gleam upon the path of inquiry. The name of the chief actor coincided with that of the tradition; the time, that of James the Second, conformed pretty nearly to my conjecture derived from the age of the hawks; and the nature of the crime was what I had imagined. There was just enough in this brief revelation to revive the desire for further investigation. But where was the search to be made? No history that I was aware of, no sketch of our early time that I had ever seen, nothing in print was known to be in existence that could furnish a clue to the story of the Outlaw's Cave.

And here the matter rested again for some years. But after this lapse, chance brought me upon the highway of further development, which led me in due time to a strange realization of the old proverb that "Murder will out,"--though, in this case, its discovery could bring no other retribution than the settlement of an historical doubt, and give some posthumous fame to the subject of the disclosure.

In the month of May, 1836, I had a motive and an opportunity to make a visit to the County of St. Mary's. I had been looking into the histories of our

early Maryland settlement, as they are recounted in the pages of Bozman, Chalmers, and Grahame, and found there some inducements to persuade me to make an exploration of the whereabouts of the old city which was planted near the Potomac by our first pilgrims. Through the kindness of a much valued friend, whose acquirements and taste--both highly cultivated--rendered him a most effective auxiliary in my enterprise, I was supplied with an opportunity to spend a week under the hospitable roof of Mr. Carberry, the worthy Superior of the Jesuit House of St. Inigoes on the St. Mary's River, within a short distance of the plain of the ancient city.

Mr. Campbell and myself were invited by our host to meet him, on an appointed day, at the Church of St. Nicholas on the Patuxent, near the landing at Town Creek, and we were to travel from there across to St. Inigoes in his carriage,-- a distance of about fifteen miles.

Upon our arrival at St. Nicholas, we found a full day at our disposal to look around the neighborhood, which, being the scene of much historical interest in our older annals, presented a pleasant temptation to our excursion. Our friendly guide, Mr. Carberry, took us to Drum Point, the southern headland of the Patuxent at its entrance into Chesapeake Bay. Here was, at that time, and perhaps still is, the residence of the Carroll family, whose ancestors occupied the estate for many generations. The dwelling-house was a comfortable wooden building of the style and character of the present day, with all the appurtenances proper to a convenient and pleasant country homestead. Immediately in its neighborhood--so near that it might be said to be almost within the curtilage of the dwelling--stood an old brick ruin of what had apparently been a substantial mansion-house. Such a monument of the past as this, of course, could not escape our special attention, and, upon inquiry, we were told that it was once, a long time ago, the family home of the Rousbys, the ancestors of the present occupants of the estate; that several generations of this family, dating back to the early days of the Province, had resided in it; and that when it had fallen into decay, the modern building was erected, and the old one suffered to crumble into the condition in which we saw it. I could easily understand and appreciate the sentiment that preserved it untouched as part and parcel in the family associations of the place, and as a relic of the olden time which no one was willing to disturb.

The mention of the name of the Rousbys, here on the Patuxent River, was a sudden and vivid remembrancer to me of the old story of Talbot, and gave new encouragement to an almost abandoned hope of solving this mystery.

### **CHAPTER III.**

#### **A GRAVEYARD AND AN EPITAPH.**

Within a short distance of this spot, perhaps not a mile from Drum Point, there is a small creek which opens into the river and bears the name of Mattapony. In early times there was a notable fort here, and connected with it a stately mansion, built by Charles Calvert, Lord Baltimore, for his own occasional residence. The fort and mansion are often mentioned in the Provincial records as the place where the Council sometimes met to transact business; and accordingly many public acts are dated from Mattapony.

Calvert was doubtless attracted to this spot by the pleasant scenery of the headland which here looks out upon the noble water-view of the Chesapeake, and by its breezy position as an agreeable refuge from the heats of summer.

Our party, therefore, determined to set out upon a search for some relics of the mansion and fort; and as a guide in this enterprise, we engaged an old negro who seemed to have a fair claim in his own conceit to be regarded both as the Solomon and the Methuselah of the plantation. He was a wrinkled, wise-looking old fellow, with a watery eye and a grizzled head, and might, perhaps, have been about eighty; but, from his own account, he left us to infer that he was not much behind that great patriarch of Scripture whose years are described as one hundred and threescore and fifteen.

Finding that he was native to the estate, and had lived here all his life, we interrogated him with some confidence in his ability to contribute something useful to the issue of our pursuit. Amongst all the Solomons of this world, there is not one so consciously impressed with the unquestionable verity of his wisdom and the intensity of his knowledge as

one of these veterans of an old family-estate upon which he has spent his life. He is always an aristocrat of the most uncompromising stamp, and has a contemptuous disdain and intolerance for every form of democracy. Poor white people have not the slightest chance of his good opinion. The pedigree and history of his master's family possess an epic dignity in his imagination; and the liberty he takes with facts concerning them amounts to a grand poetical hyperbole. He represents their wealth in past times to have amounted to something of a fabulous superfluity, and their magnificence so unbounded, that he stares at you in describing it, as if its excess astonished himself.

When we now questioned our venerable conductor, to learn what he could tell us of the old Proprietary Mansion, he said, in his way, he "membered it, as if it was built only yesterday: he was fotch up so near it, that he could see it now as if it was standing before him: if *he* couldn't pint out where it stood, it was time for him to give up: it was a mighty grand brick house,"--laying an emphasis on *brick*, as a special point in his notion of its grandeur; and then he added, with all the gravity of which his very solemn visage was a copious index, that "Old Master Baltimore, who built it, was a real fine gentleman. He knowed him so well! He never gave anything but gold to the servants for tending on him. Bless you! he wouldn't even think of silver! Many a time has he given me a guinea for waiting on him."

This account of Old Master Baltimore, and his magnificent contempt of silver, and the intimacy of our patriarch with him, rather startled us, and I began to fear that the story of the house might turn out to be as big a lie as the acquaintance with the Lord Proprietary,--for Master Baltimore had then been dead just one hundred and twenty-one years. But we went on with him, and were pleasantly disappointed when he brought us upon a hill that sloped down to the Mattapony, and there traced out for us, by the depression of the earth, the visible lines of an old foundation of a large building, the former existence of which was further demonstrated by some scattered remains of the old imported brick of the edifice which were imbedded in the soil.

This spot had a fine outlook upon the Bay, and every advantage of locality to recommend its choice for a domestic establishment. We could find

nothing to indicate the old fort except the commanding character of the hill with reference to the river, which might warrant a conjecture as to its position. I believe that the house was included within the ramparts of the fortification, as I perceive in some of the old records that the fortification itself was called the Mattapony House, which was once beleaguered and taken by Captain John Coode and Colonel Jowles.

After we had examined all that was to be seen here, our next point of interest was a graveyard, which, we had been informed by some of the household at Mrs. Carroll's, had been preserved upon the estate from a very early period. Our old gossip professed to know all about this, from its very first establishment. It was in another direction from the mansion-house, about a mile distant, on the margin of an inlet from the Bay, called Harper's Creek; and thither we accordingly went. Before we reached the spot, the old negro stopped at a cabin that lay in our route and provided himself with a hoe, which, borne upon his shoulder, gave a somewhat mysterious significance to the office he had assumed. He did not explain the purpose of this equipment to us, and we forbore to question him. After descending to the level of the tide and passing through some thickets of wild shrubbery, we arrived upon a grassy plain immediately upon the border of the creek; and there, in a quiet, sequestered nook of rural landscape, the smooth and sluggish little inlet begirt with waterlilies and reflecting wood and sky and the green hill-side upon its surface, was the chosen resting-place of the departed generations of the family. A few simple tombstones--some of them darkened by the touch of Time--lay clustered within an old inclosure. The brief memorials engraved upon them told us how inveterately Death had pursued his ancient vocation and gathered in his relentless tribute from young and old in times past as he does to-day.

Here was a theme for a sermon from the patriarch, who now leaned upon his hoe and shook his head with a slow ruminative motion, as if he hoped by this action to disengage from it some profound moral reflections, and then began to enumerate how many of these good people he had helped to bury; but before he had well begun this discourse we had turned away and were about leaving the place, when he recalled us by saying, "I have got one tombstone yet to show you, as soon as I can clear it off with the hoe: it



belongs to old Master Rousby, who was stobbed aboard ship, and is, besides that, the grandest tombstone here."

Here was another of those flashes of light by which my story seemed to be preordained to a prosperous end. We eagerly encouraged the old man to this task, and he went to work in removing the green sod from a large slab which had been entirely hidden under the soil, and in a brief space revealed to us a tombstone fully six feet long, upon which we were able to read, in plainly chiselled letters, an inscription surmounted by a carved heraldic shield with its proper quarterings and devices.

Our group at this moment would have made a fine artistic study. There was this quiet landscape around us garnished with the beauty of May; there were the rustic tombs,--the old negro, with a countenance surcharged with the expression of solemn satisfaction at his employment, bending his aged figure over the broad, carved stone, and scraping from it the grass which had not been disturbed perhaps for a quarter of a century; and there was our own party looking on with eager interest, as the inscription every moment became more legible. That interest may be imagined, on reading the inscription, which, when brought to the full light of day, revealed these words:--

"Here lyeth the body of Xph'r Rousbie Esquire, who was taken out of this world by a violent death received on board his Majesty's ship The Quaker Ketch, Capt. Tho's. Allen Commander, the last day of October 1684. And also of Mr. John Rousbie, his brother, who departed this naturall life on board the Ship Baltimore, being arrived in Patuxen the first day of February 1685."

This was a picturesque incident in its scenic character, but a still more engaging one as an occurrence in the path of discovery. Here was most unexpectedly brought to view a new link in the chain of our story. It was a pleasant surprise to have such a fact as this breaking upon us from an ambuscade, to help out a half-formed narrative which I had feared was hopeless of completion. The inscription is a necessary supplement to the marginal notes. As an insulated monument, it is meagre in its detail, and stands in need of explanation. It does not describe Christopher Rousby as the Collector of the Customs; it does not affirm that he was murdered; it

makes no allusion to Talbot: but it gives the name of the ship and its commander, along with the date of the death. "The Landholder's Assistant" supplies all the facts that are wanting in this brief statement. These two memorials help each other and enlarge the common current of testimony, like two confluent streams coming from opposite sources. From the two together we learn, that Colonel Talbot, the Surveyor- General in 1684, killed Mr. Christopher Rousby on board of a ship of war; and we are apprised that Rousby was a gentleman of rank and authority in the Province, holding an important commission from the King. The place at which the tomb is found shows also that he was the owner of a considerable landed estate and a near neighbor of the Lord Proprietary.

The story, however, requires much more circumstance to give it the interest which we hope yet to find in it.

## CHAPTER IV.

### DRYASDUST.

I have now to change my scene, and to pursue in another quarter more important investigations. I break off with some regret from my visit to St. Mary's, because it had many attractions of its own, which would form a pleasant theme for description. Some of the results of that visit I embodied, several years ago, in a fiction which I fear the world will hardly credit me in saying has as much history in it as invention.\* But my journey had no further connection with the particular subject before us, after the discovery of the tomb. I therefore take my leave, at this juncture, of good Father Carberry and St. Inigoes, and also of my companion in this adventure,--pausing but a moment to say, that the Superior of St. Inigoes has, some time since, gone to his account, and that I am not willing to part with him in my narrative without a grateful recognition of the esteem I have for his memory, in which I share with all who were acquainted with him,--an esteem won by the simple, unostentatious merit of his character, his liberal religious sentiment, and his frank and cordial hospitality, which had the best flavor of the good old housekeeping of St. Mary's,--a commendation which

every one conversant with that section of Maryland will understand to imply what the Irish schoolmaster, in one of Carleton's tales, calls "the hoighth of good living."

*\*Rob of the Bowl.*

After my return from this excursion, I resolved to make a search amongst the records at Annapolis, to ascertain whether any memorials existed which might furnish further information in regard to the events to which I had now got a clue. And here comes in a morsel of official history which will excuse a short digression.

The Legislature had, about this time, directed the Executive to cause a search through the government buildings, with a view to the discovery of old state papers and manuscripts, which, having been consigned, time out of mind, to neglect and oblivion, were known only as heaps of promiscuous lumber, strewed over the floors of damp cellars and unfrequented garrets. The careless and unappreciative spirit of the proper guardians of our archives in past years had suffered many precious folios and separate papers to be disposed of as mere rubbish; and the not less culpable and incurious indolence of their successors, in our own times, had treated them with equal indifference. The attention of the Legislature was awakened to the importance of this investigation by Mr. David Ridgely, the State Librarian, and he was appointed by the Executive to undertake the labor. Never did beagle pursue the chase with more steady foot than did this eager and laudable champion of the ancient fame of the State his chosen duty. He rummaged old cuddies, closets, vaults, and cocklofts, and pried into every recess of the Chancery, the Land Office, the Committee-Rooms, and the Council- Chamber, searching up-stairs and down-stairs, wherever a truant paper was supposed to lurk. Groping with lantern in hand and body bent, he made his way through narrow passages, startling the rats from their fastnesses, where they had been intrenched for half a century, and breaking down the thick drapery--the Gobelin tapestry I might call it--woven by successive families of spiders from the days of the last Lord Proprietary. The very dust which was kicked up in Annapolis, as the old newspapers tell us, at the passage of the Stamp Act, was once more set in motion by the foot of this resolute and unwearied invader, and everywhere something was found to reward the toil of the search. But the most valuable discoveries

were made in the old Treasury,--made, alas! too late for the full fruition of the Librarian's labor. The Treasury, one of the most venerable structures in the State, is that lowly and quaint little edifice of brick which the visitor never fails to notice within the inclosure of the State- House grounds. It was originally designed for the accommodation of the Governor and his Council, and for the sessions of the Upper House of the Provincial Legislature; the Burgesses, at that time, holding their meetings in the old State House, which occupied the site of the present more imposing and capacious building: this latter having been erected about the year 1772.

In some dark recess of the Treasury Office Mr. Ridgely struck upon a mine of wealth, in a mouldy wooden box, which was found to contain many missing Journals of the Provincial Council, some of which bore date as far back as 1666. It was a sad disappointment to him, when his eye was greeted with the sight of these folios, to see them crumble, like the famed Dead-Sea Apples, into powder, upon every attempt, to handle them. The form of the books was preserved and the character of the writing distinctly legible, but, from the effect of moisture, the paper had lost its cohesion, and fell to pieces at every effort to turn a leaf. I was myself a witness to this tantalizing deception, and, with the Librarian, read enough to show the date and character of the perishing record.

Through this accident, the Council Journals of a most interesting period, embracing several years between 1666 and 1692, were irretrievably lost. Others sustained less damage, and were partially preserved. Some few survived in good condition.

Our Maryland historians have had frequent occasion to complain of the deficiency of material for the illustration of several epochs in the Provincial existence, owing to the loss of official records. No research has supplied the means of describing the public events of these intervals, beyond some few inferences, which are only sufficient to show that these silent periods were marked by incidents of important interest. The most striking of these privations occurs towards the end of the seventeenth century,--precisely that period to which the crumbling folios had reference.

This loss of the records has been ascribed to their frequent removals during periods of trouble, and to the havoc made in the rage of parties. The

Province, like the great world from which it was so far remote, was distracted with what are sometimes called religious quarrels, but what I prefer to describe as exceedingly irreligious quarrels, carried on by men professing to be Christians, and generated in the heat of disputes concerning the word of the great Teacher of "peace on earth." Out of these grew any quantity of rebellion and war, tintured with their usual flavor of persecution. For at this era the wars of Christendom were chiefly waged in support of dogmas and creeds, and took a savage hue from the fury of religious bigotry. The wars of Europe since that period have arisen upon commercial and political questions, and religion has been freed from the dishonor of promoting these bloody strifes so incompatible with its high office. In these quarrels of the fathers of Maryland, the archives of government were seized more than once, and, perhaps, destroyed. On one occasion they were burnt. And so, amongst all these disorders, it has fallen out that the full development of the State history has been rendered impossible.

Mr. Ridgely's foray, however, into this domain of dust and darkness has happily rescued much useful matter to aid the future chronicler in supplying the deficiency of past attempts to trace the path of our modest annals through these silent intervals. Incidentally the Librarian's work has assisted my story; for, although the recovered folios did not touch the exact year of my search, the pursuit of them led me to what I may claim as a discovery of my own. I found what I could not say was wholly lost, but what, until Mr. Ridgely's exploration drew attention to the records, might have been said to have shrunk from all notice of the present generation, and to be fast falling a prey to the tooth of time and the visit of the worm. A few years more of neglect and the ill usage of careless custodians, and it would have passed to that depository of things lost upon the earth, which fable has placed in the moon. It was my good fortune, in this upturning of relics of the past, to lay my hand upon a sadly tattered and decayed MS. volume,--unbound, without beginning and without end, coated with the dust which had been gathering upon it ever since Chalmers and Bozman had done their work of deciphering its quaint old text. It lay in the state of rubbish, in an old case, where many documents of the same kind had been consigned to the same oblivion, and with it had been sleeping for as many years, perhaps, as the

Beauty in the fairy tale,--happily destined, at last, to be awakened, as she was, by one who by his perseverance had won a title to herself.

This manuscript was now, in this day of revival, brought out from its hiding- place, and, upon inspection, proved to be a Journal of the Council for some few years including the very date of the death of the Collector on the Patuxent.

The record was complete, neatly written in the peculiar manuscript character of that age, so difficult for a modern reader to decipher. Its queer old- fashioned spelling suggested the idea that our ancestors considered both consonants and vowels too weak to stand alone, and that therefore they doubled them as often as they could; and there was such an actual identification of its antiquity in its exterior aspect as well as in its forms of speech, that, when I have sat poring over it alone at midnight in my study, as I have often done, I have turned my eye over my shoulder, expecting to see the apparition of Master John Llewellyn--who subscribes his name with a very energetic flourish as Clerk of the Council--standing behind me in grave-colored doublet and trunk-hose, with a starched ruff, a wide-awake hat drawn over his brow, and a short black feather falling amongst the locks of his dark hair towards his back.

This Journal lets in a blaze of light upon the old tradition of Talbot's Cave. The narrative of what it discloses it is now my purpose to make as brief as is compatible with common justice to my subject.

## **CHAPTER V.**

### **A FRAGMENT OF HISTORY.**

Charles Calvert, Lord Baltimore, the son of Cecilius, was, according to the testimony of all our annalists, a worthy gentleman and an upright ruler. He was governor of Maryland, by the appointment of his father, from 1662 to 1675, and after that became the Lord Proprietary by inheritance, and administered the public affairs in person. His prudence and judgment won

him the esteem of the best portion of his people, and the Province prospered in his hands.

All our histories tell of the troubles that beset the closing years of his residence in Maryland. They arose partly out of his religion, and in part out of the jealousy of the crown concerning the privileges of his charter.

He was a Roman Catholic; but, like his father, liberal and tolerant in opinion, and free from sectarian bias in the administration of his government. Apart from the influence of his father's example, the training of his education, his real attachment to the interests of the Province, and his own natural inclination,--all of which pointed out to him the duty as well as the advantage of affording the utmost security to the freedom of religious opinion,--the conditions under which he held his proprietary rights rendered a departure from this policy the most improbable accusation that could be made against him. The public mind of England at that period was fevered to a state of madness by the domestic quarrel that raged within the kingdom against the Catholics. The people were distracted with constant alarms of Popish plots for the overthrow of the government. The King, a heartless profligate, absorbed in frivolous pleasures, scarcely entertained any grave question of state affairs that had not some connection with his hatreds and his fears of Catholics and Dissenters. Then, also, the Province itself was composed, in far the greater part, of a Protestant population,--computed by some contemporary writers at the proportion of thirty to one,--a population who were guaranteed freedom of conscience by the Charter, and who possessed all necessary power both legal and physical to enforce it.

Under such circumstances as these, how is it possible to impute designs against the old established toleration, which had marked the history of Maryland from its first settlement to that day, to so prudent and careful a ruler as Charles Calvert, without imputing to him, at the same time, a folly so absurd as to belie every opinion that has ever been uttered to his advantage?

Yet, notwithstanding these improbabilities, the accusation was made and affected to be believed by the King and his Council; the result of which was that a royal order was sent to the Proprietary, commanding him to dismiss

every Catholic from employment in the Province, and to supply their places by the appointment of Protestants.

The most plausible theory upon which I can account for this harsh proceeding is suggested by the fact that parties in the Province took the same complexion with those in the mother country and ran parallel with them,--that the same excitements which agitated the minds of the people in England were industriously fomented here, where no similar reason for them existed, as the volunteer work of demagogues who saw in them the means of promoting their own interest,--that, in fact, this opposition to the Proprietary grew out of a failing in our ancestors which has not yet been cured in their descendants, a weakness in favor of the loaves and fishes. The party in the majority carried the elections, and felt, of course, as all parties do who perform such an exploit, that they had made a very gigantic sacrifice for the good of the country and deserved to be remunerated for such an act of heroism, and thereupon set up and asserted that venerable doctrine which has been erroneously and somewhat vaingloriously claimed as the conception of a modern statesman, namely,--"that to the victors belong the spoils." I rejoice in the discovery that a dogma so profound and so convenient has the sanction of antiquity to commend it to the platform of the patriots of our own time.

I must in a few words notice another charge against Lord Baltimore, which was even more serious than the first, and to which the cupidity of the King lent a willing ear. Parliament had passed an act for levying certain duties on the trade of the Southern Colonies, which were very oppressive to the commerce of Maryland. These duties were gathered by Collectors specially appointed for the occasion, who held their commissions from the Crown, and who were stationed at the several ports of entry of the Province. The frequent evasion of these duties gave rise to much ill-will between the Collectors and the people. Lord Baltimore was charged with having connived at these evasions, and with obstructing the collection of the royal revenue. His chief accusers were the Collectors, who, being Crown officers, seemed naturally to array themselves against him. Although there was really no foundation for this complaint, yet the King, who never threw away a chance to replenish his purse, compelled the Proprietary to pay by way of retribution a large sum into the Exchequer.



I have no need to dwell upon this subject, and have referred to it only because it explains the relation between Lord Baltimore and Christopher Rousby, and has therefore some connection with my story. Rousby was an enemy to the Proprietary; and from a letter preserved by Chalmers it appears there was no love lost between them. Lord Baltimore writes to the Earl of Anglesey, the President of the King's Council, in 1681,--"I have already written twice to your Lordship about Christopher Rousby, who I desired might be removed from his place of Collector of his Majesty's Customs,--he having been a great knave, and a disturber of the trade and peace of the Province"; which letter, it seems, had no effect,--as Christopher Rousby was continued in his post. He was doubtless emboldened by the failure of this remonstrance against him to exhibit his ill- will towards the Proprietary in more open and more vexatious modes of annoyance.

All these embarrassments threw a heavy shadow over the latter years of Lord Baltimore's life, and now drove him to the necessity of making a visit to England for the purpose of personal explanation and defence before the King. He accordingly took his departure in the month of June, 1684, intending to return in a few months; but a tide of misfortune that now set in upon him prevented that wish, and he never saw Maryland again.

In about half a year after Calvert's arrival in England, King Charles the Second was gathered to his fathers, and his brother, the Duke of York, a worse man, a greater hypocrite, and a more crafty despot, reigned in his stead.

James the Second was a Roman Catholic, and Calvert, on that score alone, might have expected some sympathy and favor: he might, at least, have expected justice. But James was heartless and selfish. The Proprietary found nothing but cold neglect, and a contemptible jealousy of the prerogatives and power conferred by his charter. James himself claimed to be a proprietary on this continent by virtue of extensive royal grants, and was directly interested with William Penn in defeating the claims of the Baltimore family to the country upon the Delaware; he was, therefore, in fact, the secret and prepossessed enemy of Calvert. Instead of protection from the Crown, Calvert found proceedings instituted in the King's Bench to annul his charter, which, but for the abrupt termination of this short,

disgraceful reign in abdication and flight, would have been consummated under James's own direction. The Revolution of 1688 brought up other influences more hostile still to the Proprietary; and the Province, which was always sedulous to follow the fashions of London, was not behindhand on this occasion, but made, also, its revolution, in imitation of the great one. The end of all was the utter subversion of the Charter, and a new government of Maryland under a royal commission. How this was accomplished our historians are not able to tell. From 1688 to 1692 is one of our dark intervals of which I have spoken. It begins with a domestic revolution and ends with the appointment of a Royal Governor, and that is pretty nearly all we know about it. After this, there was no Proprietary dominion in Maryland, until it was restored upon the accession of George the First in 1715, when it reappears in the second Charles Calvert, a minor, the grandson of the late Proprietary. This gentleman was the son of Benedict Leonard Calvert, and was educated in the Protestant faith, which his father had adopted as more consonant with the prosperity of the family and the hopes of the Province.

Before Lord Baltimore took his departure, he made all necessary arrangements for the administration of the government during his absence. The chief authority he invested in his son Benedict Leonard, to whom I referred just now,--at that time a youth of twelve or fourteen years of age. My old record contains the commission issued on this occasion, which is of the most stately and royal breadth of phrase, and occupies paper enough to make a deed for the route of the Pacific Railroad. In this document "our dearly beloved son Benedict Leonard Calvert" is ordained and appointed to be "Lieutenant General, Chief Captain, Chief Governor and Commander, Chief Admiral both by sea and land, of our Province of Maryland, and of all our Islands, Territories, and Dominions whatsoever, and of all and singular our Castles, Forts, Fortresses, Fortifications, Munitions, Ships, and Navies in our said Province, Islands, Territories, and Dominions aforesaid."

I hope to be excused for the particularity of my quotation of this young gentleman's titles, which I have given at full length only by way of demonstration of the magnificence of our old Palatine Province of Maryland, and to excite in the present generation a becoming pride at having fallen heirs to such a principality; albeit Benedict Leonard's more

recent successors to these princely prerogatives may have reason to complain of that relentless spirit of democracy which has shorn them of so many worshipful honors. But we republicans are philosophical, and can make sacrifices with a good grace.

As it was quite impossible for this young Lieutenant General to go alone under such a staggering weight of dignities, the same commission puts him in leading-strings by the appointment of nine Deputy or Lieutenant Governors who are charged with the execution of all his duties. The first-named of these deputies is "our dearly beloved Cousin," Colonel George Talbot, who is associated with "our well-beloved Counsellor," Thomas Tailler, Colonel Vincent Low, Colonel Henry Darnall, Colonel William Digges, Colonel William Stevens, Colonel William Burgess, Major Nicholas Sewall, and John Darnall, Esquire. These same gentlemen, with Edward Pye and Thomas Truman, are also commissioned to be of the Privy Council, "for and in relation to all matters of State."

These appointments being made and other matters disposed of, Charles Calvert took leave of his beautiful and favorite Maryland, never to see this fair land again.

## **CHAPTER VI.**

### **A BORDER CHIEFTAIN.**

I have now to pursue the narrative of my story as I find the necessary material in the old Council Journal. I shall not incumber this narrative with literal extracts from these proceedings, but give the substance of what I find there, with such illustration as I have been able to glean from other sources.

Colonel George Talbot, whom we recognize as the first-named in the commission of the nine Deputy Governors and of the Privy Council, seems to have been a special favorite of the Proprietary. He was the grandson of the first Baron of Baltimore, the Secretary of State of James the First. His father was an Irish baronet, Sir George Talbot, of Cartown in Kildare, who

had married Grace, one of the younger sisters of Cecilius, the second Proprietary and father of Charles Calvert. He was, therefore, as the commission describes him, the cousin of Lord Baltimore, who had now invested him with a leading authority in the administration of the government. He was born in Ireland, and from some facts connected with his history I infer that he did not emigrate to Maryland until after his marriage, his wife being an Irish lady.

That he was a man of consideration in the Province, with large experience in its affairs, is shown by the character of the employments that were intrusted to him. He had been, for some years before the departure of Lord Baltimore on his visit to England, a conspicuous member of his Council. He had, for an equal length of time, held the post of Surveyor-General, an office of high responsibility and trust. But his chief employment was of a military nature, in which his discretion, courage, and conduct were in constant requisition. He had the chief command, with the title and commission of Deputy Governor, over the northern border of the Province, a region continually exposed to the inroads of the fierce and warlike tribe of the "Sasqueshannocks."

The country lying between the Susquehanna and the Delaware, that which now coincides with parts of Harford and Cecil Counties in Maryland and the upper portion of the State of Delaware, was known in those days as New Ireland, and was chiefly settled by emigrants from the old kingdom whose name it bore. This region was included within the range of Talbot's command, and was gradually increasing in population and in farms and houses scattered over a line of some seventy or eighty miles from east to west, and slowly encroaching upon the thick wilderness to the north, where surly savages lurked and watched the advance of the white man with jealous anger.

The tenants of this tract held their lands under the Proprietary grants, coupled with a condition, imposed as much by their own necessities as by the law, to render active service in the defence of the frontier as a local militia. They were accordingly organized on a military establishment, and kept in a state of continual preparation to repel the unwelcome visits of their hostile neighbors.

A dispute between Lord Baltimore and William Penn, founded upon the claim of the former to a portion of the territory bounding on the Delaware, had given occasion to border feuds, which had imposed upon our Proprietary the necessity of building and maintaining a fort on Christiana Creek, near the present city of Wilmington; and there were also some few block-houses or smaller fortified strongholds along the line of settlement towards the Susquehanna.

These forts were garrisoned by a small force of musketeers maintained by the government. The Province was also at the charge of a regiment of cavalry, of which Talbot was the Colonel, and parts of which were assigned to the defence of this frontier.

If we add to these a corps of rangers, who were specially employed in watching and arresting all trespassers upon the territory of the Province, it will complete our sketch of the military organization of the frontier over which Talbot had the chief command. The whole or any portion of this force could be assembled in a few hours to meet the emergencies of the time. Signals were established for the muster of the border. Beacon fires on the hills, the blowing of horns, and the despatch of runners were familiar to the tenants, and often called the ploughman away from the furrow to the appointed gathering-place. Three musket-shots fired in succession from a lonely cabin, at dead of night, awakened the sleeper in the next homestead; the three shots, repeated from house to house, across this silent waste of forest and field, carried the alarm onward; and before break of day a hundred stout yeomen, armed with cutlass and carbine, were on foot to check and punish the stealthy foray of the Sasquesahannock against the barred and bolted dwellings where mothers rocked their children to sleep, confident in the protection of this organized and effective system of defence.

In this region Talbot himself held a manor which was called New Connaught, and here he had his family mansion, and kept hospitality in rude woodland state, as a man of rank and command, with his retainers and friends gathered around him. This establishment was seated on Elk River, and was, doubtless, a fortified position. I picture to my mind a capacious dwelling-house built of logs from the surrounding forest; its ample hall

furnished with implements of war, pikes, carbines, and basket-hilted swords, mingled with antlers of the buck, skins of wild animals, plumage of birds, and other trophies of the hunter's craft; the large fireplace surrounded with hardy woodsmen, and the tables furnished with venison, wild fowl, and fish, the common luxuries of the region, in that prodigal profusion to which our forefathers were accustomed, and which their descendants still regard as the essential condition of hearty and honest housekeeping. This mansion I fancy surrounded by a spacious picketed rampart, presenting its bristling points to the four quarters of the compass, and accessible only through a gateway of ponderous timber studded thick with nails: the whole offering defiance to the grim savage who might chance to prowl within the frown of its midnight shadow.

Here Talbot spent the greater portion of the year with his wife and children. Here he had his yacht or shallop on the river, and often skimmed this beautiful expanse of water in pursuit of its abundant game,--those hawks of which tradition preserves the memory his companions and auxiliaries in this pastime. Here, too, he had his hounds and other hunting-dogs to beat up the game for which the banks of Elk River are yet famous.

This sylvan lodge was cheered and refined by the presence of his wife and children, whose daily household occupations were assisted by numerous servants chosen from the warm-hearted people who had left their own Green Isle to find a home in this wilderness.

Amidst such scenes and the duties of her station we may suppose that Mrs. Talbot, a lady who could not but have relinquished many comforts in her native land for this rude life of the forest, found sufficient resource to quell the regrets of many fond memories of the home and friends she had left behind, and to reconcile her to the fortunes of her husband, to whom, as we shall see, she was devoted with an ardor that no hardship or danger could abate.

Being the dispenser of her husband's hospitality,--the bread-giver, in the old Saxon phrase,--the frequent companion of his pastime, and the bountiful friend, not only of the families whose cottages threw up their smoke within view of her dwelling, but of all who came and went on the occasions of business or pleasure in the common intercourse of the frontier, we may

conceive the sentiment of respect and attachment she inspired in this insulated district, and the service she was thus enabled to command.

This is but a fancy picture, it is true, of the home of Talbot, which, for want of authentic elements of description, I am forced to draw. It is suggested by the few scattered glimpses we get in the records of his position and circumstances, and may, I think, be received at least as near the truth in its general aspect and characteristic features.

He was undoubtedly a bold, enterprising man,--impetuous, passionate, and harsh, as the incidents of his story show. He was, most probably, a soldier trained to the profession, and may have served abroad, as nearly all gentlemen of that period were accustomed to do. That he was an ardent and uncompromising partisan of the Proprietary in the dissensions of the Province seems to be evident. I suppose him, also, to have been warm-hearted, proud in spirit, and hasty in temper,--a man to be loved or hated by friend or foe with equal intensity. It is material to add to this sketch of him, that he was a Roman Catholic,--as we have record proof that all the Deputy Governors named in the recent commission were, I believe, without exception,--and that he was doubtless imbued with the dislike and indignation which naturally fired the gentlemen of his faith against those who were supposed to be plotting the overthrow of the Proprietary government, by exciting religious prejudice against the Baltimore family.

[To be continued.]

# HUNTING A PASS

## A SKETCH OF TROPICAL ADVENTURE.

[Continued.]

### CHAPTER II.

On the 18th of April, having collected such information bearing on our purposes as it was possible to obtain, we left La Union, and fairly commenced the business of "Hunting a Pass." To reach the valley of the Goascoran, on the extent and character of which so much depended, it was necessary to go round the head of the Bay of La Union. For several miles our route coincided with that of the *camino real* to San Miguel, and we rode along it gayly, in high and hopeful spirits. The morning was clear and bright, the air cool and exhilarating, and the very sense of existence was itself a luxury. At the end of four miles we struck off from the high road, at right angles, into a narrow path, which conducted us over low grounds, three miles farther, to the Rio Sirama, a small stream, scarcely twenty feet across, the name of which is often erroneously changed in the maps for that of Goascoran or Rio San Miguel. Beyond this stream the path runs over low hills, which, however, subside into plains near the bay, where the low grounds are covered with water at high tide. The natives avail themselves of this circumstance, as did the Indians before them, for the manufacture of salt. They inclose considerable areas with little dikes of mud, leaving openings for the entrance of the water, which are closed as the tide falls. The water thus retained is rapidly evaporated under a tropical sun, leaving the mud crusted over with salt. This is then scraped up, dissolved in water, and strained to separate the impurities, and the saturated brine reduced in earthen pots, set in long ranges of stone and clay. The pots are constantly replenished, until they are filled with a solid mass of salt; they are then removed bodily, packed in dry plantain-leaves, and sent to market on the backs of mules. Sometimes the pots are broken off, to lighten the load, and great piles of their fragments--miniature *Monti testacci*--are seen around the



*Salinas*, as these works are called, where they will remain long after this rude system of salt-manufacture shall be supplanted by a better, as a puzzle for fledgling antiquaries.

Six miles beyond the Rio Sirama we came to another stream, called the Siramita or Little Sirama, for the reason, probably, as H. suggested, that it is four times as large as the Sirama. It flows through a bed twenty feet deep and upwards of two hundred feet wide, paved with water-worn stones, ragged with frayed fragments of trees, and affording abundant evidence that during the season of rains it is a rough and powerful torrent. Between this stream and the Goascoran there is a maze of barren hills, relieved by occasional level reaches, covered with acacias and deciduous trees. Through these the road winds in easy gradients, and there are numerous passes perfectly feasible for a railway, in case it should ever be deemed advisable to carry one around the head of the bay to La Union.

The traveller emerges suddenly from among these hills into the valley of the Goascoran, and finds the river a broad and gentle stream flowing at his feet. At the time of our passage, the water at the ford was nowhere more than two feet deep, with gravelly bottom and high and firm banks, without traces of overflow. We had now passed the threshold of the unknown region on which we were venturing, and although we had a moral conviction that the valley before us afforded the requisite facilities for the enterprise which we had in hand, yet it was not without a deep feeling of satisfaction, almost of exultation, that, on riding to the summit of a bare knoll close by, we traced the course of the river, in a graceful curve, along the foot of the green hills on our left, and saw that it soon resumed its general direction north and south, on the precise line most favorable for our purposes. In the distance, rising alone in the very centre of the valley, we discerned the castellated Rock of Goascoran, behind which, we were told, nestled the village of Goascoran, where we intended passing the night. We had taken its bearings from the top of Conchagua, and were glad to find that the intervening country was level and open, chiefly savanna, or covered with scattered trees. There was no need of instrumentation here, and so, ordering Dolores to bring up the baggage as rapidly as possible, we struck across the plain in a right line, in total disregard of roads or pathways, for the Rock of Goascoran. A smart gallop of two hours brought us to its foot, and in a few

minutes after we entered the village, and rode straight to the *Cabildo*, or House of the Municipality, tied our mules to the columns of the corridor, pushed open the door, and made ourselves at home.

And here I may mention that the *Cabildo*, throughout Honduras, is the stranger's refuge. Its door is never locked, and every traveller, high or low, rich or poor, has a right to enter it unquestioned, and "make it his hotel" for the time being. Its accommodations, it is true, are seldom extensive and never sumptuous. They rarely consist of more than one or two hide-covered chairs, a rickety table, and two or three long benches placed against the wall, with a *tinaja* or jar for water in the corner, and possibly a clay oven or rude contrivance for cooking under the back corridor. In all the more important villages, which enjoy the luxury of a local court, the end of the *Cabildo* is usually fenced off with wooden bars, as a prison. Occasionally the traveller finds it occupied by some poor devil of a prisoner, with his feet confined in stocks, to prevent his digging a hole through the mud walls or kicking down his prison-bars, who exhibits his ribs to prove that he is "*muy flaco*," (very thin,) and solicits, in the name of the Virgin and all the *Santos*, "*algo para comer*" (something to eat).

In most of the *cabildos* there is suspended a rude drum, made by drawing a raw hide over the end of a section of a hollow tree, which is primarily used to call together the municipal wisdom of the place, whenever occasion requires, and secondarily by the traveller, who beats on it as a signal to the *alguazils*, whose duty it is to repair at once to the *Cabildo* and supply the stranger with what he requires, if obtainable in the town, at the rates there current. Not an unwise, nor yet an unnecessary regulation this, in a country where nobody thinks of producing more than is just necessary for his wants, and, having no need of money, one does not care to sell, lest his scanty store should run short, and he be compelled to go to work or purchase from his neighbors.

The people of Goascoran stared at us as we rode through their streets, but none came near us until after we had vigorously pounded the magical drum, when the *alguazils* made their appearance, followed by all the urchins of the place, and by a crowd of lean and hungry curs,--the latter evidently in watery-mouthed anticipation of obtaining from the strangers, what they

seldom got at home, a stray crust or a marrow-bone. We informed our *alguazils* that we had mules coming, and wanted *sacate* for them. To which they responded,--

"*No hay.*" (There is none.)

"Then let us have some maize."

"*Tampoco.*"

"What! no maize? What do you make your *tortillas* of?"

"We have no *tortillas*."

"How, then, do you live?"

"We don't live."

"But we must have something for our animals; they can't be allowed to starve."

To which our *alguazil* made no reply, but looked at us vacantly.

"Do you hear? we *must* have some *sacate* or some maize for the animals."

Still no reply,--only the same vacuous look,--now more stolid, if possible, than before.

I had observed that the *Teniente's* wrath was rising, and that an explosion was imminent. But I must confess that I was not a little startled, when, drawing his bowie-knife from his belt, he strode slowly up to our impassible friend, and, firmly grasping his right ear, applied the cold edge of the steel close to his head. The supplementary *alguazil* and the rabble of children took to their heels in affright, followed by the dogs, who seemed to sympathize in their alarm. But, beyond a slight wincing downwards, and a partial contraction of his eyes and lips, the object of the *Teniente's* wrath made no movement, nor uttered a word of expostulation. He evidently expected to lose his ears, and probably was surprised at nothing except the pause in the operation. My own apprehensions were only for an instant; but,

had they been more serious than they were, they must have given way before the extreme ludicrousness of the group. I burst into a roar of laughter, in which the *Teniente* could not resist joining, but which seemed to be incomprehensible to the *alguazil*, whose face assumed an expression which I can only describe as that of astonished inanity. I don't think he is quite certain, to this day, that the incident was not altogether an ugly dream. At any rate, he lost no time in obeying my order to go straight to the first *alcalde* of the village, and tell him that he was wanted at the *Cabildo*.

Reassured by seeing the *alguazil* come out alive, the *muchachos* returned, greatly reinforced, edging up to the open door timidly, ready to retreat on our slightest movement. We had not long to wait for the first *alcalde*, of whose approach we were warned by a sudden scramble of curs and children, who made a broad lane for his passage. Evidently, our *alcalde* was a man of might in Goascoran, and he established an immediate hold on our hearts by stopping on the corridor and clearing it of its promiscuous occupants by liberal applications of his official cane. He was a man of fifty, burly in person, and wore his shirt outside of his trousers, but, altogether, carried himself with an air of authority. He was prompt in speech, and, although evidently much surprised to find a party of foreigners in the *Cabildo*, rapidly followed up his salutation by putting himself and the town and all the people in it "at the disposition of our Worships."

I explained to him how it was that he had been sent for, placing due emphasis on the stupidity of the *alguazil*. He heard me without interruption, keeping, however, one eye on the *alguazil*, and handling his cane nervously. By the time I had finished, the cane fairly quivered; and the delinquent himself, who had scarcely flinched under the *Teniente's* knife, was now uneasily stealing away towards the door. Our *alcalde* saw the movement, and, with a hurried bow, and "*Con permiso, Caballeros*" (With your permission, gentlemen,) started after the fugitive, who was saluted with "*Que bestia!*" (What a beast!) and a staggering blow over his shoulders. He hurried his pace, but the *alcalde's* cane followed close, and with vigorous application, half-way across the *plaza*. And when the *alcalde* returned, out of breath, but full of apologies, he received a welcome such as could be inspired only by a profound faith in his ability and willingness to secure for us not merely *sacate* and maize, but everything else that we might desire.

We told him that he was a model officer and a man after our own hearts, all of which he listened to with dignified modesty, wiping the perspiration from his face, meanwhile, with--well, with the tail of his shirt!

The *alcalde* was very hard on his constituency, and, from all that we could gather, he seemed to regard them collectively as "*bestias*," and "*hombres sin vergüenza*" (men without shame). We concurred with him, and regretted that he had not a wider and more elevated official sphere, and gave him, withal, a *trago* of brandy, which he seemed greatly to relish, and then again approached the subject of *sacate* for our mules. To our astonishment, the *alcalde* suddenly grew grave, and interrupted me with--

"*Pero, no hay, Señor.*" (But there is none, Sir.)

"Well, maize will answer."

"*Tampoco.*"

"What! no maize? What do you make your *tortillas* of?"

"We have no *tortillas*."

"How, then, do you live?"

"We don't live."

A general shout of laughter greeted this last reply, in which, after a moment of puzzled hesitation, the *alcalde* himself joined.

"So, you don't live?"

"Absolutely, no!"

"But you eat?"

"Very little. We are very poor."

"Well, what do you eat?"

"Cheese, *frijoles*, and an egg now and then."

"But, no *tortillas*?"

"No. We planted the last kernel of maize two days ago." And so it was. The little stock of dried grass and maize-stalks stored up from the present rainy season had long ago been consumed, and the maize itself, which is here the real staff of life, had run short,--and that, too, in a country where three crops a year might easily be produced by a very moderate expenditure of labor in the way of tillage and irrigation.

Fortunately for our poor animals, Dolores had provided against contingencies like this, and taken in a supply of maize at La Union. As for ourselves, what with a few eggs and *frijoles*, furnished by the *alcalde*, in addition to the stock of edibles, pickled oysters and other luxuries, prepared for us by Doña Maria, we contrived to fare right sumptuously in Goascoran. We afterwards found out, experimentally, what it was not to live, in the sense intended to be conveyed by the unfortunate *alguazil* and the impetuous *alcalde*, and which H. declared logically meant to be without *tortillas*--But we could never make out why the *alcalde* should call the *alguazil* "a beast," and beat him over his shoulders with a cane, withal.

Goascoran is a small town, of about four hundred inhabitants, and boasts a tolerably genteel church and a comfortable *cabildo*. It is situated on the left bank of the river to which it gives its name, and which here still maintains its character of a broad and beautiful stream. On the opposite side from the town rises a high, picturesque bluff, at the foot of which the river gathers its waters in deep, dark pools with mirror-like surfaces, disturbed only by the splash of fishes springing at their prey, or by the sudden dash of water-fowls settling from their arrowy flight in a little cloud of spray.

I have alluded to the castellated Rock of Goascoran, which, however, is only a type of the general features of the surrounding country. The prevailing rock is sandstone, and it is broken up in fantastic peaks, or great cubical blocks with flat tops and vertical walls, resembling the mesas of New Mexico. At night, their dark masses, rising on every hand, might be mistaken for frowning fortresses or massive strongholds of the Middle Ages. They seem to mark the line where the volcanic forces which raised

the high islands in the Bay of Fonseca had their first conflict with the sedimentary and primitive rocks of the interior. The river is full of boulders of quartz and granite reddened by fire, resembling jasper, and alternating with worn blocks of lava,--further evidences of volcanic action. Altogether, the country, in its natural aspects, reminds the traveller of the district lying between Pompeii and Sorrento, in Italy, and probably owes its essential features to the same causes.

From Goascoran to Aramacina, a distance of twelve miles, the road traverses a slightly broken country, while the river pursues its course, as before, through a picturesque valley, narrowed in places by outlying *mesas*, but still regular, and throughout perfectly feasible for a railway. Aramacina itself is prettily situated, in a bend of one of the tributaries of the Goascoran, the Rio Aramacina, and numbers perhaps three hundred inhabitants. Immediately in front rises a broad sandstone table or *mesa*, at the foot of which there are some trickling springs of salt water, much frequented by cattle, and corresponding to the *saltlicks* of our Western States.

Behind the town is a high spur of the mountain range of Lepaterique, covered with pines, and veined with silver-bearing quartz. We visited the abandoned mines of Marqueliso and Potosí, but the shafts were filled with water, and only faint traces remained of the ancient establishments. Extravagant traditions are current of the wealth of these mines, and of the amounts of treasure which were taken from them in the days of the Viceroy. A few specimens of the refuse ore, which we picked up at the mouth of the principal shaft, proved, on analysis, to be exceedingly rich, and gave some color to the local traditions.

The *cabildo* of Aramacina was very much dilapidated, and promised us but poor protection against the rain, which now began to fall every night with the greatest regularity. We nevertheless selected the corner where the roof appeared soundest, and managed to pass the night without a serious wetting. The evening was enlivened by visits from all the leading inhabitants, whom we found to be far more communicative than their neighbors of Goascoran. Our most entertaining visitor, however, was a "countryman," as he styled himself, a negro by the name of John Robinson, born in New York, and now

a magnate in Aramacina, where he had resided for upwards of sixteen years. Although he had fallen into the habits of the native population, and wore neither shirt nor shoes, he entertained for them a superlative contempt, which he expressed in a strange jumble of bad English and worse Spanish. He had been with Perry on Lake Erie, and afterwards on board various vessels of war, in some capacity which he did not explain with great clearness, but which he evidently intended should be understood as but little lower than that of commander. A glass of brandy made him eloquent, and he took a position in the middle of the *cabildo*, and gave us an oration on the people of Honduras, in a style singularly grotesque and demonstrative. In broken and scarcely intelligible English,--for he had nearly forgotten the language of his youth,--he denounced them as "thieves and liars," and then asked them, "Is it not true?" Imagining, doubtless, that he was declaiming their praises, the enthusiastic assemblage responded, "*Sí! sí!*" (Yes! yes!) Not a crime so gross, nor a trait of character so degraded, but he laid it to their charge, receiving always the same vehement response, "*Sí! Sí!*"

We got rid of our *paisano* with difficulty, and only under a promise to visit his *chacra*, somewhere in the vicinity, next morning. But we saw no more of him,--not much to our regret; for John Robinson, I fear, was sadly addicted to brandy, of which our supply was far too small to admit of honoring many such drafts as he had made the preceding evening.

One and a half miles to the southeast of Aramacina is a ledge of sandstone rock, with a smooth vertical face, which is covered over with figures, deeply cut in outline. This ledge forms one side of a rural amphitheatre overlooking the adjacent valley, and is by nature a spot likely to be selected as a "sacred place" by the Indians. It faces towards the west, and from all parts of the amphitheatre, which may have answered the purposes of a temple, the morning sun would appear to rise directly over the rock. The engravings in some places are much defaced or worn by time, so that they cannot be made out; but generally they are deep and distinct,--so deep, indeed, that I used those which run horizontally as steps whereby to climb up the face of the ledge. I should say that they were two and a half inches deep. A portion had been effaced by a rude quarry which the people of Aramacina had opened here to obtain stone for their church.



Some of the figures are easily recognizable as those of men and animals, while others appear entirely arbitrary, or designed simply for ornament. Enough can be clearly made out to show the affiliation of the engravers with the ancient Mexican families of Nicaragua and San Salvador. The space covered by these inscriptions is about one hundred feet long, by twelve or fifteen in height. A quarter of a mile to the southward are other smaller rocks with figures, too much defaced, however, to be traced satisfactorily. Vases of curious workmanship, human bones in considerable quantities, and other relics and remains, it is said, may be discovered by digging in the earth anywhere within the natural amphitheatre to which I have referred. This is another circumstance going to favor the belief that this was anciently a place of great sanctity; for it is a universal custom among all nations to bury their dead in the neighborhood of shrines and temples.

Although the immediate district in which these aboriginal traces are found does not seem to have fallen within the region occupied by the Nahuatt or Mexican tribes of Central America at the time of the Conquest, but in what was called the country of the Chontals, yet it is not difficult to suppose, that, in the various hostile encounters which we know took place between the two nations, the Nahuatts may have penetrated as far as Aramacina, and left here some record of their visit,--if, indeed, they did not succeed in effecting a temporary lodgment. At any rate, there can be but little doubt that a portion of the engravings on the rocks above described, but particularly those which seem to record dates, were made by them.

From Aramacina to Caridad, the next town on our course, and four leagues distant, the road is laid out on Spanish principles, which are the very reverse of scientific. Instead of keeping along the river-valley, it passes directly over a high, rocky spur of the lateral mountains, through a pass called *El Portillo*, (The Portal,) elevated fifteen hundred feet above the sea. The view from its summit, whence we were enabled to trace our course up to this point, as if on a map, in some degree compensated us for the labor of the ascent. From here we could also look ahead, beyond the town of Caridad; and we saw, with some misgivings, that there the lateral ranges of mountains seemed to send down their spurs boldly to the river, leaving only what the Spaniards call a *canon* or narrow gorge, walled in with precipitous

rocks, for its passage. A shadow came over every face, in view of the possible obstacles in our path; and although we tried to reassure ourselves by the reflection, that, where so large a stream could pass, there must certainly be room enough for a road, yet, it must be confessed, we wound down the hill of El Portillo to Caridad with spirits much depressed. Moreover, a drizzling rain set in before we reached the village, and clouds and vapor settled down gloomily on the surrounding hills and mountains, rendering us altogether more dismal than we had been since leaving New York. We rode up to the *cabildo* of Caridad in silence, and fortunately found it new, neat, and comfortable, with cover for our mules, ample facilities for cooking, and an abundance of dry wood for a fire, now rendered necessary to comfort by the damp, and the proximity of high mountains. Fortunately, also, we experienced no difficulty in getting fodder for our animals and food for ourselves,--a bright-eyed Señora, wife of the principal *alcalde*, volunteering to send us freshly baked and crisp *tortillas*, which were brought to us hot, in the folds of the whitest of napkins. After dinner and coffee, and under the genial influences of a fire of the pitch-pine, which gave us both light and heat, our spirits returned, and we did not refuse a hearty laugh, when H. read from a dingy paper, which he found sticking on the wall of the *cabildo*, the report of the day's transactions on the Caridad Exchange, "marked by a great and sudden decline in railway shares, caused by the timidity of holders, and by an equally sudden reaction, occasioned by two dozen of soft-boiled eggs and a peck of *tortillas*."

Caridad is a neat little town, of about three hundred inhabitants, situated on a level plateau nearly surrounded by high mountains,--the valley of the river, both above and below, being reduced to its narrowest limits. To the northeastward of the town, and on a shelf of the Lepaterique Mountains, which rise abruptly in that direction, and are covered with pine forests to their summits, is distinctly visible the Indian town of Lauterique,--its position indicating clearly that it had been selected with reference to defensive purposes. We had seen its white church from El Portillo, looking like a point of silver on the dark green slope of the mountain.

Rain fell heavily during the night; but the morning broke bright and clear. The increased roar of the river, however, made known to us that it was greatly swollen, and when we walked down to its brink we found it a rapid

and angry torrent, with its volume of water more than double that of the previous day. This was not an encouraging circumstance; for we had learned, that, if we intended following up the stream, instead of making a grand *détour* over the mountains, it would be necessary to ford the river, about a mile above the town. All advised us against attempting the passage. "*Mañana*," (Tomorrow,) they said, would do as well, and we had better wait. Meanwhile the waters would subside. Nobody had ever attempted the passage after such a storm; and the river was "*muy bravo*" (very angry). I have said that all advised us against moving; but I should except the second *alcalde*, who had taken a great fancy to us, and wanted to enter our service. His dignity did not rebel at the position of *arriero* or muleteer; any place would suit him, so that we would agree to take him finally to "El Norte,"--for such is the universal designation of the United States among the people of Central America. He shared in none of the fears of his townsmen, and told them, that, fortunately, all the world was not as timid as themselves, and wound up by volunteering to accompany us and get us across. We gladly accepted his offer, and started out with the least possible delay. I need not say that we made rather an anxious party. The unpromising observations of the preceding day, and the possibilities of the mountains' closing down on the river so as to forbid a passage, were uppermost in every mind; but all sought to hide their real feelings under an affectation of cheerfulness, not to say of absolute gayety. As we advanced, and rounded the hills which shut in the little *plateau* of Caridad on the north, we saw that the high lateral mountains sent down their rocky spurs towards each other like huge buttresses, lapping by, and, so far as the eye could discern, forming a complete and insurmountable barrier. Over the brow of one of these, a zigzag streak of white marked the line of the mule-path. Our guide traced it out to us with his finger, and assured us that it traversed a bad *portillo*, over which the wind sometimes sweeps with such force as to take a loaded mule off his feet, and dash him down the steep sides of the mountain. Half a mile of level ground still intervened between us and the apparent limit of our advance, and we trotted over it in silence, pulling up on the abrupt bank of the deep trough of the river, which foamed and chafed among the great boulders in its bed, and against its rocky shores, nearly a hundred feet below us. A break-neck path wound down to a little sandpit; and on the opposite side of the stream another path wound up, in like manner, to a narrow *plateau*, on which stood a single hut, with its

surroundings of plantain-trees and maize-fields. I looked anxiously up the stream, but a sudden bend, a few hundred yards above, shut off the view; and there the flinty buttresses of the mountain rose sheer and frowning, perpendicularly from the water's edge.

The eyes of the Lieutenant had followed mine, and we exchanged a glance which expressed as plainly as words, that, unless the mountain-spur which projected into the bend of the river should prove sufficiently narrow to be tunnelled, or should fall off so as to admit of a side-cutting in the rock, our project might be regarded as at an end. To determine that point was our next and most important step. Down the steep descent, scrambling amongst rocks and bushes, where it seemed a goat would hardly dare to venture,-- down we plunged to the water's edge. Here the stream was not less than a hundred yards broad, flowing over a rocky bed full of rolling stones and boulders, with a velocity which it seemed impossible for man or beast to stem. But our *alcalde* was equal to the emergency.

Stripping himself naked, he took a long pole shod with iron, which seemed to be kept here for the purpose, and started out boldly into the stream, for the purpose of making a preliminary survey of the line of passage. Planting his pole firmly down the stream, so as to support himself against the current, he cautiously advanced, step by step, "prospecting" the bottom with his feet, so as to ascertain the shallowest ford, and that freest from rocks and stones. Sometimes he slipped into deep holes and disappeared beneath the surface, but he always recovered himself, and went on with his work with the greatest deliberation and composure. After crossing and recrossing the river in this manner three or four times, he succeeded in fixing on a serpentine line, where the water, except for a few yards near the opposite bank, was only up to his shoulders, and which he pronounced "*muy factible*" (very feasible).

"But, *amigo*" exclaimed H., in an excited tone, "you forget that you are six feet high, and that I am but five feet five!"

"*No hay cuidado!*" (Have no care!) was the reassuring reply of the *alcalde*, as he slapped his broad chest with his open palm; "*soy responsable!*" (I am responsible!)

The mules were now unsaddled, and the trunks taken over, one by one, on the *alcalde's* head. Next, the animals were forced into the water, and, after vehement flounderings, now swimming, now stumbling over rolling stones, they were finally, bruised and bleeding and the forlornest of animals, got across in safety. Next came our turn, and I led the way, with a thong fastened around my body below the armpits, and attached, in like manner, to our stalwart *alcalde*. Long before we reached the middle of the stream, notwithstanding I carried a large stone under each arm by way of ballast, I was swept from my feet out to the length of my tether, and thus towed over by our guide. When all were snugly across, the laughter was loud and long over the ridiculous figure which everybody had cut in everybody's eyes, except his own. H. immortalized the transit in what the French call *un croquis*, but it would hardly bear reproduction in the pages of a narrative so staid as this.

Intent on determining, with the least possible delay, the important question, whether the mountains really opposed an insurmountable obstacle to our project, I left my companions and Dolores to resaddle and get under way at their leisure, and pushed ahead with the *alcalde*. Striking off from the mule-path, we climbed up, among loose rocks and dwarf-trees and bushes, to the top of the mountain. My excitement gave me unwonted vigor, and my sturdy guide, streaming with perspiration long before we reached the summit, prayed me, "in the name of all the saints," to moderate my rate of speed, and give him a *trago* of Cognac. My suspense was not of long duration; for, on reaching the crest of the eminence, I found that we were indeed on a narrow spur, easily tunnelled, or readily turned by galleries in the rock, and that, beyond, the country opened out again in a broad table-land sloping gently from the north, and traversed nearly in its centre by the gorge of the river. The break in the Cordilleras was now distinct, and I could look quite through it, and see the blue peaks of the mountains on the Atlantic slope of the continent. A single glance sufficed to disclose all this to my eager vision, and the next instant six rapid shots from my revolver conveyed the intelligence to my companions, who were toiling up the narrow mule-path, half a mile to my right. The *Teniente* dismounted, evidently with the intention of joining us, but soon got back again into his saddle,--having experienced, as H. explained, "a sudden recurrence of palpitation." Rejoining my companions, I dismissed our guide with a

reward which surprised him, and we pursued our way to the *Portillo*. This name is given to the point where the path, after winding up the side of the mountain half-way to its summit, suddenly turns round its brow, and commences its descent. It is a narrow shelf, in some places scarcely more than a foot wide, rudely worked in the living rock, which falls off below in a steep and almost precipitous descent to the river; and although it did not quite realize the idea we had formed of it from the description of our guide, it was sufficiently pokerish to inspire the most daring mountaineer with caution. At any rate, most of our party dismounted, preferring to lead their mules around the point to having their heads turned in riding past it. Exposed to the full force of the winds, which are drawn through this river-valley as through a funnel, and with a foothold so narrow, it was easy to believe that neither man nor beast could pass here during the season of the northers, except at great risk of being dashed down the declivity.

A little beyond the *Portillo*, the road diverges from the valley proper of the river, and is carried over an undulating country to the village of San Antonio del Norte, finely situated on a grassy plain, of considerable extent, a dependency of the valley of the Goascoran. We had intended stopping here for the night; but the *cabildo* was already filled with a motley crowd of *arrieros* and others on their way to San Miguel. A tall *mestizo*, covered with ulcers, sat in the doorway, and two or three culprits extended their claw-like hands towards us through the bars of their cage and invoked alms in the name of the Virgin and all things sacred. We therefore contented ourselves with a lunch under the corridor of a neighboring house, and, notwithstanding it was late in the afternoon, pressed forward towards the little Indian town of San Juan, three leagues distant.

It was a long and rough and weary way, and as night fell without any sign of a village in front, we began to have a painful suspicion that we had lost our road,--if a narrow mule-path, often scarcely traceable, can be dignified by that name. So we stopped short, to allow a man on foot, whom we had observed following on our track for half an hour, to come up. He proved to be a bright-eyed, good-natured Indian, who addressed us as "*Vuestras Mercedes*," and who informed us not only that we were on the right road to San Juan, but also that he himself belonged there and was now on his way home.

"Good, *amigo!* --but how far is it?"

"*Hay no mas*" (There is no more,) was the consoling response.

"But where is the town?"

"*Allá!*" (There!)

And he threw his hand forward, and projected his lips in the direction he sought to indicate,--a mode of indication, I may add, almost universal in Central America, and explicable only on the assumption that it costs less effort than to raise the hand.

Our new friend was communicative, and told us that he had been all the way to Caridad to bring a priest to San Juan, "*para hacer cosas de familia*," (to attend to family affairs,) which he explained as meaning "to marry, baptize, and catechize." The people of San Juan, he added, were too poor to keep a priest of their own; they couldn't pay enough; and, moreover, their women were all old and ugly. And he indulged in a knowing wink and chuckle.

Meantime we had kept on our course, and it had become quite dark; still there was no sign of the village,--not even the flicker of lights or the barking of dogs.

"What did the fellow say about the distance?" inquired H., angrily.

"That there was no more distance."

"Ask him again; he couldn't have understood you."

"*Amigo*, where is your village? You said just now that it was close by."

"*Hay no masita, Señor!*"

"What's that?"

"He says that the distance was nothing before, and is still less now!"

"Bah! he's a fool!" Half an hour later, which to H.'s indignant imagination seemed an age, we reached the top of a high ridge, and saw the first glimmer of the lights of the village, on the farther edge of a broad plain, a mile and a half distant.

"*Estamos aquí!*" (Here we are!) exclaimed our guide, triumphantly.

Our mules pricked forward their ears at the welcome sight, and we trotted briskly over the plain, and, as usual, straight to the *cabildo*,--a newly constructed edifice of canes plastered with mud, but, for a tropical country, suffering under the slight defect of having no windows or aperture for ventilation besides the door. The drum brought us the most attentive of *alguazils*, and we fared by no means badly in San Juan; that is to say, we had plenty of milk and eggs.

When supper was over, H. lighted a pine splinter, and put on record his "Observations on the Standard of Measurement in Honduras," which I am allowed to copy for the information of travellers.

"Distances here are computed by what may be called Long Measure. League is a vague term, and, like  $x$  in an algebraic equation, stands for an unknown quantity. It may mean ten miles, more or less,--any distance, in fact, over five miles. The unit of measure, as fixed by law, is *estamos aquí*, (here we are,) which is a mile and a half; *hay no masita* (a little less than nothing) is five miles; *hay no mas* (there is no more) is ten miles; and *muy cerca* (very near) is a hard day's journey. As regards spirituous liquors, a *trago* of brandy, or 'a drink,' is whatever may be in the bottle, be the same large or small, and the quantity more or less."

San Juan is insignificant in point of size, but its population seems to be well to do in the world, in the relative sense in which that term is to be interpreted in Central America. Here we found that the river forks,--the principal branch, however, which retains the name of Goascoran, still preserving its general course north and south. The smaller branch, called Rio de San Juan, descends from high mountains to the westward, having its rise, we were told, near the secluded Indian *pueblos* of Similaton and Oporoto. We found the elevation of San Juan to be nine hundred feet above the sea,--an altitude sufficiently great, combined with the proximity of the



Cordilleras, to give it a generally cool and delightful climate. The change in temperature from that of the sea-coast, however, is less marked than the change in scenery and vegetation. It is true, we find the ever-graceful palm, the orange, plantain, and other tropical fruit-trees; but the country is no longer loaded down with forests. It spreads out before the traveller in a succession of swelling hills and level savannas, clothed with grass, and clumped over with pines, and miniature parks of deciduous trees, sufficiently open to permit cattle and horsemen to roam freely in every direction. During the dry season, however, this open region becomes dry and parched, and the traveller passing over it then would be apt to pronounce the whole country sterile and without cultivation. But in little lateral valleys and coves among the mountains, sheltered from the sun, and watered by springs or running streams, there are many plantations of sugarcane, maize, rice, and other standard products of the tropics, of unsurpassed luxuriance. We sometimes came on these green places unexpectedly, far away from any habitation, and all the more gem-like and beautiful from their rough setting of sere savanna and rugged mountain.

We left San Juan early in the morning, crossing to the left bank of the river, still a noble stream, a hundred and fifty feet broad, and pure as crystal. A government *tambo*, or *rancho*, opposite the town, on the bank, indicated that even here the river was sometimes unfordable. Hence the construction of this public shelter for travellers obliged to wait for the subsidence of the waters. These government *ranchos* are common on all the roads, in the less populous parts of the country, or where the towns are widely separated, and are the refuge of the wayfarer benighted or overtaken by a storm in his journey. They seldom consist of more than four forked posts planted in the ground, supporting a roof of *paja* or thatch. Occasionally one or two sides are wattled up with canes, or closed with poles placed closely together. They are usually built where some spring or stream furnishes a supply of water, and where there is an open patch of pasturage; and although they afford nothing beyond shelter, they are always welcome retreats to the weary or belated traveller. For one, I generally preferred stopping in them to passing the night in the little villages, where the *cabildos* are often dirty and infested with fleas, and where a horrible concert is kept up by the lean and mangy curs which throughout Central America disgrace the respectable name of dog. In fact, a large part of the romance and many of the

pleasantest recollections of our adventures in Honduras are connected with these rude shelters, and with the long nights which we passed in them, far away in dark valleys, or on mountain-crests, but always amongst Nature's deepest solitudes.

After crossing the river, our path, with the perversity of all Spanish roads, instead of following up the valley of the stream, diverged widely to the right through a cluster or knot of hills, in which we were involved until we reached a rapid stream called Rio Guanupalapa, flowing through a narrow gorge, over a wild mass of stones and boulders. Here we breakfasted, picturesquely enough, and, resuming our course, soon emerged from the hilly labyrinth on a series of terraces, falling off like steps to the river on our left. They had been burned over, and the young grass was sprouting up, under the freshening influence of the early rain, in a carpet of translucent green. At a distance of four leagues from San Juan, after descending from terrace to terrace, we again reached the river, now flowing through a valley three hundred yards broad, and about fifty feet below the general level of the adjacent *plateau*. Here we found another fork in the stream: the principal body of water descending, as before, from the right, and called Rio Rancho Grande; the smaller stream, on the left, bearing the name of Rio Chaguiton; and the two forming the Rio Goascoran. Half a mile beyond the ford is a collection of three or four huts, called Rancho Grande. Here we stopped to determine our position. We were now at the foot of the "divide," and close to the pass, if such existed, of which we were in search. Immediately in front rose a high peak, destitute of trees, which the people called *El Volcan*. It had deep breaks or valleys on either side, evidently those of the streams to which I have alluded. Outside of these, the mountains, six or eight thousand feet in height, swept round in a majestic curve. Were there, then, two passes through the Cordilleras, separated by the conical peak of El Volcan? or did the great valley of the Goascoran divide here, only to waste itself away in narrow gorges, leaving a summit too high to be traversed except by mountain mules?

Strange to say, the occupants of the huts at Rancho Grande could give us no information on these points, but to all our inquiries only answered, "*Quien sabe?*" (Who knows?)--and pointed out to us the line of the mule-path, winding over the intervening hills and along the flank of El Volcan. Up to

this time we had had comparatively small experience, and did not quite understand, what we afterwards came to know too well, that a Spanish road is perfect only when it runs over the highest and roughest ground that by any possibility may be selected between two given points.

We did not waste much time with the people of Rancho Grande, but urged on our mules as rapidly as possible. Turning abruptly to the right and leaving the *plateau* behind us, we advanced straight up the high ridge intervening between the two valleys, and thence in a zigzag course to the foot of El Volcan, a mass of igneous rock, protruded through the horizontal sandstone strata,--the gradual recession of which gives to the country the terraced character to which I have so often alluded. Leaving our mules here, H. and myself clambered up amongst rough and angular rocks, strewn in wildest disorder, to the bare and rugged summit of El Volcan. From this commanding position the view was unobstructed all the way back to the Pacific. The whole valley of the river, and line of our *reconnaissance*, the *Portillo* of Caridad, the Rock of Goascoran, the Volcano of Conchagua, and the high islands of the Bay of Fonseca, were all included in the view. Rancho Grande and the fork of the river appeared at our feet; and on the right hand and the left, extending upwards in nearly parallel directions, were the deep valleys of the rivers Rancho Grande and Chaguiton,--that of the former clothed with pines, while that of the latter presented only a succession of savannas, with here and there a group of forest- trees. Our view to the northward, however, was obstructed by hills and forests, and our ascent of El Volcan failed to give us a view of the Pass, which we knew must now be near at hand. We descended, therefore, and resumed our course,-- anxiously, it is true, but with few of the serious misgivings which had beset us at Caridad.

The path wound around the base of El Volcan, on the level terrace or shelf from which it springs. As we advanced, we could distinctly perceive that the valley to our right rose gradually, with a gentle, but constant grade. At a distance of three miles it had nearly reached the level of the terrace along which we rode, and at the end of our fourth mile the terrace and the valley merged into each other, and the mule-path dipping into the waters of the stream, now reduced to a sparkling brook, resumed its direction on the opposite bank. We stopped here, in a natural park of tall pines, and lunched

beneath their shade, drinking only the cool, clear water which murmured among the mossy stones at our feet. We needed no artificial stimulus; our spirits were high and buoyant; we had almost traced the Goascoran to its source; half an hour more must bring us to its fountain-head,--and then? We knew not exactly what then; but one thing was certain, that nothing in the form of a hill or mountain obstructed our advance, for the light, reflected from a clear sky, streamed horizontally between the tree-trunks in front, while on either hand the vistas were dark, and the outlines of gigantic mountains could be discerned towering to mid- heaven.

Half a mile farther on, crossing in the interval a number of little tributary streams, we came where the pines were more scattered; they soon disappeared, and we emerged upon an open glade or natural meadow. A high mountain, dark with forests, rose on our right; on the left was a long range of grassy hills; but in front all was clear! A government *rancho*, built under the shade of a couple of tall fruit-trees, stood in the middle of the savanna, and on its farther edge were the cane buildings of a cattle-*hacienda*, just visible through the wealth of plantain-trees by which they were surrounded, while the cattle themselves were dotted over the intervening space, cropping the young grass, which here looked brighter and fresher than in the valley below. Impulsively my mule pricked her ears forward, and broke into a rapid trot. Soon she stepped across the stream, which we had followed to its birthplace, now reduced to a trickling rivulet stealing out from a spring, "an eye of water," (*ojo de agua*,) coyly hidden away under a clump of trees draped with evergreen vines at the foot of the neighboring hills. I knew that we were at the "summit"; the faint swell of the savanna, scarcely perceptible to the eye, which supported the government *rancho*, it was clear, was the highest point between the two great oceans, and the cool breeze which fanned our foreheads was the expiring breath of the trade-winds coming all the way from the Bay of Honduras! My mule halted at the *rancho*; I threw the bridle over her neck, and went forward on foot; but I had not proceeded a hundred paces before my attention was arrested by the cheerful murmur of another little stream, also descending from the foot of the mountain at our right,--but this time, after traversing half the width of the savanna, it turned away suddenly to the north, and with a merry dash and sparkling leap started off on its journey to the Atlantic! In that direction, however, a forest of tall pines still shut off the

view, and it was not until I reached the summit of one of the lateral hills that I could look over and beyond them. Then, for the first time, I saw the great plain of Comayagua, at a level some hundreds of feet below us, spreading away for a distance of forty miles, in a rich succession of savannas and cultivated grounds, dotted with villages, and intersected by dark waving lines of forest, marking the courses of the various streams that traverse it like the veins on an out-spread hand. At its northeastern extremity, its white walls now gleaming like silver in the sunlight, and anon subdued and distant under the shadow of a passing cloud, was the city of Comayagua, unmistakable, from its size, but especially from the imposing mass of its cathedral, as the principal town of the plain, and the capital of the Republic. Circling around this great plain, and, with the exception of only a narrow opening at its northern extremity, literally shutting it in like an amphitheatre, is a cincture of mountains, rising to the height of from three to six thousand feet,--a fitting frame-work for so grand a picture.

I returned slowly to the *rancho*, where my companions were preparing our encampment, and communicated to them the result of my observations. Singularly enough, there was no excitement; even H. forgot to inquire "what was the price of stock." But we took our dinner in calm satisfaction,--if four *tortillas*, three eggs, six onions, and a water-melon, the total results of Dolores's foraging expedition to the cattle-*hacienda*, equally divided between eight hungry men, can be called a dinner. We spent the evening, a good part of the night, and the next day until afternoon, in determining our position and altitude, and in various explorations in both directions from the summit. We found that we were distant seventy-eight miles in a right line from La Union, and (barometrically) 2958 feet above mean-tide in the Pacific. We afterwards ascertained that the hut in which we passed the night is called Rancho Chiquito, and that name was accordingly given to this summit, and to the Pass, as distinguished from another break through the mountains, to the westward, which we subsequently discovered and designated as the Pass of Guajoca.

After Rancho Chiquito, the first town which is reached in the plain of Comayagua, entering it from this direction, is Lamani,--a small village, it is true, but delightfully situated in an open meadow, relieved only by fruit-trees and the stems of the *nopal* or palmated cactus, which here grows to a

gigantic size, frequently reaching the height of twenty or thirty feet. The *cabildo* was in a state of extreme dilapidation, and we called on the first *alcalde* for better accommodations. He took us to the house of the *padre*, who was away from home, and installed us there. It was the best house in the place, whitewashed, and painted with figures of trees, men, animals, and birds, all in red ochre, and in a style of art truly archaic. The *padre's* two servants, an old woman and her boy, were the sole occupants of the establishment, and did not appear at all delighted to see us. According to their account, there was nothing in the house to eat; they had no *tortillas*, no eggs, no chickens, "*absolutamente nada*" (absolutely nothing). All this was affirmed with the greatest gravity, while a dozen fat fowls were distinctly visible through the open doorway, perched, for the night, among the bare limbs of the *jocote* trees in the court-yard. I pointed them out to the old woman, and, producing a handful of silver, told her that we were willing to pay for such as we required.

"*Pero no puedo venderles.*" (But I can't sell them.)

"Why?"

"*No puedo*"

Dolores meantime took a stick, knocked three of the finest from their perches, and quietly wrung their necks. I expected to see the old dame swoon away, or at least go off in a paroxysm of tears; but, instead of committing any such civilized folly, she silently took up her slaughtered innocents, dressed and cooked them, and thanked me profoundly for the *medio* each, which I handed her next morning. The lesson was not lost on us, in our subsequent travels; for we found it almost universal, that the lower classes are utterly indisposed to sell their domestic commodities. Their services may be purchased; but their chickens are above price. When, however, you have helped yourself, you are astonished to find how ridiculously small a sum will heal the wound you have made and atone for the loss you have inflicted.

From Lamani to Comayagua the road is direct, over a slightly undulating plain, subsiding gently to the north, and traversed nearly in its centre by the Rio Hanuya, fed by numerous tributaries falling from the mountains on

either hand. We forded it at a distance of ten miles from Lamani, and were surprised to find it already a large and deep stream, frequently impassable for days and weeks together, during the season of rains. Half a mile beyond the ford we came to the Villa de San Antonio, a considerable place, and, next to the capital itself and the town of Las Piedras, the largest in the plain. Here we stopped at the house of the first *alcalde*, who gave us a cordial reception, and an ample dinner, in a civilized fashion,--that is to say, we had veritable plates, and knives and forks withal.

In Central America, curiosity is unchecked by our conventional laws, and the traveller soon ceases to be surprised at any of its manifestations, however extraordinary. When, therefore, a couple of dozen spectators, of all ages and both sexes, invaded the house of our host, and huddled around us while eating, we were in no degree astonished, but continued our meal as if unconscious of their presence. One yellow dame, however, was determined not to be ignored, and insisted on speaking English, of which she had a vocabulary of four or five words, picked up in her intercourse with American sailors at the port of Truxillo. We were hungry, and did not much heed her; whereupon she disappeared, as if piqued, but soon returned with what she evidently regarded as an irresistible appeal to our interest, in the shape of a blue-eyed, flaxen-haired child, perhaps three years old, perfectly naked, but which she placed triumphantly on the table before us.

"*Mira estos caballeros! son paisanos tuyos, niño!*" (See these gentlemen, child! they are your countrymen!)

"Yes!" ejaculated the brat, to the infinite entertainment of the spectators, none of whom appeared to discover the slightest impropriety in the proceeding.

Of course, we had not come all the way to the Villa de San Antonio to set up our standard of what is moral or amusing; so we laughed also, and asked the mother to give us the history of the phenomenon. It was given without circumlocution; and we learned, in most direct phrase, that Captain ---- of -- --, who traded to Truxillo, was responsible for this early effort towards what H. called "the enlightenment of the country." So far from feeling ashamed of her *escapade* with the Captain, the mother gloried in it, and rather affected a social superiority over her less fortunate neighbors, in

consequence. It is, however, but right to say, that the freedom with which matters of this sort are talked about in Central America does not necessarily imply that the people at large are less virtuous than in other countries. *Honi soit qui mal y pense* is a motto universally acted on; legs are called legs; and even the most delicate relations and complaints are spoken of and discussed without the slightest attempt at concealment or periphrasis. It is no doubt true, that marriage is far from general among the middle and lower classes; and a woman may live with a man in open concubinage without serious detriment to her character or position, so long as she remains faithful to him.\* It is only when she becomes "light o' love" and indiscriminate in her conduct, that she is avoided and despised. And although the remark may sound strangely to American ears, I have no question that this left-hand compact, on the whole, is here quite as well kept as the vows which have secured the formal sanction of the law and the Church.

\* But few statistics relating to this subject are in existence; but those few quite bear out these observations. According to the official returns of the District of Amatitlan in Guatemala, the whole number of births in that Department for the year 1858 was 1394, of which 581 were illegitimate!

[To be continued.]



## THE "CATTLE" TO THE "POET."\*

How do *you* know what the cow may know,  
As under the tasselled bough she lies,  
When earth is a-beat with the life below,  
When the orient mornings redden and glow,  
When the silent butterflies come and go,--  
The dreamy cow with the Juno eyes?

How do *you* know that she may not know  
That the meadow all over is lettered, "Love,"  
Or hear the mystic syllable low  
In the grasses' growth and the waters' flow?  
How do *you* know that she may not know  
What the robin sings on the twig above?

\*See "The Poet's Friends," *Atlantic Monthly*,  
vol. v., p. 185.

## MORE WORDS ABOUT SHELLEY

There is a moral or a lesson to be found in the life of almost every man, the chief duty of a biographer being to set forth and illustrate this; and a history of the commonest individual, if written truly, could not fail to be interesting to his fellows; for the feelings and aspirations of men are pretty much alike all the world over, and the elements of genius not very unequally distributed through the mass of mankind,--the thing itself being a development due to circumstances, very probably, as much as to anything singular in the man. But there are few good biographies extant; the writers, for the most part, contenting themselves with superficial facts, refusing or unable to follow the mind and motive powers of the subject,--or following these imperfectly. For this reason, they who would read the truest kind of biographies must turn to those written by men of themselves,--that is, the autobiographies; and these are, in fact, found to be among the most attractive specimens of literature in our language, or any other.

The life of any man is more or less of a mystery to other men, and one who would write it effectively must have been intimate with him from his youth onward. When the biography is that of a man of genius, the difficulty is greatly increased, even to the writer who has been his life-long familiar; for genius, by the necessity of its being, implies a departure in a variety of ways from the thoughts and rules of that regulated existence which is most favorable to the progress and welfare of men in the mass,--at least, as these are generally understood. But if the life-long intimacy be wanting in this instance, the task of the writer is the most difficult of all, and almost always a failure,--save in some rare case, where the writer and his subject have been men of a similar stamp.

Few biographies are written by the life-intimates of the dead. In most instances they are composed as tasks or duties by comparative strangers; or if now and then by the friends or associates of the subject, these are very likely the observers of only a part of his life, the *seri studiorum* of his latter or middle career, and unacquainted with that period when the strong lines of character are formed and the mental tendencies fixed. Boswell's "Life of

Johnson" is considered one of the best performances of its kind in our language; but it is, after all, only half a biography, as it were. We have the pensioned and petted life of the rough and contemptuous man of genius,--whose great renown in English literature, by-the-by, is owing far more to that garrulous admirer of his than to his own works,--but we have little or nothing about those days of study or struggle when he taught and flogged little boys, or felt all the contumely excited by his shabby habiliments, or knocked down his publisher, or slept at night with a hungry stomach on a bulkhead in the company of the poor poet Savage. All the racier and stronger part of the man's history is slurred over. No doubt he would not encourage any prying into it, and neither cared to remember it himself nor wished others to do so. He had a sensitive horror of having his life written by an ignorant or unfriendly biographer, and even spoke of the justice of taking such a person's life by anticipation, as they tell us. Others, feeling a similar horror, and some of them conscious of the enmities they should leave behind them, have themselves written the obscurer portions of their own lives, like Hume, Gibbon, Gifford, Scott, Moore, Southey. These men must have felt, that, even at best, and with the fairest intentions, the task of the biographer is full of difficulties, and open to mistakes, uncertainties, and false conclusions without number.

The autobiographies are the best biographies. No doubt, self-love and some cowardly sensitiveness will operate on a man in speaking of his own doings; but all such drawbacks will still leave his narrative far more trustworthy, as regards the truth of character, than that of any other man: and this is more emphatically the case in proportion to the genius of the writer; for genius is naturally bold and true, the antipodes of anything like hypocrisy, and prone to speak out,--if it were but in defiance of hatred or misrepresentation, even though the better and more philosophic spirit were wanting. We should have better and more instructive autobiographies, if distinguished men were not deterred by the self-denying ordinance so generally accepted, that it is not becoming in any one to speak frankly of himself or his own convictions. We have no longer any of the strong, wayward egotists,--the St. Augustines, the Montaignes, the Rousseaus, the Mirabeaus, the Byrons; even the Cobbetts have died out. But the Carlyles and the Emersons preserve amongst us still the evidences of a stronger time.

There are two sorts of biographies, which may be described, in a rough way, as biographies of thought and biographies of action. It may not be a very difficult thing, perhaps, to write the life of a politician or a general, or even of a statesman or a great soldier. At any rate, the history of such a one is an easy matter, compared with that of a mere man of thought, of a man of genius. In the former case, we have the marked events, which are, as it were, the stepping-stones of biography,--events belonging to the narrative of the time,--and the individual receives a reflected light from many men and things. Dates and facts make the task of statement or commentary more easy to the writer, and his work more interesting to the general reader. But the case of the mere thinker, the man of inaction, whose sphere of achievement is for the most part a little room, and who produces his effects in a great measure in silence or solitude, is a very different one. The names of his publications, the dates of them, the number of them, the publisher's price for them, the critic's opinion of them, are meagre facts for the biographer; and if the man of genius be a man of quiet, sequestered life, the record of it will be only the more uninteresting to the reader. It is only when something painful has been suffered, something eccentric done and misunderstood and denounced or derided, that the biography rouses the languid interest of the public. Indeed, so imperfect and false are the plan and style of the literary biographies, that such opprobria are, as it were, necessary to them,--necessary stimulants of attention, and necessary shades of what would otherwise be a monotonous and ineffective picture; and thus the unlucky men of letters suffer posthumously for the stupidity of others as well as their faults or divergencies. When biographers have not facts, they are not unwilling to make use of fallacies: they set down "elephants for want of towns." Dean Swift is a case in point. Society has avenged itself by calumniating the man who spat upon its hypocrisies and rascalities; and to appease the wounded feelings of the world, he is attractively set down as a savage and a tyrant. Mr. Thackeray and others find such a verdict artistically suitable to their criticisms or their narratives, (a French author has written a romantic book about the Dean and Stella,) and so the man is still depicted and explained as the slayer of two poor innocent women, a sort of clerical Bluebeard, and the horrid ogre who proposed to kill and eat the fat Irish babies. Thackeray's plan of dissertation, indeed, was inconsistent with any displacing or disturbing of the preconceived notions; the success of it was, on the contrary, to be built upon the customary old

impressions of the subject. Everybody is pleased to find his own idea in Thackeray, liking it all the better for the graphic way in which it is set forth and illustrated; and the result shows the shrewd artistic judgment of the critic, who apparently (especially in the Dean's case) understands his readers rather better than his theme. As for Swift,--though a fair knowledge of the man may be gleaned from the several biographies of him that we have, his life has not yet been fairly written and interpreted; and we believe the same may be said of most literary men of genius.

It must certainly be said of Shelley,--and this brings us to the beginning of our remarks. Not one man in ten thousand would be capable of writing the life of that poet as it should be written,--even supposing the biographer were one of his intimate friends. Shelley went entirely away from the ranks of society,--farther away than Byron, and was a man harder to be understood by the generality of men. An autobiography of such a man was more needed than that of any other; but we could not expect an autobiography from Shelley. He felt nothing but pain and sorrow in the retrospect of his life, and, like Byron, shrank from the task of explaining the mixture of self-will, injustice, falsehood, and impetuous defiance that made up the greater part of his history; and when he died, he left everything at sixes and sevens, as regarded his place and acts in the world. Accordingly, until lately, no one ventured forward with a biography of the departed poet, who has been for more than a generation looked on, as it were, through the medium of two lights: one, that of his poetry, which represents him as the loftiest and gentlest of minds; and the other, the imperfect notices of his life, which show him forth a cruel, headstrong, and reckless outlaw,--hooted at, anathematized, (and by his own father first,) driven out, like a leper in the Middle Ages, and deprived of the care of his children. In his case, however, the tendency to dwell upon and bring out the darker traits of biography does not exhibit itself in any remarkable way; and, on the whole, Shelley's character wears a mild and retiring rather than a defiant or fiendish aspect. The world is inclined to make allowances for him, on account of his beautiful poetry; and this is something of the justice which, on other grounds also, is probably due to him. Still, nobody has come forward to write his biography as it should be written; and we are yet to seek for the illustrated moral of a sensitive, unaccommodating, and impulsive being, rebelling against the rules of life and the general philosophy of his fellow-

creatures, and shrinking with a shy, uncomprehended pride from the companionship of society. Shelley's disposition was a marked and rare one, but there is nothing of the riddle in it; for thousands, of his temperament, may always be found going strangely through the world, here and there, and the interpretation of such a character could be made extremely interesting, and even instructive, by any one capable of comprehending it.

After a considerable interval, some notices of Shelley have appeared, without, however, throwing much additional light on the wayward heart and pilgrimage of the poet. Mr. C.S. Middleton has published a book upon Shelley and his writings; Mr. T.J. Hogg has given a sketch of his life; and E.J. Trelawny some recollections of him, as well as of Byron. None of these pretends to explain that eccentric nature, or harmonize in any way his acts and his feelings; though a few things may be gathered that tend to make the biography somewhat more distinct than before, in some particulars. On the subject of his first unfortunate marriage, we are made aware that his wife was a self-willed, ill-taught young woman, who set her own father at defiance, and threw herself on the protection of such a wandering oddity as Percy Shelley. She was strong-minded, and brought with her into her husband's house her elder sister, also strong-minded, a ridiculous and insufferable duenna, whom Shelley hated with all his heart and soul, and wished dead and buried out of his sight,--finding, no doubt, his unsteady disposition controlled and thwarted by the voice and authority of his sister-in-law, who, knowing that her father furnished the young couple with their chief means of livelihood, would be all the more resolute in advising them or domineering over the migratory household. At last, these women grew tired of the moping and ineffectual youth who still remained poor and unsettled, with a father desperately healthy and inexorable, and all hope of the baronetcy very far off indeed; they grew tired of him and went away,--the wife, like Lady Byron, refusing to go back to such an aimless, rhapsodizing vagabond. With her natural decision of mind, aided and encouraged, very likely, by her astute relatives, she thought she saw good reasons for breaking and setting aside the contract which had united them; and no doubt the poor woman must have felt the hardship of living with such a melancholy outlaw. Having nothing in common with the devoted Emma, drawn in the ballad of "The Nut-brown Maid," she must have hated that wandering about from, place to place, living in lonely country-houses,

under perpetual terror of robbers in the night, and subsisting for the most part on potatoes and Platonism; and she must have especially hated the Latin Grammar. She naturally thought, that, when she was married, she should have nothing more to say to exercises and lessons; but she found a pedagogue in Shelley, and the honeymoon saw her "attacking Latin" for the purpose of construing the poet Horace. How she must have hated all poets! She had other ideas,--ideas of ease, respectability, baronetcy; and her disappointment was greater than she could bear. Mr. Hogg says, she had a propensity to strong courses, and would talk of suicide in a speculative way. It is not difficult to discover the truth of that unfortunate union and disunion. Shelley, betrayed by the impulses of his enthusiast nature and the ignorant and deplorable credulity of a bookworm, allowed himself to be imposed upon by a designing boarding-school girl and her relatives, and everything followed as a matter of course. The unhappy wife recklessly broke the bond which she had as recklessly formed, and which the poet would have honorably and truly respected all his life; and then her passionate regret reacted fatally on herself,--and on him also, by a Nemesis not so very strange or unnatural, as the world goes.\*

\*Since this article was written, Mr. Peacock, an early friend of Shelley, has published a very different estimate of the character of Harriet Shelley. See *Fraser's Magazine* for March, 1860.

The subject of Shelley's character is a delicate and a difficult one, and Mr. Hogg and Mr. Trelawny, especially, show their inability to understand it, by the way in which they put forward and dwell upon the poet's peculiarities. Trelawny, a hard-minded, thorough-paced man of the world, publishing garrulously in his old age what he was silent about in his better period, talks of the poet's oddity, awkwardness, and want of punctuality,--as if Percy were some clerkly man on 'Change; and Hogg, hilariously clever, says Shelley was so erratic, fragmentary, and unequal, that his character cannot be shown in any way but as the figures of a magic-lantern are shown on a wall,--Mr. Hogg's own style of description being the wall,--"O wall, O wall, O sweet and lovely wall!" He also tells us, to instance the poet's familiarity with the sex, a story of Shelley sitting with one of his lady friends and being plied with cups of tea by that fair sympathizer,--the poet talking and letting his saucer fall, and the lady wiping his perspiring face with a pocket-handkerchief. Such scraps of silly gossip are not biography; they may do for

tea-table chit-chat, but show very feebly in the place where one looks for something like a philosophical criticism on the mind of so extraordinary a man as Shelley.

Genius alone can do justice to genius; and kindred genius alone will do it. There have been, no doubt, a great many writers of biography who had no objection to compensate their feelings for bygone slights or discourtesies, suffered from some wayward or inattentive superiority, some stroke of ridicule or malice. Literary antipathies do not die with the dead. The posthumous impression of Margaret Fuller Ossoli has been colored by some who sneer at her ways and pretensions, because there was probably something in her manner which displeased them in a personal way. She had certainly a very awkward fashion of blinking her eyes, and also "a mountainous *me*." It is very probable poor Edgar Poe has had his faults exaggerated by those who suffered from the critical superiority of his intellect; since some of those notices of him which tend most to fix his character as a reprobate, and appear in a laggard way in the English periodicals, were probably written by some of his own countrymen. It was a painful consciousness of this literary revenge that made H.W. Herbert, in his last agony, call on his brother-penmen for mercy on his remains, and that induces many of our public men to bring out their own memoirs or encourage others to do so. It looks like vainglory, but it is not such. The memoirs show a mortal dread of calumny or misrepresentation. Mr. Barnum, for instance, was more just to himself than anybody else would be. He showed that his doings were only of a piece with those of thousands around him in society; and this not unreasonable extenuation is one that few of his critics are apt to make use of in commenting on him and his dexterities of living. As for Shelley, he might have shunned or slighted or overlooked Mr. Trelawny in some painful or preoccupied moment, or offended the robust man of the world by the mere delicate shyness of his look; he might also have puzzled and bewildered Mr. Hogg, being, perhaps, puzzled and bewildered himself, by some subtle mental speculation,--unconscious that for these things he was yet to be brought to judgment and turned into ridicule, for the coming generation, by these familiar men,--these drilled and pipe-clayed familiar men. He might have tossed up a paradox or two to keep the muscles of his mind in exercise on a cold day, and his rapid intellect may have run away from his hearer, trampling on the



conventions and platitudes in its course; but Mr. Hogg does not think he had fixed notions concerning anything. The poet did not nail his colors with a cheer to the mast of any of the great questions of the day, ethical or social, and therefore suffered the disparagements of those intelligent friends of his who have been taught to consider a well-defined rigidity of conviction and maintenance, in the midst of all these phenomena of our universe, telluric and uranological, as the test of everything valuable in human character and morals. And thus it has come about, that genius, with its native instincts of reason, truth, and common sense, is doomed to pay the penalty of its preëminence and its divergencies, and suffer at the hands of friends and enemies alike, from the show of those false appearances, insincerities, equivocations, which are its natural and proper antipathies.

Since the foregoing observations were written, the writer has seen a certain corroboration of them in the interesting "Memorials of Shelley," recently edited by Lady Shelley, and published by Ticknor and Fields. For, in the preface of this book, she takes occasion to speak of the misstatements of all those who have hitherto written on the subject of the poet, instancing the fallacies of Captain Medwin's book, and also, in an especial manner, though vaguely enough, the incorrectness, amounting to caricature, put forth by a later biographer, one of Shelley's oldest friends,--by which she evidently means to indicate Mr. Hogg. At the same time, the nature of her Ladyship's book is, involuntarily, an additional evidence of the difficulty that seems fated to attend all attempts to set forth or set right the character of Shelley. Indeed, she appears to be in some degree conscious of this; for she says, apologetically, that she has published the "Memorials" for the special purpose of neutralizing the misstatements and spirit of Mr. Hogg's work, and also lets us know that the time is not yet come for the publication of other and more important matter calculated to do justice to the character of Percy Bysshe Shelley.

It is only natural to think that Lady Shelley is not the person to write the biography of the poet, whose relationship to her is such a close one. She would far more willingly leave the events of his troubled life forever unremembered. Indeed, when we find, that, in her long widowhood of thirty years, Mrs. Shelley shrank from the task of writing the life of her husband, we can the more easily understand why any member of his family,

especially a lady, should be the most unfit to undertake the task. Nobody could expect Lady Shelley to enter into those painful explanations necessary to it. Accordingly, in the work before us, we do not find any light thrown on those places where a person would be most anxious to see it. Lady Shelley slurs over the undutiful boyhood of the poet and the terrible sternness of his Mirabeau-father. She merely glances across the first foolish marriage and the catastrophe that closed it, as a bird flies over an abyss. On such subjects she cannot set about contradicting anybody.

But it is an ungrateful task to go on speaking of short-comings in a case like this, where the hardest critic in the world must sympathize with the feelings of the author, whatever becomes of the book. And yet the book will be very welcome to every one who regards it as a feminine offering of tender admiration and grief laid upon the grave of departed genius. Though not exactly the sort of personal history one would wish for from another hand, it is still valuable, as furnishing very interesting matter for a future biography. We have in it several new letters of Shelley's, some letters of Godwin's, and others of Mrs. Shelley's, together with a number of touching extracts from the diary of the latter. There are also two papers from the poet's pen: one an "Address to Lord Ellenborough" in defence of a man punished for having published Paine's "Age of Reason," and another an "Essay on Christianity." In the first, with all a boy's enthusiasm, he opposes the high abstract logic of truth and toleration to the hard government policy which tries to keep a reckless kind of semi-civilization in order, and cannot bring itself to believe, that, as yet, the broad principle of license is the one that can serve the cosmogony best. In the next he rather surprises the reader by exhibiting himself as the eulogist and expounder of Jesus Christ,--but not after the manner of Saint Paul. No doubt, the secular and semi-pagan tone of this dissertation will jar against the orthodoxy of a great many readers,--to whom, however, it will be interesting as a literary curiosity. But it is meant to show the character of Shelley in a more amiable light than that in which it is contemplated by the generality of people.

To explain Percy Bysshe Shelley, by telling us he was inconsequent, absurd, and odd in his manners, is as futile as to explain him by saying he was a strange, wonderful genius, of the Platonic or Pythagorean order, always soaring above the atmosphere of common men. To call a man of genius an

inspired idiot or an inspired oddity is an easy, but false way of interpreting him. The truth of Shelley's character may be found by a more matter-of-fact investigation. He was naturally of a feeble constitution from childhood, and not addicted to the amusements of stronger boys; hence he became shy, and, when bullied or flouted by the others, sensitive and irritable, and given to secret reading and study, instead of play with those "little fiends that scoffed incessantly." These habits gave him the name of an oddity, and what is called a "Miss Molly," and the persecution that followed only made him more recluse and speculative, and disgusted with the ways and feelings of others. He began to have thoughts beyond his years, and was happy to think he had, in these, a compensation for what he suffered from his schoolfellows. With his hermit habits grew naturally a strong egotistical vanity, which he could as little repress as the other youths could repress their muscular propensities to exercise; and hence his eagerness to set forth the threadbare heretical theories he had found among his books. For supporting these with an insolent show of importunity, he was turned away from college, and soon left his father's home, with his father's curse to bear him company. Had the baronet been in the way of a *lettre de cachet*, like Mirabeau's father, he would certainly have had Percy put into Newgate and kept there.

The malediction of the old man seems to have clung to Shelley's mind to the end, and made him rebellious against everything bearing the paternal name. He assailed the Father of the Hebrew theocracy with amazing bitterness, and joined Prometheus in cursing and dethroning Zeus, the Olympian usurper. With him, tyrant and father were synonymous, and he has drawn the old Cenci, in the play of that name, with the same fierce, unfilial pencil, dipped in blood and wormwood. Shelley was by nature, self-instruction, and inexperience of life, impatient and full of impulse; and the sharp and violent measures by which they attempted to reclaim him only exasperated him the more against everything respected by his opponents and persecutors. Genius is by nature aggressive or retaliatory; and the young poet, writhing and laughing hysterically, like Demogorgon, returned the scorn of society with a scorn, the deeper and loftier in the end, that it grew calm and became the abiding principle of a philosophic life. It was the act of his father which drove Shelley into such open rebellion against gods and men. Very probably, though he might have lived an infidel in religious

matters, like tens of thousands of his fellows, he would not have written, or, at least, published, such shocking things, if his father had been more patient with a youth so organized. But parents have a right to show a terrible anger when thwarted by their children, and in this case the father too much resembled the son in wilful impetuosity of temper. Turned out of his first home, Shelley went wandering forth by land and sea,--a reed shaken by the wind, a restless outcast yearning for repose and human sympathy, and in this way encountering the questionable accidents of his troubled, unguarded life, and gathering all the feverish inspiration of his melancholy and unfamiliar poetry.

With a sense of physical infirmity or defect which shaped the sequestered philosophy of the Cowpers, the Bérangers, and others, the manlier minds of literature, including Byron himself, in some measure, Shelley felt he was not fit for the shock and hum of men and the greater or lesser legerdemain of life, and so turned shyly away to live and follow his plans and reveries apart, after the law of his being, violating in this way what may be called the common law of society, and meeting the fate of all nonconformists. He was slighted and ridiculed, and even suspected; for people in general, when they see a man go aside from the highway, maundering and talking to himself, think there must be a reason for it; they suppose him insane, or scornful, or meditating a murder,--in any case, one to be visited with hard thoughts; and thus baffled curiosity will grow uneasily into disgust, and into calumny, if not into some species of outrage,--and very naturally, after all; for man is, on the whole, made for society, and society has a sovereign right to take cognizance of him, his ways and his movements, as a matter of necessary *surveillance*.

The world will class men "in its coarse blacks and whites." Some mark Shelley with charcoal, others with chalk,--the former considering him a reprobate, the latter admiring him as a high-souled lover of human happiness and human liberty. But he was something of both together,--and would have been nothing without that worst part of him. He ran perversely counter to the lessons of his teachers, and acted in defiance of the regular opinions and habits of the world. He was too out-spoken, like all genius; whereas the world inculcates the high practical wisdom of a shut mouth and a secretive mind. Fontenelle, speaking according to the philosophy of the

crowd, says, "A wise man, with his fist full of truths, would open only his little finger." Shelley opened his whole hand, in a fearless, unhappy manner; and was accordingly punished for ideas which multitudes entertain in a quiet way, saying nothing, and living in the odor of respectable opinion. With a mind that recoiled from anything like falsehood and injustice, he wanted prudence. And as, in the belief of the matter-of-fact Romans, no divinity is absent, if *Prudentia* be present, so it still seems that everything is wanting to a man, if he wants that. Shelley denied the commonly received Divinity, as all the world knows,--an Atheist of the most unpardonable stamp,--and has suffered in consequence; his life being considered a life of folly and vagary, and his punishment still enduring, as we may perceive from the tone and philosophy of his biographers, or rather his critics, who, not being able to comprehend such a simple savage, present his character as an oddity and a wonder,--an *extravaganza* that cannot be understood without some wall of the world's pattern and plastering to show it up against.

It is, to be sure, much easier and safer to regard Shelley's career in this way than to justify it, since the customs and opinions of the great majority must, after all, be the law and rule of the world. Shelley's apologist would be a bold man. Whether he shall ever have one is a question. At all events, he has not had a biographer as yet. His widow shrank from the task. Of those familiar friends of his, we can say that "no man's thought keeps the roadway better than theirs," and all to show how futile is the attempt to measure such a man with the footrule of the conventions. Shelley was a mutineer on board ship, and a deserter from the ranks; and he must, therefore, wait for a biographer, as other denounced and daring geniuses have waited for their audience or their epitaph.

## CLARIAN'S PICTURE

### A LEGEND OF NASSAU HALL.

"Turbine raptus ingenii."--Scaliger

[concluded.]

The next morning there was queer talk about Clarian. Mac and I stared at each other when we heard it at breakfast, but still kept our own counsel in silence. Some late walkers had met him in the moonlight, crossing the campus at full speed, hatless, dripping wet, and flying like a ghost.

"I tell you," said our informant, a good enough fellow, and one not prone to be violently startled, "he scared me, as he flitted past. His eyes were like saucers, his hair wet and streaming behind him, his face white as a chalk-mark on Professor Cosine's blackboard. Depend on it, that boy's either going mad or has got into some desperate scrape."

"Pshaw!" growled Mac, "you were drunk,--couldn't see straight."

"Mr. Innocence was returning from some assignation, I suspect", remarked Zoile.

"If he had been, *you'd* have encountered him, Mr. Zoile," said Mac, curtly.

But I noticed my chum did not like this new feature in the case.

After this, until the time of my receiving the lad's invitation, I neither saw nor had communication with Clarian, nor did any others of us. If he left his room, it was solely at night; he had his meals sent to him, under pretence of illness, and admitted no one, except his own servant. This fellow, Dennis, spoke of him as looking exceedingly feeble and ill; and also remarked that he had apparently not been to bed for some days, but was mixing colors, or painting, the whole time. I went to his door several times; but was

invariably refused admittance, and told, kindly, but firmly, that he would not be interrupted. Mac also tried to see him, but in vain.

"I caught a glimpse of that boy's face at his window just now," said he, one day, coming in after recitation. "You may depend upon it, there's something terribly wrong. My God, I was horrified, Ned! Did you ever see any one drown? No? Well, I did once,--a woman. She fell overboard from a Chesapeake steamboat in which I was coming up the Bay, and sank just before they reached her. I shall never forget her looks as she came up the last time, turned her white, despairing, death-stricken face towards us, screamed a wild nightmare scream, and went down. Clarian's face was just like hers. Depend upon it, there's something wrong. What can we do?"

Nothing, indeed, save what we did,--wait, until that pleasant morning came round and brought me Clarian's note. I could scarcely brook the slow laziness with which the day dragged by, as if it knew its own beauty, and lingered to enjoy it. At last, however, the night came, the hour also, and punctually with it came Dr. Thorne, a kindly young physician, and a man of much promise, well-read, prompt, clear-headed, resourceful, and enthusiastically attached to his profession. Mac tucked a volume of Shakspeare under his arm, and we made our way to Clarian's room forthwith. Here we found about a dozen students, all known to us intimately. They were seated close to one another, conversing in low tones, and betraying upon their faces quite an anxiety of expectation. The door of the bedroom was closed, the curtain was lowered, and the only light in the room came from a shaded lamp, which was placed upon a small table in the recess to the right of the picture.

"What is this for?" inquired Dr. Thorne, pointing to a sort of salver resting upon a low tripod directly in front of the picture.

"Where is Clarian?" asked I.

"He looks awful," someone began in a whisper, when the lad's feeble voice called out from the bedroom,--

"Is it Ned and Mac?"

The door was pulled open, and Clarian came towards us.

"I am glad to see you, my friends. Dr. Thorne, you are truly welcome. Pray, be seated. Mac, here is your place, you and your Shakspeare," said he, indicating the chair and table in the recess.

I had held out my hand to the lad, but he turned away without taking it, and began to adjust the cords that moved the curtain.

"The tripod, Dr. Thorne," said he, with a sickly smile, "is a--a mere fancy of mine,--childish,--but in the salver I shall burn some pyrotechnic preparations, while the picture is being exhibited, by way of substitute for daylight. Excuse me a moment," added he, as he went into the bedroom again.

"Blount," said Dr. Thorne, in my ear, "why have you permitted this? What ails that boy? If he is not cared for soon, he will go crazy. Hush!--here he comes,-- keep your eye on him."

Then, as Clarian came out, and stood in the bedroom doorway, quite near me, I remarked the terrible change since I had last seen him. He leaned against the door-frame, as if too weak to support himself erect; and I saw that his knees shook, his hands jerked, and his mouth twitched in a continual nervous unrest. He had on a handsome *robe de chambre* of maroon velvet, which he seldom wore about college, though it was very becoming to him, its long skirts falling nearly to his feet, while its ample folds were gathered about his waist, and secured with cord and tassel. His feet were thrust into neat slippers, and his collar rolled over a flowing black cravat *à la Corsaire*. His long hair, which was just now longer than usual, was evenly parted in the middle, like a girl's, and, combed out straight, fell down to his shoulders on either side. All this care and neatness of dress made the contrast of his face stand out the more strikingly. Its pallor was ghastly: no other word conveys the idea of it. His lips kept asunder, as we see them sometimes in persons prostrated by long illness, and the nether one quivered incessantly, as did the smaller facial muscles near the mouth. His eyes were sunken and surrounded by livid circles, but they themselves seemed consuming with the dry and thirsty fire of fever: hot, red, staring, they glided ever to and fro with a snake-like motion, as uncertain, wild, and



painful, in their unresting search, as those of a wounded and captive hawk. The same restlessness, approaching in violence the ceaseless spasmodic habit of a confirmed Chorea, betrayed itself in all his movements, particularly in a way he had of glancing over his shoulder with a stealthy look of apprehension, and the frequent starts and shivers that interrupted him when talking. His voice also was changed, and in every way he gave evidence not only of disease of mind and body, but of a nervous system shattered almost beyond hope of reaction and recovery. Trembling for him, I rose and attempted to speak with him aside, but he waived me off, saying, with that sickly smile which I had never before seen him wear,--

"No, Ned,--you must not interrupt me to-night, neither you nor the rest,--for I am very weak and nervous and ill, and just now need all my strength for my picture, which, as it has cost me labor and pain,--much pain,--I wish to show in its best light. Macbeth's terror--it means more than it did the other night, Ned--but"--

Here he murmured an inarticulate word or two, recovering himself almost instantly, however, and resuming in a stronger voice,--

"Macbeth's doom is my picture. You will wonder I preferred the solid wall to canvas, perhaps,--but so did the genuine old artists. Lippo Lippi, and Giotto, and--why, Orcagna painted on graveyard walls; and I can almost fancy, sometimes, that this room is a vault, a tomb, a dungeon, where they torture people. Turn to the place, good Mac, Shakespeare's tragedy of 'Macbeth,' Act Third, Scene Fourth, and read the scene to us, as you know how to read; I will manage the accompaniments."

As he spoke, he touched the salver with a lighted match, so that a blue alcoholic flame flickered up before the curtain, making the poor lad's face seem more ghastly than ever.

"You must sit down, Clarian," cried Dr. Thorne, resolutely.

Clarian smiled again, that dim, uncertain smile, and answered,--

"Nay, Doctor, let me have my own way for an hour, and after that you shall govern me as your learned skill suggests. And do not be uneasy about my

'creamfaced' aspect, as I see Ned is: there is plentiful cause for it, beyond the feebleness of this very present, and to-night is not the first time I have worn these 'linen cheeks.' Read on, Mac."

We sat there in the dim light, breathless, awed,--for all of us saw the boy's agony, and were the more shocked that we were unable to understand it,--until, at last, in a voice made more impressive by its tremor, Mac began to read the terrible text,--to read as I had never heard him read before, until a fair chill entered our veins and ran back to our shuddering hearts from sympathy. Then, as he read on and painted the king and murderer together, while his voice waxed stronger and fuller, we saw Clarian step forward to the salver and busy with its lambent flame, till it blazed up with a broad, red light, that, shedding a weird splendor upon all around, and lending a supernatural effect to the room's deep shadows, the picture's funereal aspect, and the unearthly pallor of the boy's countenance, startled our eyes like the painful glare of midnight lightning.

"Thou canst not say, I did it! Never shake  
Thy gory locks at me!"

As the reader thrust the terror of these words upon us, all started back, for the curtain was plucked suddenly away, and there before us, not in Clarian's picture, it seemed, but in very truth, stood Macbeth, conscious of the murdered presence. Even the reader, absorbed as he was in his text, paused short, amazed; and I forgot that I had seen this picture, only knew that it was a living scene of terror. Doubtless much of this startling effect was the result of association, the agitation of anxiety, the influence of the impressive text, the suddenness of the apparition, the unusual light; but in the figure of Macbeth, at which alone we gazed, there was a life, a terrible significance, that outran all these causes. It was not in the posture, grand as that was,--not in the sin- stamped brow, rough with wrinkles like a storm-chafed sea,--not in the wiry hair, gray and half rising in haggard locks, like adders that in vain try to escape the foot that treads them down,--nor in the mouth, for that was hid behind the impotent guard of the upraised arm and clenched fist,--but in those painted eyes, into which, all-fascinated, we ever gazed, reading in them all that crouching terror, all the punishment of that spectral

presence, all the poignant consciousness of his fate to whom such things could happen, to whom already his victims rise again,

"With twenty mortal murders on their crowns  
And push us from our stools!"

While I yet gazed, a sickening terror pervading me in the presence of these ghastly eyes, there came a voice, as if from afar,--"Read on!"--so consonant with the tone of my emotions, that I looked to see the figure itself take speech, until Mac, with a gasp, resumed. Still, as he read, the nightmare-spell possessed me, till a convulsive clutch upon my arm roused me, and instinctively, with the returning sense, I turned to Clarian.

Not too soon,--for then, in his own person, and in that strange glare, he was interpreting the picture to us. He stood, not thrown back like Macbeth, but drawn forward, on tiptoe, with neck reached out, form erect, but lax, one arm extended, and one long diaphanous finger pointing over our heads at something he saw behind us, but towards which, in the extremity of our terror, we dared not turn our eyes. *He saw it*,--more than saw it,--we knew, as we noted the scream swelling in his throat, yet dying away into an inarticulate breath ere it passed the blue and shaken lips,--he saw it, and those eyes of his, large enough in their wont, waxed larger still, wilder, madder with desperate affright, till every one of us, save the absorbed reader, recognized in them the nightmare horror of the picture,--knew that in Macbeth Clarian had drawn his own portrait! There he stood, drawn on, staring, pointing--

"Stop!" shouted Dr. Thorne, his voice hoarse and strident with emotion; but Mac, absorbed in his text, still read, flinging a fine and subtle emotion of scorn into the words,--

"O proper stuff!  
This is the very painting of your fear:  
This"----

"Triple fool! be silent!" cried Dr. Thorne again, springing to his feet,-- while we, spell-bound, sat still and waited for the end. "Cease! do you not see?" cried he, seizing Mac.

But there stood Clarian yet, that red light upon his cheek and brow, that fixed stare of a real, unpainted horror in his speechless face, that long finger still pointing and trembling not,--there he stood, fixed, while one might count ten. Then over his blue lips, like a ghost from its tomb, stole a low and hissing whisper, that curdled our blood, and peopled all the room with dreadful things,--a low whisper that said,--

"Prithee, see there! behold! it comes! it comes!" Now he beckoned in the air, and called with a shuddering, smothered shriek,--"Come! I did it! come! Ha!" yelled he, plucking the spell from his limbs like a garment, and springing madly forward towards the door,--"Ha! touch me not! Off, I say, off!" He paused, gazed wildly round, flung his hand to his brow, and, while his eyes rolled till nothing but their whites were seen, while the purple veins swelled like mole- tracks in his forehead, and a bubbling froth began to gather about his lips, he tossed his arms in the air, gave shrieking utterance to the cry,--"O Christ! it is gone! it is gone!" and fell to the floor with a bound.

We sprang to him,--Thorne first of any.

"This is my place, gentlemen," said he, in quick, nervous tones. Then, taking the prostrate child into his arms, he carried him to his bed, laid him down, felt his pulse, and placed his head in Mac's arms. Returning then, he veiled the picture, flung the salver out of the window, and dismissed the huddled throng of frightened students, warning them to be silent as to the night's events. "Very likely Clarian will never see to-morrow; so be careful, lest you soil his memory."

"What does it mean, Thorne?" asked Mac, as the Doctor and I came again to the bedside. "It is nothing more than an overdose of *cannabis* or opium upon an excited nervous system, is it?"

Thorne looked at the delicate-limbed child who lay there in Mac's strong arms, wiped away the gathering froth from the lips, replaced the feebly quivering limbs, and, as he lingered over the pulse, replied,--

"He has been taking *hashish*?"

"He *has* taken it,--I do not say he is under its influence now."

"No,--he has not touched any stimulant. This is much worse than that,--this means epilepsy, Mac, and we may have to choose between death and idiocy."

He was still examining the boy, and showing Mac how to hold him most comfortably.

"If I could only get at the *causes* of this attack,--those, I mean, which lie deeper than the mere physical disorder,--if I could only find out what it is he has been doing,--and I could, easily, were I not afraid of directing suspicion towards him, or bringing about some unfortunate embarrassment"--

"What is it you suspect?" thundered Mac.

"Either some cruel trick has been played upon the boy, or he has been guilty of some act of madness"--

"Impossible!" cried we in a breath; "Clarian is as pure as Heaven."

"Look at him, Thorne!" said my good chum,--"look at the child's baby-face, so frank and earnest!--look at him! You dare not say an impure thought ever awoke in that brain, an impure word ever crossed those lips."

Dr. Thorne smiled sadly.

"There is no standard of reason to the enthusiast, my dear Mac; and here is one, of a surety. However, time will reveal; I wish I knew. Come, Ned, help me to mix some medicines here. Be careful to keep his head right, Mac, so as to have the circulation as free as possible."

While we were occupied in the front room, there came a stout double knock at the door, and when I opened it, Hullfish, the weather-beaten old constable of the borough, made his hesitating appearance. The Doctor gave me a quick glance, as if to say, "I told you so," and then returned the old man's bluff salutation. As soon as Hullfish saw him, he came forward with something like a sigh of relief, and said,--

"Ah, Doc, you here? 'Tar'n't a hoax, then, though I was mightily 'feared it was. Them students is the Devil for chivying of a feller,--beggin' your pardon, Mr. Blount. Have you got him yonder, Doctor?" said he, his keen eye noticing Mac and Clarian in the back room.

"What do you mean, Hullfish? Got whom?" asked Thorne, making me a sign to be quiet.

"The party, Sir, that was to be copped. I've got a blank warrant here, all right, and a pair of bracelets, in case of trouble."

"What fool's errand is this, old man?" asked the Doctor, sternly.

"What! you don't know about it? Lord! p'raps it's a sell, after all," said he, quite chopfallen. "But I've got my pay, anyhow, and there's no mistake in a V on the Princeton Bank. And here's the papers," said he, handing a note to the Doctor. "If that's slum, I'm done, that's all."

The Doctor glanced at the scrap of paper, then handed it to me, asking, "Is that his handwriting?"

It was a note, requiring Mr. Hullfish. to privately arrest a person guilty of a capital offence, until now concealed. If he was not brought to Hullfish's house between nine and ten that night, then Hullfish was to proceed to No.--North College, where he would be certain to find the party. The arrest must be made quietly. The handwriting was undoubtedly Clarian's, and I told Thorne as much.

"You see, gentlemen," said Hullfish, "I wouldn't 'a' taken no notice of it, ef it hadn't been for the money; but, thinks I, them students a'n't in the habit of sech costly jokes, and maybe there'll be some pinching to do, after all. So you mean to say it's a gam, do you, Doctor? May I be so bold as to inquire what yonder chap's holding on to 'tother about?"

""Tother' is dangerously ill,--has a fit, Hullfish. He is the author of that note,--very probably was out of his mind when he wrote it."

"So? Pity! Very sick? Mayn't I see him?"

But, as he stepped forward, Thorne stood in the way and effectually intercepted his view. The constable smiled cunningly, as he drew back, and said,--

"You're sure 'ta'n't nothing else, then? Nobody's been getting rapped on the' head? Didn't see no blood, though,--that's true. Well, I don't like to be sold, that's a fact,--but there's no help for it. Here's the young man's change, Doctor,--warrant sixty-six, my fees one dollar."

Thorne carelessly asked if there had been any rows lately,--if he had heard of any one being hurt,--if they had been quiet recently along the canal; and being assured that there had been no disturbance of moment,--"only a little brush between Arch and Long Tobe, down to Gibe's,"--he handed the money back to Hullfish.

"Keep that yourself,--it is yours by rights. And, look you, mum's the word in this case, for two reasons: there's danger that the poor little fellow there is going to croak before long, and you'd be sorry to think you'd given trouble to a dead man; and what's more, if the boys get hold of this, there'll be no end of their chaffing. There's not a few of them would like to cook your goose for you,--I needn't tell you why; so, if you don't want them to get the flashest kind of a pull over you, why, you'll take my advice and keep dark."

"Nothing like slang, Ned, with the police or the prigging gentry. It gives them a wonderful respect for your opinion," said the Doctor, when Hullfish was gone. But his serious, almost stern look returned immediately, as he continued, --"Now to solve this mystery, and find out what this wretched boy has been doing. Come, you and Mac, help me to understand him."

When we had told the Doctor all we knew of the lad, he pondered long over our recital.

"One thing is certain," said he: "the boy is innocent in intention, whatever he has done, and we must stand by him,--you two particularly; for you are to blame, if he has got himself into any predicament."

"The boy has done nothing wrong, Thorne," said Mac, sturdily; "he may have been trapped, or got himself involved somehow, but he never could

have committed any crime capable of superinducing such an attack as this."

The Doctor shook his head.

"You may be right, my friend,--and I hope you are, for the child's sake, for it will certainly kill him, if he has. But I never trust an intense imagination when morbidly excited, and I have read of some strange freaks done by persons under the influence of that infernal *hashish*. However, trust me, I shall find out what is the matter before long, and bring the boy round nicely. He is improving fast now, and all we have to do is to avert another attack."

Thank Heaven, in a day or two Clarian was pronounced to be out of danger, and promising rapid recovery. We had removed him to our rooms, as soon as the violence of the convulsion left him, in order to spare him the associations connected with his own abode. Still, the lad continued very weak, and Thorne said he had never seen so slight an attack followed by such extreme prostration. Then it did my heart good to see how my chum transformed himself into the tenderest, the most efficient of nurses. He laid aside entirely his brusque manner, talked in the softest tones, stole noiselessly about our rooms, and showed all the tender solicitude, all the quiet "handiness" of a gentle woman. I could see that Clarian loved to have him at his bedside, and to feel his caressing hand.

"You see, Ned," Mac would say, in a deprecatory tone that amused me vastly, "I really pity the poor little devil, and can't help doing all in my power for him. He's such a soft little ass,--confound Thorne! he makes me mad with his cursed suspicions!--and then the boy is out of place here in this rough-and- tumble tiltyard. Reminds me of a delicate wineglass crowded in among a ruck of aleflagons and battered quart-cups."

But, though we rejoiced to see that Clarian's health promised to be better than it had been for months, we did not fail to notice with regret and apprehension, that, as he grew physically better and mentally clearer, a darkening cloud settled over his whole being, until he seemed on the point of drowning in the depths of an irremediable dejection and despair. Besides this, he was ever on the point of telling us something, which he yet failed of courage to put into words; and Thorne, noticing this, when, one day, we were all seated round the bed, while the lad fixed his shaded, large,



mournful eyes upon us with a painfully imploring look, said suddenly, his fingers upon Clarian's pulse,--

"You have something to say to us,--a confession to make, Clarian."

The boy flushed and shuddered, but did not falter, as he replied, "Yes."

"You must withhold it until you are well again. I know what it is."

Clarian quickly withdrew his hand from the Doctor's grasp.

"You know it, and yet here, touching me? Impossible! entirely impossible!"

"Oh, as to that," said Thorne, with a cool shrug of the shoulders, "you must remember that *our* relations are simply those of physician and patient. Other things have nought to do with it. And, as your physician, I require you to withhold the matter until you are well enough to face the world."

"No,--I must reap where I have sown. I have no right to impose upon my friends any longer."

"Bad news travel fast enough, Clarian, and there is no wisdom in losing a friend so long as you can retain him."

"I do not see the force of your reasoning, Dr. Thorne. I have enough to answer for, without the additional contumely of being called an impostor."

"For your mother's sake, Clarian, I command you to wait. Spare *her* what pain you can, at least."

"My mother! Oh, my God, do not name her! do not name her!"

And he burst into the only tears I ever saw him shed, hiding his face in the bed-clothes, and sobbing piteously.

"What does this mean?" said Mac, as soon as we were where Clarian could not hear us. "What have you found out?"

"Positively nothing more than you know already," answered Thorne.

"Nothing?" echoed Mac, very indignantly; "you speak very confidently for one having such poor grounds."

"My dear Mac," said Thorne, kindly, "do you think I am not as much concerned about Clarian as you are? Positively, I would give half I own to arrive at a satisfactory solution of this mystery. But what can we do? The boy believes himself a great criminal. Do you not see at once, that, if we permit him to confess his crime, he will insist upon taking himself out of our keeping,-- commit suicide, get himself sent to the madhouse, or anyhow lose our care and our soothing influence? We cannot relieve him until we restore his strength and composure. All we can do now is to watch him, soothe him, and by all means stave off this confession until he is stronger. It would kill him to face a charge now. I am inquiring quietly, and, if anything serious has happened, shall be sure to find out his connection with it."

Though we rebelled against the Doctor's conclusions, we could not but see the prudence of the course he advised, and so we sat down to watch our poor little friend, gnawed with bitter anxiety, and feeling a sad consciousness that the disease itself under which he suffered was beyond our skilfullest surgery, and one that inevitably threatened the saddest consequences. A man has grand powers of recovery, so long as his *spirit* is free; but let him once be persuaded that his soul is chained down forever in adamantine fetters, and, though, like Prometheus, he may endure with silence, patience, even divinely, he is nevertheless utterly incapable of any positive effort towards recuperation. His faith becomes, by a subtile law of our being, his fact; the mountain is gifted with actual motion, and rewards the temerity of his zeal by falling upon him and crushing him forever. Such a person moves on, perchance, like a deep, noble river, in calm and silence, but still moves on, inevitably destined to lose himself in the common ocean. And this was the promise of Clarian's case. Whatever was his hidden woe, however trivial its rational results, or baseless its causes, it had beyond remedy seized upon his soul, and we knew, that, unless it could be done away with at the source, the end was certain: first the fury, then the apathy of madness. He was no longer tortured with a visible haunting presence, such as had borne him down on that fatal night, but we saw plainly that he had taken the spectre into his own breast, and nursed it, as a bosom serpent, upon his rapidly exhausting energies.

Happily for us,--ere Clarian was quite beyond recovery, while Mac still tore his hair in rage at his own impotence, while the Doctor still pursued his researches with the sedateness of a philosopher, and I was using what power I had to alleviate my little friend's misery,--that subtile and mysterious agency, which, in our blindness and need, we term Chance, interposed its offices, rolled away the cloud from the mystery, and, like a good angel, rescued Clarian, even as he was tottering upon the very brink of the dismal precipice to whose borders he had innocently strayed.

I shall never forget that pleasant June day. It was the first time that Clarian had been out since his illness; and I was his single companion, as he strayed slowly along through the college grounds, leaning tremulously upon my arm, dragging his feet languidly over the pebbled walks, and drinking in the warm, fresh, quivering air with a manner that, although apathetic, still spoke of some power of enjoyment. It was during the hour for the forenoon recitation, and the elm-shaded campus was entirely free of students. As Clarian walked along, his eyes bent down, I heard him murmuring that delicious verse of George Herbert's,--

"Sweet day! so cool, so calm, so bright,  
The bridal of the earth and sky!  
The dew shall weep thy fall to-night,  
For thou must die!"

"'For thou must die,'--so sad! And yet the thought itself of death is not that which saddens us so, do you think, Ned?" he went on, I hearing his words without heeding them,--for I was looking just then towards the outer gate next the President's house, through which I saw Dr. Thorne coming rapidly, accompanied by a stout, middle-aged man, having the dress and appearance of a well-to-do farmer,--"Not the thought, simply, 'Thou must die,'" repeated Clarian, in his plaintive murmur, "but the feeling that all this decay and death is of ourselves, and could be averted by ourselves, had we only self-control, could we only keep ourselves pure, and so be ever near God and of Him. *There's* cause for a deeper melancholy, poignanter tears than ever Jacques shed."

Dr. Thorne and his companion were now quite near, coming towards us on the same path, when I saw the stranger slap his thigh energetically and catch

Thorne by the arm, while he exclaimed in tones of boisterous surprise,--

"Why, there's the very little chap, as I'm alive!"

I had half a glimpse of the Doctor's seizing his companion and clapping one hand over his mouth, as if to prevent him from saying more,--but it was too late. At the sound of the man's voice I felt Clarian bound electrically. He looked up,--over his face began to come again that terrible anguish of the night of the picture, but the muscles seemed too weak to bring it all back,--he grew limp against me,--his arms hung inert at his side,--a word that sounded like "Spare me!" gurgled in his throat,--a feeble shudder shook him, and, ere I could interpose my arm, he sank in a heap at my feet, white, and cold, and lifeless. Before I had raised him, Thorne and the man sprang to my aid, and the latter, bending over with eager haste, took the thin white hands in his own, half caressing them, half fearing to grasp them, speaking to him the while in tones of frightened entreaty, that, on any other occasion, would have been ludicrous enough.

"Come, now, my little man," said he,--"come, don't be afeard, *don't* be afeard of me! Dan Buckhurst won't harm ye, not for the world, poor child! Come, stand up! 'Twas all a joke. Come, come!--My God! Doctor, he a'n't dead, is he?" cried he to Thorne, in horror.

"If he is, you have killed him, you damned old fool, you!" responded Thorne, impetuously, thrusting the man aside with an angry gesture, and bending down to examine the lad's inert form. "Thank God, Ned," said he at last, "it is only a swoon this time, and we'll soon have him all right. We must get him to bed, though. Here, Buckhurst, you are the strongest; stop whimpering there, you old jackanapes, and bring him along."

Buckhurst quickly obeyed, lifting Clarian up in his arms as gently and tenderly as if he had been an infant, and following Thorne, who led the way to our rooms. There the lad was placed upon the bed with which he had become only too familiar, and the Doctor, by means of his restoratives, soon had the satisfaction of recalling breath and motion. As soon as the boy's sighs gave evidence of returning vitality, Thorne thrust us all from the room, including Mac, who had now come in from class, saying to Buckhurst,--

"Now, Sir, tell them all about it,--and wait here; I shall want you presently." With which words he closed the door upon us, and returned to his patient.

Mr. Buckhurst refused the chair tendered him by Mac, and paced up and down the room in a state of immense perturbation.

"Well, I never!" said he, "well, I never! It taken me all aback, Sir," added he, turning to me. "Did you ever see anything like it? Why, he's jest like a gal! Dang it, Sir! my Molly a'n't half as nervous as he is. I hope he'll get well,--I raelly do, now. I wouldn't hev had it happen for I dunno what, now, indeed!" And he resumed his walk, repeating to himself, "Well, I never! Who'd 'a' judged 'twas a child like that?"

"May I beg to know what you refer to, Mr. Buckhurst?" asked Mac, with considerable impatience in his tones.

"Eh,--what? He's mighty delicate, a'n't he?" said the man, with his thumb indicating the next room.

"Very delicate indeed, Sir,--perhaps you can explain the cause of his present attack," said I, angrily; for I had begun to think, from Buckhurst's manner, that he had been guilty of some practical joke upon Clarian. I saw the fire of a similar suspicion blazing in Mac's eyes; and I fear, had our conclusions been verified, the worthy Mr. Buckhurst would have fared very badly at our hands, spite the laws of hospitality.

"What! did he never tell you? Of course not, though, being sick ever sence, and thinking me dead, too. Well, I'll tell you: but mind, you mustn't banter the child about it, for he can't stand it,--though it's only a joke. Might have been serious, to be sure, but, as things turns out, a pretty good joke, to my notion,--though I'm rael sorry *he's* been so bad about it."

Mac rose, removed his coat, and marched deliberately up to our guest. "See here, Sir," said he in his deepest bass voice, which his dark frown made still more ominous, "do you mean us to infer that you have been making that child Clarian the victim of any of your infernal *jokes*, as you style them?"

Buckhurst stared a moment, and then, seeming to comprehend the drift of Mac's words, burst into a hearty laugh.

"No, Sir!" he shouted, "the shoe's on the other foot, thank the Lord! The boy himself played the joke, or trick, whatever it was. Dr. Thorne tells me he was kind of crazy, from drinking laudanum, or some sech pisonous matter. Howsever that was, I'm sure he didn't do it in airnest,--thought so from the very first, --and now I've had a good look at his face, I'd swear to it"

"What did he do?" asked Mac, hurriedly.

Buckhurst laughed in that hearty way of his. Said he,--

"I'll wager you a stack of hay agin them books yander you couldn't guess in a week now. What d'ye think it was? Ho! ho! Why, why, the little rascal shoved me into the canawl!"

"Shoved you into the canal!" echoed I, while Mac, looking first at him, then at me, finally burst into a peal of laughter, shouting the while,--

"Bravo! There's your 'experience' philosophy, Ned Blount! Catch me teaching milksops again! Go on, Buckhurst, tell us all about it."

"Yes," said Mr. Buckhurst, apparently quite pleased to see that we laughed with him. "It don't look like it was in the nature of things, somehow, does it? Fact, though, he did indeed. Shoved me right in, so quick I didn't know what the Devil was the matter, until I soused kersplash! and see him taking out over the drawbridge like mad."

"When was that, Mr. Buckhurst?"

"Jest inside of a month ago, Sir, one night."

"*Sapperment*, Ned! that was the time of the 'herb Pantagruelion'!-- Well, what were you doing on the canal at that hour?" asked Mac, slyly.

"No, you needn't, now,--I see you wink at him,--honor bright. I'd been up to town, to take a mess o' clams at Giberson's, with maybe a sprinklin' of his apple-jack,--nothing else,--and I was on my way home,--to Skillman's

tavern at the *dépôt*, you know,--and I'd jest stopped a piece, and was a-standing there, looking at the moon in the water, when he tipped me over. I tell you, I was mad when I crawled out wet as a rat; and if I'd ketched him then, you may depend upon it, I'd 'a' given his jacket a precious warming. As I said, he run off, but jest as I turned towards the tavern, I see him a-coming back, kinder wild-like; so I slipped behind a lumber-pile, hoping he might come over the bridge, so I could lay my fingers on him. The moon was about its highest, so I could see his face, plain as day,--white,--skim-milk warn't a circumstance to it,--and his eyes wide open as they could stretch. I tell you, he was wild! He looked up and down a bit, mumbled somethin' I couldn't make out, and then what do you think that boy did? Why, he jumped in, clothes and all, bold as a lion,--plainly to save me from drowning, and me all the time a-spyin' at him from behind a lumber-pile! He was sarching for me, I knowed, for he swum up and down jest about there for the space maybe of a quarter of an hour. And when he give it up at last, and come out, he kinder sunk down on the tow-path, and I heard him say plain enough, though he only whispered it,--jest like a woman actor I see down to York oncet, playin' in Guy something or other,--she was a sort of an old gypsy devil,--says he, 'I am a murderer, then!' Thinks I, 'Sonny, all but the murderer!' And as he stood up again, he 'peared to suffer so, his face was so white, and his knees so shaky, that I says to myself, 'Dan, you've carried the joke far enough.' So I sings out to him, and comes out from behind the lumber-stack, but, Lord bless ye! he jest peeped round over his shoulder oncet, gave a kind of chokin' scream like, and put out up the road as if the Devil was after him. I knowed it warn't no use to follow him, so I got on a dry shirt and went to bed. The next day I went home, and I'd mighty near forgot all about it, only today I came to see Dr. Thorne for somethin' to do my cold good, and he wantin' to know how I ketched it brought the whole matter back again."

"You're an old brick, Buckhurst!" cried Mac, giving the jovial farmer a thundering slap on the back, and a hearty grasp of his hand; "and you shall drink the boy's health with Ned and me this day, or I'll know the reason why. Ned Blount, a'n't it glorious? Said I not, you ill-omened bird, said I not, '*Il y a toujours un Dieu pour les enfans et pour les ivrognes*'?--So you came down with Thorne to ease the poor little fellow's mind, did you, Buckhurst? That's right, and you shall see the picture, by Jove! And you'll

say, when you see it, that such a picture were cheap at the cost of duckings for a dozen Buckhursts. Now tell me truly, what do you think made him push you in?

"Of course, it was the pison, Sir,--a baby like that wouldn't harm a flea. I thought maybe, until I see Dr. Thorne, that he done it out of mischieviousness, as boys will do, you know,--jest as they steal a feller's apples, and knock his turkeys of'n the roost,--but yander's not one of them kind; so he must 'a' been crazy, and I'm rael sorry he's been so bad put to about it,--I am, indeed."

Here the inner door was opened, and Thorne joined us, with a moisture about his eyes that he used afterwards to deny most vehemently.

"Buckhurst, he wants to see you; go in there," said he,--adding, in a lower tone, "Now, mind you, the child's delicate as spun glass; so be careful."

"Come in, Mr. Buckhurst," called Clarian.

The worthy farmer looked to right and left, as if he would much rather have made his escape, but, impelled by a shove from the Doctor, he ran his fingers through his coarse hair, and, with a very red and "I-wish-I-was-out-of-this" face, went in, closing the door behind him.

"Phew!" said Thorne, seating himself somewhat testily, after having filled and lighted a pipe,--"Phew! So that's over, and I a'n't sorry; it's as bad as reading the 'Diary of a Physician.' The boy will be all right now, and the lesson won't hurt him, though it has been a rough one. But no more metaphysics for him, Ned Blount! And, boys, let this be a warning to you. He's too brittle a toy to be handled in your rough fashion."

"You needn't tell us that, Thorne," said Mac, drawing a long breath. "Catch me kicking over children's baby-houses again, or telling 'em ghost-stories in the dark!"

"He vows never again to touch brush, crayon, or pencil; and if he is the devotee you describe him to be, Ned, I would not advise you to oppose him in his determination. You must keep him here till vacation, and next term he



can exchange his room. Macbeth's company will never be very agreeable to him, I should judge; and it will not do to let him destroy the picture."

Thorne puffed away vigorously for a minute or two.

"That boy ought to turn preacher, Mac. He touched me nearer just now than I have been touched for an age.

"His voice was a sweet tremble in mine ear,  
Made tunable with every saddest grief,  
Till those sad eyes, so spiritual and clear,'

almost persuaded me to follow the example of divine Achilles and 'refresh my soul with tears.' He has that tear-bringing privilege of genius, to a certainty."

And so it seemed, indeed; for presently the worthy Mr. Buckhurst made his reappearance in quite a sad state, mopping his red face and swollen eyes most vigorously with a figured cotton handkerchief, and proclaiming, with as much intelligibility as the cold in his head and the peculiar circumstances of the case would admit of, that he'd "be dagg'd ef he hadd't raver be chucked idto *two* cadawls dad 'ave dat iddocedt baby beggid his pardod about de codfouded duckid! Wat de hell did *he* care about gittid wet, he'd like to kdow? Dodsedse!--'twad all dud id fud, adyhow!"

---"And now *you*, my dear, dear friends," said Clarian, turning his sad, full eyes upon us, and calling us to his side, and to his arms.

But I shall draw a veil over that interview.

That night, after we had talked long and lovingly together, and were now sitting, each absorbed in his own thoughts, and emulating the quiet that reigned around college, Clarian softly joined us, and placed an open book in Mac's hands.

"Will you, dear Mac?" murmured he.

Then Mac, all full of solemn emotion, read through the grand periods of the Church Litany, and when he had finished, Clarian, with a thrilling "Let us pray," offered up such a thanksgiving as I had never heard, praying to the kind Father who had so mercifully extricated him, that our paths might still be enlightened, and our walks made humble and righteous.

"Clarian," said Mac, after a pause, when we were again on our feet,--he laid his hands on the boy's shoulders, as he spoke, and looked into his eyes,--  
"Clarian, would it have happened, if you had not taken that foul drug?"

Clarian shuddered, and covered up his face in his hands.

"Do not ask me, dear Mac! do not ask me! Oh, be sure, my aims, I thought, were noble, and myself I thought so pure!--but---I cannot say, Mac, I cannot say.

""We are so weak, we know our motives least  
In their confused beginning.""

"At least, Clarian," said Mac, after a while, his deep voice wonderfully refined with strong emotion, "at least, the picture was not painted in vain. Even as it is in the play, Banquo died that his issue might reign after him; and this lesson of ours will bear fruit far mightier than the trifling pains of its parturition. Ay, Clarian, your picture has not been vainly painted.--And now, Ned," said he, rising, "we must put our baby to bed; for he is to wake early to-morrow, and know himself a man!"

## SPRING

Doves on the sunny eaves are cooing,  
The chip-bird trills from the apple-tree,  
Blossoms are bursting and leaves renewing,  
And the crocus darts up the spring to see.

Spring has come with a smile of blessing,  
Kissing the earth with her soft warm breath,  
Till it blushes in flowers at her gentle caressing,  
And wakes from the winter's dream of death.

Spring has come! The rills, as they glisten,  
Sing to the pebbles and greening grass;  
Under the sward the violets listen,  
And dream of the sky as they hear her pass.

Coyest of roses feel her coming,  
Swelling their buds with a promise to her,--  
And the wild bee hears her, around them  
humming,  
And booms about with a joyous stir.

Oaks, that the bark of a century covers,  
Feel ye the spell, as ye groan and sigh?  
Say,--does her spirit that round you hovers  
Whisper of youth and love gone by?

Windows are open,--the pensive maiden  
Leans o'er the sill with a wistful sigh,  
Her heart with tender longings o'erladen,  
And a happy sadness, she knows not why.

For we and the trees are brothers in nature;--  
We feel in our veins the season's thrill  
In hopes that reach to a higher stature,  
In blind dim longings beyond our will.

Whence dost thou come, O joyous spirit?  
From realms beyond this human ken,  
To paint with beauty the earth we inherit,  
And soften to love the hearts of men?

Dear angel! that blowest with breath of gladness  
The trump to waken the year in its grave,  
Shall we not hear, after death's deep sadness,  
A voice as tender to gladden and save?

Dost thou not sing a constant promise  
That joy shall follow that other voice,--  
That nothing of good shall be taken from us,  
But all who hear it shall rise, to rejoice?

## RUFUS CHOATE

Mr. Choate's mind was so complex, peculiar, and original,--so foreign in temperament and spirit to the more representative traits of New England character,--so large, philosophic, and sagacious in vision and survey of great questions, and so dramatic and vehement in their exposition and enforcement,--so judicial and conservative in always maintaining in his arguments the balance and relation of interdependent principles, and so often in details marring the most exquisite poetry with the wildest extravagancies of style,--so free from mere vulgar tricks of effect, and so full of imaginative tricksiness and surprises,-- so mischievous, subtle, mysterious, elusive, Protean,--that it is no wonder he has been more admired and more misunderstood than any eminent American of his time. It was because of these unaccustomed qualities of mind that matter-of-fact lawyers and judges came slowly but surely to Mr. Webster's conclusion, that he was "the most accomplished of American lawyers," whether arguing to courts or juries. In the same way, critically correct but unimaginative scholars, who "can pardon anything but a false quantity,"--who "see the hair on the rope, but not the rope," and detect minute errors, but not poetic apprehension,--admitted at last the fulness and variety of his scholastic attainments. And perhaps the finest tribute to the power and subtlety of his influence was, that, to the last, juries, who began cases by steeling themselves against it, and who ended by giving him their verdicts, maintained that they were not at all influenced by him,--so profound, so complete, and so unconscious had been the spell this man of genius had woven around them.

When it is remembered that a great lawyer in the United States is called upon (as he is not in England) to practise in all our courts, civil and criminal, law, equity, and admiralty, and, in addition to all the complicated questions between parties, involving life, liberty, and property, arising therein, that he is to know and discuss our whole scheme of government, from questions under its patent laws up to questions of jurisdiction and constitutional law,--it will be seen what a field there is for the exhibition of

the highest talents, and how few lawyers in the country can become eminent in all these various and important departments of mental labor. In their whole extent Mr. Choate was not only thoroughly informed as a student and profound as a reasoner, but his genius produced such a fusion of imagination and understanding as to give creativeness to argumentation and philosophy to treatment of facts.

We propose to try to give some idea of those mental characteristics and peculiarities in which he differed from other lawyers, and to indicate some salient points of his genius and nature which went to make up so original and interesting an individuality. Immense labor and talent will no more produce genius or its results, than mere natural genius, without their aid and instrumentality, can reach and maintain the highest rank in any of the great departments of life or thought. With true genius, imagination is, to be sure, paramount to great and balanced faculties; but genius is always demonstrating its superiority to talent as well by its greater rapidity and certainty in seizing, arranging, and holding facts, and by the extent of its acquisitions, as by its superior philosophic and artistic grasp and vision.

Though Mr. Choate was so much more than a mere lawyer, it was in court that he displayed the full force and variety of his powers. *Hic currus et arma*. We shall, however, speak more especially of his jury-trials, because in them more of his whole nature was brought into play, and because of them and of his management of them there is and can be no full record. The arguments and triumphs of the great advocate are almost as evanescent and traditionary as the conversation of great talkers like Coleridge. In what we have to say we cannot be expected to call up the arguments and cases themselves, and we must necessarily be confined to a somewhat general statement of certain mental qualities and characteristics which were of the secret of his power. We shall be rewarded, if we succeed in giving in mere outline some explanation of the fact, that so much of interest and something of mystery attach themselves throughout the country to his name and genius.

A jury-trial is in itself dramatic; but mere eloquence is but a small part of what is demanded of a great advocate. Luther Martin and Jeremiah Mason were the most eminent American examples of the very many great jury-

lawyers who were almost destitute of all that makes up popular eloquence. A jury-lawyer is of course greater with it, but he can do entirely without it. Almost all great trials appeal to the intellects rather than to the passions of jurors. What an advocate needs first is thorough knowledge of law, and that adaptiveness and readiness of faculty which are never surprised into forgetfulness or confusion, so that he can instantly see, meet, reason upon, and apply his legal learning to the unexpected as well as the expected points of law and evidence as they arise in a case. Secondly, he must have thorough knowledge of human nature: he must not only profoundly discuss motives in their relations to the laws of the human mind, and practically reconcile motives with conduct as they relate to the parties and witnesses in his cases, but he must prepare, present, develop, guide, and finally argue his case, within the rules of law, with strict reference to its effect upon the differing minds of twelve men. It would be difficult to name any other field of public mental effort which demands and gives scope for such variety of faculty and accomplishment.

Whatever may have been Mr. Choate's defects of character or of style, no competent judge ever saw his management of any case in court, from its opening to its close, without recognizing that he was a man of genius. It mattered not whether the amount involved was little or great, whether the parties were rich or poor, wise or ignorant, whether the subject-matter was dry or fertile,--such were his imaginative insight, his knowledge of law and of human nature, his perfection of arrangement, under which every point was treated fully, but none unduly, his consummate tact and tactics, his command of language in all its richness and delicacy to express the fullest force and the nicest shades of his meaning, and his haggard beauty of person and grace of nature, that every case rose to dramatic dignity and to its largest relations to law, psychology, and poetry; and thus, while giving it artistic unity and completeness, he all the more enforced his arguments and insured his success. How widely different in method and surroundings from the poet's exercise of the creative faculty in the calm of thought and retirement, on a selected topic and in selected hours of inspiration, was his entering, with little notice or preparation, into a case involving complicated questions of law and fact, with only a partial knowledge of the case of his antagonist! met at point after point by unexpected evidence and rulings of law, often involving such instantaneous decisions as to change his whole

combinations and method of attack; examining witnesses with unerring skill, whom he was at once too chivalrous and too wise to browbeat; arguing to the court unexpected questions of law with full and available legal learning; carrying in his mind the case, and the known or surmised plan of attack of his antagonist, and shaping his own case to meet it; holding an exquisitely sensitive physical and mental organization in such perfect control as never to be irritated or disturbed; throwing his whole force on a given point, and rising to a joyousness of power in meeting the great obstacles to his success; and finally, with little or no respite for preparation, weaving visibly, as it were, before the mental eye, from all these elicited materials, his closing argument, which, as we have said, was all the more effective, because profound reasoning and exquisite tact and influence were involved in it as a work of art.

He had the temperament of the great actors,--that of the elder Kean and the elder Booth, not of Kemble and Macready,--and, like them, had the power of almost instantly passing into the nature and thought and emotion of another, and of not only absolutely realizing them, but of realizing them all the more completely because he had at the same time perfect self-direction and self-control. The absurd question is often asked, whether an actor is ever the character he represents throughout a whole play. He could be so, only if insane. But every great actor and orator must be capable of instantaneous abandonment to his part, and of as instantaneous withdrawal from it,--like the elder Booth, joking one minute at a side-scene and in the next having the big tears of a realized Lear running down his cheeks. An eminent critic says,--"Genius always lights its own fire,"--and this constant double process of mind,--one of self-direction and self-control, the other of absolute abandonment and identification,--each the more complete for the other,--the dramatic poet, the impassioned orator, and the great interpretative actor, all know, whenever the whole mind and nature are in their highest action. Mr. Choate, therefore, from pure force of mental constitution, threw himself into the life and position of the parties and witnesses in a jury-case, and they necessarily became *dramatis personae*, and moved in an atmosphere of his own creation. His narrative was the simplest and most artistic exhibition of his case thus seen and presented from the point of their lives and natures, and not from the dry facts and points of his case; and his argument was all the more perfect, because not



exhibited in skeleton nakedness, but incorporated and intertwined with the interior and essential life of persons and events. It was in this way that he effected the acquittal of Tirrell, whom any matter-of-fact lawyer, however able, would have argued straight to the gallows; and yet we have the highest judicial authority for saying that in that case he did his simple technical duty, without interposing his own opinions or convictions. We shall say a word, before we close, of the charge that he surrendered himself too completely to his client; but to a great degree the explanation and the excuse at once lie in this dramatic imagination, which was of the essence of his genius and influence, and through which he lived the life, shared the views, and identified himself with a great actor's realization, in *the part* of his client.

In making real to himself the nature, life, and position of his client,--in gathering from him and his witnesses, in the preparation and trial of his case, its main facts and direction, as colored or inflamed by his client's opinions, passions, and motives,--and in seeking their explanation in the egotism and idiosyncrasy which his own sympathetic insight penetrated and harmonized into a consistent individuality,--he, of course, knew his client better than his client knew himself; he conceived him as an actor conceives character, and, in a great measure, saw with his eyes from his point of view, and, in the argument of his case, gave clear expression and consistent characterization to his nature and to his partisan views in their relations to the history of the case. We have seen his clients sit listening to the story of their own lives and conduct, held off in artistic relief and in dramatic relation, with tears running down cheeks which had not been moistened by the actual events themselves, re-presented by his arguments in such coloring and perspective.

As a part of this power of merging his own individuality in that of his client was his absolute freedom from egotism, conceit, self-assertion, and personal pride of opinion. Such an instance is, of course, exceptional. Nearly all the eminent jury-lawyers we have known have been, consciously or unconsciously, self-asserting, and their individuality rather than that of their clients has been impressed upon juries. An advocate with a great jury-reputation has two victories to win: the first, to overcome the determination of the jury to steel themselves against his influence; the second, to convince

their judgments. Mr. Choate's self-surrender was so complete that they soon forgot him, because he forgot himself in his case; nothing personally demonstrative or antagonistic induced obstinacy or opposition, and every door was soon wide open to sympathy and conviction. If an advocate is conceited, or vain, or self-important, or if he thinks of producing effects as well for himself as for his client, or if his nature is hard and unadaptive,-- great abilities display these qualities, instead of hiding them, and they make a refracting medium between a case and the minds of a jury. Mr. Choate was more completely free from them than any able man we ever knew. Any one of them would have been in complete contradiction to the whole composition and current of his nature. Though conscious of his powers, he was thoroughly and lovingly modest. It was because he thought so little of himself and so much of his client that he never made personal issues, and was never diverted by them from his strict and full duty. Instead of "greatly finding quarrel in a straw," where some supposed honor was at stake, he would suffer himself rather than that his case should suffer. Early in his practice, when a friend told him he bore too much from opposing counsel without rebuking them, he said: "Do you suppose I care what those men say? I want to get my client's case." Want of pugnacity too often passes for want of courage. We have seen him in positions where we wished he could have been more personally demonstrative, and (to apply the language of the ring to the contests of the court-room) that he could have stood still and struck straight from the shoulder; but when we remember how perfectly he saw through and through the faults and foibles of men, how his mischievous and genial irony, when it touched personal character, stamped and characterized it for life, and how keen was the edge and how fine the play of every weapon in his full armory of sarcasm and ridicule, (of which his speech in the Senate in reply to Mr. McDuffie's personalities gives masterly exhibition,) we are thankful that his sensibility was so exquisite and his temper so sweet, that he was a delight instead of a terror, and that he was loved instead of feared. Delicacy should be commensurate to power, that each may be complete. It would seem almost impossible that a lawyer with a practice truly immense, passing a great part of his life in public and heated contests and in discussing and often severely criticizing the motives and conduct of parties and witnesses, should not make many enemies; but he was so essentially modest, simple, gentlemanly, and tender, so considerate of the feelings of others, so evidently trying to mitigate the pain which it

was often his duty to inflict, that we never heard of his searching and subtle examination of witnesses, or his profound and exhaustive analysis of character and motive, or his instantaneous and irresistible retorts upon counsel, creating or leaving behind him, in the bar or out of it, malice or ill-will in a human being. One of the most touching and beautiful things we ever saw in a court-room would have been in other hands purely painful and repulsive. It was his examination of the wretched women who were witnesses in the Tirrell case. His tact in eliciting what was necessary to be known, and which they would have concealed, was forgotten and lost in his chivalrous and Christian recognition of their common humanity, and in his gentlemanly thoughtfulness that even they were still women, with feelings yet sensitive to eye and word.

In jury-trials it would be foolish to judge style by severe or classic standards. If an advocate have skill and insight and adequate powers of expression, his style must yield and vary with the circumstances of different cases and the minds of different juries and jurors. When a friend of Erskine asked him, at the close of a jury-argument, why he so unusually and iteratively, and with such singular illustration, prolonged one part of his case, he said,-- "It took me two hours to make that fat man with the buff waistcoat join the eleven!"

All men of great powers of practical influence over the minds of men know how stupid and dull of apprehension the mass of mankind are; and no one knows better than a great jury-lawyer in how many different ways it is often necessary to present arguments, and how they must be pressed, urged, and *hammered* into most men's minds. He is endeavoring to persuade and convince twelve men upon a question in which they have no direct pecuniary or personal interest, and he must more or less know and adapt his reasoning and his style to each juror's mind. He should know no audience but the judge and these twelve men. Retainers never seek and should not find counsel who address jurors with classical or formal correctness. Napoleon, at St. Helena, after reading one of his bulletins, which had produced the great and exact effect for which he had intended it, exclaimed,--"And yet they said I couldn't write!"

The true Yankee is suspicious of eloquence, and "stops a metaphor like a suspected person in an enemy's country." A stranger, who looked in for a few minutes upon one of Mr. Choate's jury-arguments, and saw a lawyer with a lithe and elastic figure of about five feet and eleven inches, with a face not merely of a scholarly paleness, but wrinkled all over, and, as it were, scathed with thought and with past nervous and intellectual struggles, yet still beautiful, with black hair curling as if from heat and dewy from heightened action and intensity of thought and feeling, and heard a clear, sympathetic, and varying voice uttering rapidly and unhesitatingly, sometimes with sweet caesural and almost monotonous cadences, and again with startling and electric shocks, language now exquisitely delicate and poetic, now vehement in its direct force, and again decorated and wild with Eastern extravagance and fervor of fancy, would have thought him the last man to have been born on New England soil, or to convince the judgments of twelve Yankee jurors. But those twelve men, if he had opened the case himself, had been quietly, simply, and sympathetically led into a knowledge of its facts in connection with its actors and their motives; they had seen how calmly and with what tact he had examined his witnesses, how ready, graceful, and unheated had been his arguments to the court, and how complete throughout had been his self-possession and self-control; they had, moreover, learned and become interested in the case, and were no longer the same hard and dispassionate men with whom he had begun, and they knew, as the casual spectator could not know, how systematically he was arguing while he was also vehemently enforcing his case. *He*, meanwhile, knew his twelve men, and what arguments, appeals, and illustrations were needed to reach the minds of one or all. He did not care how certain extravagances of style struck the critical spectator, if they stamped and riveted certain points of his case in the minds of his jury. With the keenest perception of the ridiculous himself, he did not hesitate to say things which, disconnected from his purpose, might seem ridiculous. One consequence of these audacities of expression was, that, when it became necessary for him to be iterative, he was never tedious. They gave full play to his imaginative humor and irony, and to his poetic unexpectedness and surprises. A wise observer, hearing him try a case from first to last, while recognizing those higher qualities of genius which we have before described, saw, that, for all the purposes of persuasion and argumentation, for conveying his meaning in its full force and in its most delicate

distinctions and shadings, for analytic reasoning or for the "clothing upon" of the imagination, for all the essential objects and vital uses of language, his style was perfect for his purpose and for his audience. His excesses came from surplus power and dramatic intensity, and were pardoned by all imaginative minds to the real genius with which they were informed.

Every great advocate must, at times, especially in the trial of capital cases, be held popularly responsible for the acquittal of men whom the public has prejudged to be guilty. This unreasoning, impulsive, and irresponsible public never stops to inform itself; never discriminates between legal acumen and pettifogging trickery, between doing one's full duty to his client and interposing or misrepresenting his own personal opinions; and never remembers that the functions of law and the practice of law are to prevent and to punish crime, to ascertain the truth, and to determine and enforce justice,--that trial by jury, and the other means and methods through which justice is administered, are founded in the largest wisdom, philanthropy, and experience,--that they cannot work perfectly, because human nature is imperfect, but they constitute the best practical system for the application of abstract principles of right to the complicated affairs of life which the world has yet seen, and which steadily improves as our race improves,--and that every great lawyer is aiding in elucidating truth and in administering justice, when doing his duty to his client under this system. Our trial by jury has its imperfections; but, laying aside its demonstrated value and necessity in great struggles for freedom, before and since the time of Erskine, no better scheme can be devised to do its great and indispensable work. The very things which seem to an uninformed man like rejection or confusion of truth are a part of the sifting by which it is to be reached. The admission or rejection of evidence under sound rules of law, the presenting of the whole case of each party and of the best argument which can be made upon it by his counsel, the charge of the judge and the verdict of the jury,--all are necessary parts of the process of reaching truth and justice. Counsel themselves cannot know a whole case until tried to its end; their clients have a right to their best services, within the limits of personal honor; and lawyers are derelict in duty, not only to their clients, but to justice itself, if they do not present their cases to the best of their ability, when they are to be followed by opposing counsel, by the judge, and by the jury. The popular judgment is not only capricious,--it not only assumes that legal precedents,

founded in justice for the protection of the honest, are petty technicalities or tricks through which the dishonest escape,--it is not only formed out of the court-room, with no opportunity to see witnesses and hear testimony, often very different in reality from what they seem in print,--but it visits upon counsel its ignorant prejudices against the theory and practice of the law itself, and forgets that lawyers cannot present to the jury a particle of evidence except with the sanction of the court under sound rules of law, and that the law is to be laid down by the court alone.

A man thoroughly in earnest in any direction is more or less a partisan. Histories are commonly uninfluential or worthless, unless written with views so earnest and decided as to show bias. As the greater interests of truth are best subserved by those whose zeal is commensurate to their scope of mind, so it is a part of the scheme of jury-trials, that, within the limits we have named, counsel shall throw their whole force into their cases, that thus they may be presented fully in all lights, and the right results more surely reached. The scheme of jury-trials itself thus providing for a lawyer's standing in the place of his client and deriving from him his partisan opinions, and for urging his case in its full force within the limits of sound rules of law, it almost invariably follows, that, the greater the talent and zeal of the advocate, and the more he believes in the views of his client, the more liable he is to be charged with overstating or misstating testimony. Mr. Choate never conceived that his duty to his client should carry him up to the line of self-surrender drawn by Lord Brougham; but, recognizing his client's full and just claims upon him, entering into his opinions and nature with the sympathetic and dramatic realization we have described, he could not faithfully perform the prescribed and admitted duty of the advocate,--necessarily, with him, involving his throwing the whole force of his physical and intellectual vitality into every case he tried,--without being a vehement partisan, or without being sometimes charged with misstating evidence or going too far for his client. Occasionally this may have been true; but we see the explanation in the very quality of his genius and temperament, and not in conscious or intentional wrong-doing.

His ability and method in his strictly legal arguments to courts of law are substantially indicated in what we have already said. His manner, however, was here calm, his general views of his subject large and philosophic, his

legal learning full, his reasoning clear, strong, and consequential, his discrimination quick and sure, and his detection of a logical fallacy unerring, his style, though sometimes fairly open to the charge of redundancy, graceful and transparent in its exhibition of his argument, and his mind always at home, and in its easiest and most natural exercise, when anything in his case rose into connection with great principles.

While exhibiting in his jury-trials, as we have shown, this double process of absolute identification and of perfect supervision and self-control,--of instantaneous imaginative dips into his work, and of as instantaneous withdrawal from it,--of purposely and yet completely throwing himself in one sentence into the realization of an emotion, thus perfectly conveying his meaning while living the thought, and yet coming out of it to see quicker than any one that it might be made absurd by displacement,--he always had, as it were, an air-drawn, circle of larger thought and superintending relation far around the immediate question into which he passed so dramatically. Within this outer circle, attached and related to it by everything in the subject-matter of real poetic or philosophic importance, was his case, creatively woven and spread in artistic light and perspective; and between the two (if we do not press our illustration beyond clear limits) was a heat-lightning-like play of mind, showing itself, at one moment, in unexpected flashes of poetic analogy, at another in Puck-like mischief, and again in imaginative irony or humor.

As he recovered himself from abandonment to some part of his case or argument to guide and mould the whole, so, going into his library, he could, as completely, for minutes or for hours, banish and forget his anxieties and dramatic excitements, and pass into the cooling air and loftier and purer stimulations of the great minds of other times and countries and of the great questions that overhang us all. His mind, capacious, informed, wise, doubting, "looking before and after," here found its highest pleasures, and its little, but most loved repose. "The more a man does, the more he can do"; and, notwithstanding his immense practice, and that by physical and intellectual constitution he couldn't *half* do anything, he never allowed a day of his life to pass, without reading some, if ever so little, Greek, and it was a surprise to those who knew him well to find that he kept up with everything important in modern literature. Rising and going to bed early,

taking early morning exercise, having a strong constitution, though he was subject to sudden but quickly overcome nervous and bilious illness, wasting no time, caring nothing for the coarser social enjoyments, leading, out of court, a self- withdrawn and solitary life, though playful, genial, and stimulating in social intercourse, with a memory as tenacious and ready as his apprehension was quick, with high powers of detecting, mastering, arranging, and fusing his acquisitions, and of penetrating to the centre of historical characters and events,--it is not strange, though he may not have been critically exact and nice in questions of quantity and college exercises, that his scholarship was large and available in all its higher aims and uses.

It will naturally be asked, how such qualities as we have described manifested themselves in character, and in political and other fields of thought and exertion. Fair abilities, zeal, industry, a sanguine temperament, and some special bent or fitness for the profession of the law, will make a good and successful lawyer. Such a man's mind will be entirely in and limited by the immediate case in hand, and virtually his intellectual life will be recorded in his cases. But with Mr. Choate, the dramatic genius and large scope and vision which made him superior to other great advocates at the same time prevented his overestimating the value of his work in kind or degree, showed him how ephemeral are the actual triumphs and how small the real value of nearly all the questions he thus vitalized into artistic reality, when compared with the great outlying truths and principles to which he allied them. Feeling this all through his cases, at the same time that he was moulding them and giving them dramatic vitality, they took their true position from natural reaction and rebound, with all the more sharpness of contrast, when he came out of them. With such a nature, it could be assumed *a priori* as a psychological certainty, at any rate it was the fact with him, that a certain unreality was at times thrown over life and its objects, that its projects and ambitions seemed games and mockeries, and "this brave o'erhanging firmament a pestilent congregation of vapors," and that grave doubts and fears on the great questions of existence were ever on the horizon of his mind. This gave perpetual play to his irony, and made it a necessity and a relief of mind. Except when in earnest in some larger matter, or closely occupied in accomplishing some smaller necessary purpose or duty, his imagination loved the tricky play of exhibiting the petty side of life in contrast to its realities, just as in his cases it found its



exercise in lifting them up to relations with what is poetic and permanent. But, though irony was thus the natural language of his mind, it did not pass beyond the limits of the mischievous and kindly, because there was nothing scoffing or bitter in his nature. It was fresh and natural, never studied for effect, and gave his conversation the charm of constant novelty and surprises. He loved to condense the results of thought and study into humorous or grotesque overstatements, which, while they amused his hearers, conveyed his exact meaning to every one who followed the mercurial movement of his mind. It will readily be seen how a person with neither insight into his nature nor apprehension of his meaning should, without intending it, misinterpret his life and caricature his opinions,--blundering only the more deeply when trying to be literally exact in reporting conversations or portraying character.

It has been shrewdly said, that, "when the Lord wants anything done in this world, he makes a man a little wrong-headed in the right direction." With this goes the disposition to overestimate the importance of one's work and to push principles and theories towards extremes. The saying is true of some individuals at or before certain crises in affairs; it is not true of the great inevitable historical movements, any more than the history of revolutions is the history of nations. Halifax is called a trimmer. William Wilberforce was a reformer. Each did a great work. But it would be simply absurd, except in the estimation of the moral purist, to call Wilberforce as great a man or as great an historical and influential person as Halifax. Halifax saw and acted in the clear light and large relations in which the great historian of our own times wrote the history of the Stuarts. Wilberforce was a purer man, who acted more conscientiously and persistently within his smaller range of life and thought. It would have been inconsistent with Mr. Choate's nature for him to have been "wrong-headed" in any direction. Such largeness of view, such dramatic and interpretative imagination, such volatile play of thought and fancy, and such perception of the pettiness and hollowness of nearly all the aims and ambitions of daily life we cannot expect to find coexisting with the coarser "blood-sympathies," the direct passion, and the dogged and tenacious hold of temporary and smaller objects and issues, which distinguish the American politician, or with the narrowness of view, the zeal, and the moral persistency which characterize the practical reformer. There was, therefore,

in his nature a certain want of the sturdier, harder, and more robust elements of character, which, though commonly manifesting themselves in connection with self-assertion and partisan zeal, are indispensable to the man who, in any large and political way, would take hold of practical circumstances and work a purpose out of them. We admire him for what he was. We do not condemn him for the absence of qualities not allied to such delicacy and breadth of nature. It is simply just to state the fact.

He had too little political ambition to seek his own advancement. He never could have been a strictly party man. His interest in our politics was a patriotic interest in the country. While he recognized the necessity of two great parties, he despised the arts and intrigues of the politician. His modesty, sensibility, large views, and want of political ambition and partisan spirit prevented interest, as they would have precluded success in party management. Had he spent many years instead of a few in the national Senate, he never could have been a leader in its great party struggles. He had not the hardier personal and constitutional qualities of mind and character which lead and control deliberative bodies in great crises. He would not have had that statesmanlike prescience which in the case of Lord Chatham and others seems separable from great general scope of thought, and which one is tempted to call a faculty for government. But he must have been influential; for, besides being the most eloquent man in the Senate, his speeches would have been distinguished for amplitude and judgment in design, and for tact and persuasiveness in enforcement. They might not have had immediate and commanding effect, but they would have had permanent value. His speech upon the Ashburton Treaty indicates the powers he would have shown, with a longer training in the Senate. More than ten years had passed between that speech and his two speeches in the Massachusetts Constitutional Convention, upon Representation and the Judiciary, and in that time a great maturing and solidifying work had been going on in his mind. Indeed, it was one sure test of his genius, that his intellect plainly grew to the day of his death. We would point to those two speeches as giving some adequate expression of his ability to treat large subjects simply, profoundly, artistically, and convincingly. Many of his earlier and some of his later speeches and addresses, though large in conception and stamped with unmistakable genius, want solid body of thought, and are, so to speak, too fluid in style. This obviously springs from

the qualities of mind and from the circumstances we have indicated. In court, the necessities of his case and the determination and shaping of all his argument and persuasion to convincing twelve men, or a court only, on questions requiring prompt decision, kept his style free from everything foreign to his purpose. But, released from these restraints, and called upon for a treatment more general and comprehensive than acute and discriminating, his style often became inflamed and decorated with sensibility and fancy. His mind, moreover, was overtasked in his profession. His unremitting mental labor in the preparation and trial of so many cases was immense and exhausting. It shortened his life. That his genius might have that free and joyous exercise necessary to its full use and exhibition in literary or political directions, an abandonment of a great part of his professional duties was indispensable. This was to him neither possible nor desirable. The mental heat and pressure, therefore, under which he wrote his speeches and addresses, and the necessity for the exercise of different methods of thought and treatment from those called into play at the bar, explain why (with a few noble exceptions) they do not give a fair or full exhibition of his genius and accomplishments. But in them his judgment never lost its anchorage. Unlike Burke, who was the god of his political idolatry, his sensibility never overmastered his reasoning. Through a style sometimes Eastern in flush and fervor, and again tropical in heat and luxuriance, were always seen the adjusting and attempering habit of thought and argument and the even balance of his mind.

We have said that his interest in politics was a patriotic interest in the nation. He knew her history and her triumphs and reverses on land and sea by heart. Though limited by no narrow love of country, he felt from sentiment and imagination that attachment to every symbol of patriotism and national power which makes the sailor suffer death with joy when he sees his country's flag floating in the smoke of victory. "The radiant ensign of the Republic" was to him the living embodiment of her honor and her power. He had for it the pride and passion of the boy, with the prophetic hopes of the patriot. Men of genius are ever revivifying the commonplace expressions and visible signs of popular enthusiasm with the poetic and historic realities which gave them birth. He felt the glow and impulse of the great sentiments of race and nationality in all their natural simplicity and poetic force. It is not now the time to discuss Mr. Choate's political

preferences and opinions. No one who knew him well can hesitate to pronounce his motives pure and patriotic. We could not come to his conclusions on the policy and duty of our people at the last Presidential election. Our duties to the Union forced us to regard as paramount what he regarded as subsidiary. Our fear for the Union sprang from other sources than his. But we believe he acted from the highest convictions of duty, and he certainly exposed himself with unflinching courage to obloquy and misinterpretation when silence would have been easy and safe.

In what we have said of him as a lawyer we are sure that in every essential respect we have not overstated or misstated his powers and characteristics as they were known and conceded by lawyers and judges in Massachusetts. We have confined ourselves mainly to his jury-trials, because into them he threw the whole force and vitality of his nature, and because we could thus more completely indicate the variety of his accomplishments and the essential characteristics of his genius and individuality. A knowledge of them is indispensable to a just estimate of the man, and it must die with him and his hearers, excepting only as it may be preserved by contemporaneous written criticism and judgment, and by indeterminate and shadowy tradition.

The labors of so great a lawyer are as much more useful as they are less conspicuous than those of any prominent politician or legislator, unless he be one of the very few who have high constructive or creative ability. There is little risk of overestimating the value of a life devoted to mastering that complex system of jurisprudence, the old, ever-expanding, and ever-improving common law which is interwoven with our whole fabric of government, property, and personal rights, and to applying it profoundly through trial by jury and before courts of law, not merely that justice may be obtained for clients, but that decisions shall be made determining the rights and duties of men for generations to come. And when such a life is not only full of immense work and achievement, but is penetrated and informed with genius, sensibility, and loving-kindness, it passes sweetly and untraceably, but influentially and immortally, into the life of the nation.

## THE REGICIDE COLONELS IN NEW ENGLAND

Before the restoration of Charles the Second, in 1660, to the throne of his ancestors, he had issued a "Declaration," promising to all persons but such as should be excepted by Parliament a pardon of offences committed during the late disorderly times. In the Parliamentary Act of Indemnity which followed, such as had been directly concerned in the death of the late King were excepted from mercy. Colonel Whalley and Colonel Goffe were members of the High Court of Justice which convicted and sentenced him. It was known that they had fled from England; and one Captain Breedon, lately returned from Boston, reported that he had seen them there. The Ministry sent an order to Endicott, the Governor of Massachusetts, for their apprehension and transportation to England.

The friendly welcome which had in fact been extended to the distinguished fugitives cannot be confidently interpreted as an indication of favorable judgment of the act by which their lives were now endangered. No one of the New- England Colonies had formally expressed approval of the execution of King Charles the First, nor is there any other evidence of its having been generally regarded by them with favor. It is likely that in New England, as in the parent country, the opinions of patriotic men were divided in respect to the character of that measure. In New England, remote as it was from the scene of those crimes which had provoked so extreme a proceeding, it may be presumed that there was greater difficulty in admitting the force of the reasons, by which it was vindicated. And the sympathy of New England would be more likely to be with Vane, who condemned it, than with Cromwell. But the strangers, however one act of theirs might be regarded, had been eminent among those who had fought for the rights of Englishmen, and they brought introductions from men venerated and beloved by the people among whom a refuge was sought.

Edward Whalley, a younger son of a good family, first cousin of the Protector Oliver, and of John Hampden, distinguished himself at the Battle

of Naseby as an officer of cavalry, and was presently promoted by Parliament to the command of a regiment. He commanded at the storm of Banbury, and at the first capture of Worcester. He was intrusted with the custody of the King's person at Hampton Court; he sat in the High Court of Justice at the trial of Charles, and was one of the signers of the death-warrant. After the Battle of Dunbar, at which he again won renown, Cromwell left him in Scotland in command of four regiments of horse. He was one of the Major-Generals among whom the kingdom was parcelled out by one of the Protector's last arrangements, and as such governed the Counties of Lincoln, Nottingham, Derby, Warwick, and Leicester. He sat as a member for Nottinghamshire in Cromwell's Second and Third Parliaments, and was called up to "the other House" when that body was constituted.

William Goffe, son of a Puritan clergyman in Sussex, was a member of Parliament, and a colonel of infantry soon after the breaking out of the Civil War. He married a daughter of Whalley. Like his father-in-law, he was a member of the High Court of Justice for the King's trial, a signer of the warrant for his execution, a member of the Protector's Third and Fourth Parliaments, and then a member of "the other House." He commanded Cromwell's regiment at the Battle of Dunbar, and rendered service particularly acceptable to him in the second expurgation of Parliament. As one of the ten Major-Generals, he held the government of Hampshire, Berkshire, and Sussex.

When Whalley and Goffe, upon the King's return, left England to escape what they apprehended might prove the fate of regicides, the policy of the Court in respect to persons circumstanced as they were had not been promulgated. Arriving in Boston, in July, and having been courteously welcomed by the Governor, they proceeded the same day to Cambridge, which place for the present they made their home. For several months they appeared there freely in public. They attended the public religious meetings, and others held at private houses, at which latter they prayed, and *prophesied*, or preached. They visited some of the principal towns in the neighborhood, were often in Boston, and were received, wherever they went, with distinguished attention.

At the end of four months, intelligence came to Massachusetts of the Act of Indemnity, and that Whalley and Goffe were among those excepted from it, and marked for vengeance. Three months longer they lived at Cambridge unmolested; but in the mean while affairs had been growing critical between Massachusetts and the mother country, and, though some members of the General Court assured them of protection, others thought it more prudent that they should have a hint to provide for their safety in some way which would not imply an affront to the royal government on the part of the Colony. The Governor called a Court of Assistants, in February, and without secrecy asked their advice respecting his obligation to secure the refugees. The Court refused to recommend that measure, and four days more passed, at the end of which time--whether induced by the persuasion of others, or by their own conviction of the impropriety of involving their generous hosts in further embarrassment, or simply because they had been awaiting till then the completion of arrangements for their reception at New Haven--they set off for that place.

A journey of nine days brought them to the hospitable house of the Reverend Mr. Davenport, where again they moved freely in the society of the ministers and the magistrates. But they had scarcely been at New Haven three weeks, when tidings came thither of the reception at Boston of a proclamation issued by the King for their arrest. To release their host from responsibility, they went to Milford, (as if on their way to New Netherland,) and there showed themselves in public; but returned secretly the same night to New Haven, and were concealed in Davenport's house. This was towards the last of March.

They had been so situated a month, when their friends had information from Boston that the search for them was to be undertaken in earnest. Further accounts of their having been seen in that place had reached England, and the King had sent a peremptory order to the Colonial governments for their apprehension. Endicott, to whom it was transmitted, could do no less than appear to interest himself to execute it; and this he might do with the less reluctance, because, under the circumstances, there was small likelihood that his exertions would be effectual. Two young English merchants, Thomas Kellond and Thomas Kirk, received from him a commission to prosecute the search in Massachusetts, and were also furnished with letters

of recommendation to the Governors of the other Colonies. That they were zealous Royalists, direct from England, would be some evidence to the home government that the quest would be pursued in good faith. That they were foreigners, unacquainted with the roads and with the habits of the country, and betraying themselves by their deportment wherever they should go in New England, would afford comfortable assurance to the Governor that they would pursue their quest in vain.

From Boston, the pursuivants, early in May, went to Hartford, where they were informed by Winthrop, Governor of Connecticut, that "the Colonels," as they were called, had passed thence immediately before, on their way to New Haven. Thither the messengers proceeded, stopping on the way at Guilford, the residence of Deputy-Governor Leete. Since the recent death of Governor Newman, Leete had been Chief Magistrate of the Colony of New Haven, which was now, and for a few years later, distinct from Connecticut.

The Deputy-Governor received them in the presence of several other persons. He looked over their papers, and then "began to read them audibly; whereupon we told him," say the messengers, "it was convenient to be more private in such concerns as that was." They desired to be furnished "with horses, &c.," for their further journey, "which was prepared with some delays." They were accosted, on coming out, by a person who told them that the Colonels were secreted at Mr. Davenport's, "and that, without all question, Deputy Leete knew as much"; and that "in the head of a company in the field a-training," it had lately been "openly spoken by them, that, if they had but two hundred friends that would stand by them, they would not care for Old or New England."

The messengers returned to Leete, and made an application for "aid and a power to search and apprehend" the fugitives. "He refused to give any power to apprehend them, nor order any other, and said he could do nothing until he had spoken with one Mr. Gilbert and the rest of his magistrates." New Haven, the seat of government of the Colony, was twenty miles distant from Guilford. It was now Saturday afternoon, and for a New-England Governor to break the Sabbath by setting off on a journey, or by procuring horses for any other traveller, was impossible. An Indian was observed to



have left Guilford while the parley was going on, and was supposed to have gone on an errand to New Haven.

Monday morning the messengers proceeded thither. "To our certain knowledge," they write, "one John Meigs was sent a-horseback before us, and by his speedy and unexpected going so early before day was to give them an information, and the rather because by the delays was used, it was break of day before we got to horse; so he got there before us. Upon our suspicion, we required the Deputy that the said John Meigs might be examined what his business was, that might occasion so early going; to which the Deputy answered, that he did not know any such thing, and refused to examine him." Leete was in no haste to make his own journey to the capital. It was for the messengers to judge whether they would use such despatch as to give an alarm there some time before any magistrate was present, to be invoked for aid. He arrived, they write, "within two hours, or thereabouts, after us and came to us to the Court chamber, where we again acquainted him with the information we had received, and that we had cause to believe they [the fugitives] were concealed in New Haven, and thereupon we required his assistance and aid for their apprehension; to which he answered, that he did not believe they were; whereupon we desired him to empower us, or order others for it; to which he gave us this answer, the he could not, or would not, make us magistrates... We set before him the danger of that delay and their inevitable escape, and how much the honor and service of his Majesty was despised and trampled on by him, and that we supposed by his unwillingness to assist in the apprehension he was willing they should escape. After which he left us, and went to several of the magistrates, and were together five or six hours in consultation, and upon breaking up of their council they told us they would not nor could not to anything until they had called a General Court of the freemen."

The messengers labored with great earnestness to shake this determination, but all in vain. For precedents they appealed to the promptness of the Governors of Massachusetts and Connecticut, "who, upon the recite of his Majesty's pleasure and order concerning the said persons, stood not upon such niceties and formalities." They represented "how much the honor and justice of his Majesty was concerned, and how ill his Sacred Majesty would resent such horrid and detestable concealments and abettings of such

traitors and regicides as they were, and asked him whether he would honor and obey the King or no in this affair, and set before him the danger which by law is incurred by any one that conceals or abets traitors; to which the Deputy Leete answered, 'We honor his Majesty, but we have tender consciences'; to which we replied, that we believed that he knew where they were, and only pretended tenderness of conscience for a refusal.... We told them that for their respect to two traitors they would do themselves injury, and possibly ruin themselves and the whole Colony of New Haven."

"Finding them obstinate and pertinacious in their contempt of his Majesty," the messengers, probably misled by some false information, took the road to New Netherland, the next day, in further prosecution of their business. The Dutch Governor at that place promised them, that, if the Colonels appeared within his jurisdiction, he would give notice to Endicott, and take measures to prevent their escape by sea. Thereupon Kellond and Kirk returned by water to Boston, where they made oath before the magistrates to a report of their proceedings.

The fugitives had received timely notice of the chase. A week before Kellond and Kirk left Boston, they removed from Mr. Davenport's house to that of William Jones, son-in-law of Governor Eaton, and afterwards Deputy-Governor of Connecticut. On the day when the messengers were debating with Governor Leete at Guilford, Whalley and Goffe were conducted to a mill, at a short distance from New Haven, where they were hidden two days and nights. Thence they were led to a spot called Hatchet Harbor, about as much farther in a northwesterly direction, where they lay two nights more. Meantime, for fear of the effect of the large rewards which the messengers had offered for their capture, a more secure hiding-place had been provided for them in a hollow on the east side of West Rock, five miles from the town. In this retreat they remained four weeks, being supplied with food from a lonely farm-house in the neighborhood, to which they also sometimes withdrew in stormy weather. They caused the Deputy-Governor to be informed of their hiding-place; and on hearing that Mr. Davenport was in danger from a suspicion of harboring them, they left it, and for a week or two showed themselves at different times at New Haven and elsewhere. After two months more of concealment in their retreat on the side of West Bock, they betook themselves, just after the middle of August,

to the house of one Tomkins, in or near Milford. There they remained in complete secrecy for two years, after which time they indulged themselves in more freedom, and even conducted the devotions of a few neighbors assembled in their chamber.

But the arrival at Boston of Commissioners from the King with extraordinary powers was now expected, and it was likely that they would be charged to institute a new search, which might endanger the fugitives, and would certainly be embarrassing to their protectors. Just at this time a feud in the churches of Hartford and Wethersfield had led to an emigration to a spot of fertile meadow forty miles farther up the river. Mr. Russell, hitherto minister of Wethersfield, accompanied the new settlers as their pastor. The General Court gave their town the name of Hadley. In this remotest northwestern frontier of New England a refuge was prepared for the fugitives. On hearing of the arrival of the Commissioners at Boston, they withdrew to their cave; but some Indians in hunting observed that it had been occupied, and its secrecy could no longer be counted on. They consequently directed their steps towards Hadley, travelling only by night, and there, in the month of October, 1664, were received into the house of Mr. Russell.

There--except for a remarkable momentary appearance of one of them, and except for the visits of a few confidential friends--they remained lost forever to the view of men. Presents were made to them by leading persons among the colonists, and they received remittances from friends in England. Governor Hutchinson, when he wrote his History, had in his hands the Diary of Goffe, begun at the time of their leaving London, and continued for six or seven years. They were for a time encouraged by a belief, founded on their interpretation of the Apocalypse, that the execution of their comrades was "the slaying of the witnesses," and that their own triumph was speedily to follow. Letters passed between Goffe and his wife, purporting to be between a son and mother, and signed respectively with the names of Walter and Frances Goldsmith. Four of these letters survive; tender, magnanimous, and devout, they are scarcely to be read without tears.

In the tenth year of his abode at Hadley Whalley had become extremely infirm in mind and body, and he probably did not outlive that year. Mr. Russell's house was standing till within a little more than half a century ago. At its demolition, the removal of a slab in the cellar discovered human remains of a large size. They are believed to have belonged to the stout frame which swept through Prince Rupert's lines at Naseby. Goffe survived his father-in-law nearly five years, at least; how much longer, is not known. Once he was seen abroad, after his retirement to Mr. Russell's house. The dreadful war, to which the Indian King Philip bequeathed his long execrated name, was raging with its worst terrors in the autumn of 1675. On the first day of September, the people of Hadley kept a fast, to implore the Divine protection in their distress. While they were engaged in their worship, a sentry's shot gave notice that the stealthy savages were upon them. Hutchinson, in his History, relates what follows, as he had received it from the family of Governor Leverett, who was one of the few visitors of Goffe in his retreat. "The people were in the utmost confusion. Suddenly a grave, elderly person appeared in the midst of them. In his mien and dress he differed from the rest of the people. He not only encouraged them to defend themselves, but put himself at their head, rallied, instructed, and led them on to encounter the enemy, who by this means were repulsed. As suddenly the deliverer of Hadley disappeared. The people were left in consternation, utterly unable to account for this strange phenomenon. It is not probable that they were ever able to explain it."

In the first years of the retirement of the Colonels at Hadley, they enjoyed the society of a former friend, who did not feel obliged to use the same strict precautions against discovery. John Dixwell, like themselves, was a colonel in the Parliamentary service, a member of the High Court of Justice, and a signer of the death-warrant of the King. Nothing is known of his proceedings after the restoration of the monarchy, till he came to Hadley, three or four months later than Whalley and Goffe. After a residence of some years in their neighborhood, he removed to New Haven, where, bearing the name of James Davids, and affecting no particular privacy, he lived to old age. The home-government never traced him to America; and though, among his acquaintance, it was understood that he had a secret to keep, there was no disposition to penetrate it. He married twice at New Haven, and by his second nuptials established a family, one branch of

which survives. In testamentary documents, as well as in communications, while he lived, to his minister and others, he frankly made known his character and history. He died just too early to hear the tidings, which would have renewed his strength like the eagle's, of the expulsion of the House of Stuart. A fit monument directs the traveller to the place of his burial, in the square bounded on one side by the halls of Yale College.

## TO THE CAT-BIRD

You, who would with wanton art  
Counterfeit another's part,  
And with noisy utterance claim  
Right to an ignoble name,--  
Inharmonious!--why must you,  
To a better self untrue,  
Gifted with the charm of song,  
Do the generous gift such wrong?

Delicate and downy throat,  
Shaped for pure, melodious note,--  
Silvery wing of softest gray,--  
Bright eyes glancing every way,--  
Graceful outline,--motion free:  
Types of perfect harmony!

Ah! you much mistake your duty,  
Mating discord thus with beauty,--  
'Mid these heavenly sunset gleams,  
Vexing the smooth air with screams,--  
Burdening the dainty breeze  
With insane discordancies.

I have heard you tell a tale  
Tender as the nightingale,  
Sweeter than the early thrush  
Pipes at day-dawn from the bush.  
Wake once more the liquid strain  
That you poured, like music-rain,  
When, last night, in the sweet weather,  
You and I were out together.

Unto whom two notes are given,  
One of earth, and one of heaven,  
Were it not a shameful tale  
That the earth-note should prevail?

For the sake of those who love us,  
For the sake of God above us,  
Each and all should do their best  
To make music for the rest.  
So will I no more reprove,  
Though the chiding be in love:  
Uttering harsh rebuke to you,  
That were inharmonious, too.

# THE PROFESSOR'S STORY

## CHAPTER XIII.

### CURIOSITY.

People will talk. *Ciascun lo dice* is a tune that is played oftener than the national air of this country or any other.

"That's what they say. Means to marry her, if she *is* his cousin. Got money himself,--that's the story,--but wants to come and live in the old place, and get the Dudley property by-and-by."--"Mother's folks was wealthy."--"Twenty- three to twenty-five year old."--"He a'n't more'n twenty, or twenty-one at the outside."--"Looks as if he knew too much to be only twenty year old."--"Guess he's been through the mill,--don't look so green, anyhow,--hey? Did y' ever mind that cut over his left eyebrow?"

So they gossiped in Rockland. The young fellows could make nothing of Dick Venner. He was shy and proud with the few who made advances to him. The young ladies called him handsome and romantic, but he looked at them like a many- tailed pacha who was in the habit of ordering his wives by the dozen.

"What do you think of the young man over there at the Venners'?" said Miss Arabella Thornton to her father.

"Handsome," said the Judge, "but dangerous-looking. His face is indictable at common law. Do you know, my dear, I think there is a blank at the Sheriff's office, with a place for his name in it?"

The Judge paused and looked grave, as if he had just listened to the verdict of the jury and was going to pronounce sentence.

"Have you heard anything against him?" said the Judge's daughter.



"Nothing. But I don't like these mixed bloods and half-told stories. Besides, I have seen a good many desperate fellows at the bar, and I have a fancy they all have a look belonging to them. The worst one I ever sentenced looked a good deal like this fellow. A wicked mouth. All our other features are made for us; but a man makes his own mouth."

"Who was the person you sentenced?"

"He was a young fellow that undertook to garrote a man who had won his money at cards. The same slender shape, the same cunning, fierce look, smoothed over with a plausible air. Depend upon it, there is an expression in all the sort of people that live by their wits when they can, and by worse weapons when their wits fail them, that we old law-doctors know just as well as the medical counselors know the marks of disease in a man's face. Dr. Kittredge looks at a man and says he is going to die; I look at another man and say he is going to be hanged, if nothing happens. I don't say so of this one, but I don't like his looks. I wonder Dudley Venner takes to him so kindly."

"It's all for Elsie's sake," said Miss Thornton; "I feel quite sure of that. He never does anything that is not meant for her in some way. I suppose it amuses her to have her cousin about the house. She rides a good deal since he has been here. Have you seen them galloping about together? He looks like my idea of a Spanish bandit on that wild horse of his."

"Possibly he has been one,--or is one," said the Judge,--smiling as men smile whose lips have often been freighted with the life and death of their fellow-creatures. "I met them riding the other day. Perhaps Dudley is right, if it pleases her to have a companion. What will happen, though, if he makes love to her? Will Elsie be easily taken with such a fellow? You young folks are supposed to know more about these matters than we middle-aged people."

"Nobody can tell. Elsie is not like anybody else. The girls that have seen most of her think she hates men, all but 'Dudley,' as she calls her father. Some of them doubt whether she loves him. They doubt whether she can love anything human, except perhaps the old black woman that has taken

care of her since she was a baby. The village people have the strangest stories about her: you know what they call her?"

She whispered three words in her father's ear. The Judge changed color as she spoke, sighed deeply, and was silent as if lost in thought for a moment.

"I remember her mother," he said, "so well! A sweeter creature never lived. Elsie has something of her in her look, but those are not the Dudley eyes. They were dark, but soft, in all I ever saw of the race. Her father's are dark too, but mild, and even tender, I should say. I don't know what there is about Elsie's,--but do you know, my dear, I find myself curiously influenced by them? I have had to face a good many sharp eyes and hard ones,--murderers' eyes and pirates',--men that had to be watched in the bar, where they stood on trial, for fear they should spring on the prosecuting officers like tigers,--but I never saw such eyes as Elsie's; and yet they have a kind of drawing virtue or power about them,--I don't know what else to call it: have you never observed this?"

His daughter smiled in her turn.

"Never observed it? Why, of course, nobody could be with Elsie Venner and not observe it. There are a good many other strange things about her: did you ever notice how she dresses?"

"Why, handsomely enough, I should think," the Judge answered. "I suppose she dresses as she likes, and sends to the city for what she wants. What do you mean in particular? We men notice effects in dress, but not much in detail."

"You never noticed the colors and patterns of her dresses? You never remarked anything curious about her ornaments? Well! I don't believe you men know, half the time, whether a lady wears a ninepenny collar or a thread-lace cape worth a thousand dollars. I don't believe you know a silk dress from a bombazine one. I don't believe you can tell whether a woman is in black or in colors, unless you happen to know she is a widow. Elsie Venner has a strange taste in dress, let me tell you. She sends for the oddest patterns of stuffs, and picks out the most curious things at the jeweller's, whenever she goes to town with her father. They say the old Doctor tells

him to let her have her way about all such matters. Afraid of her mind, if she is contradicted, I suppose.--You've heard about her going to school at that place,--the 'Institoot,' as those people call it? They say she's bright enough in her way,--has studied at home, you know, with her father a good deal,--knows some modern languages and Latin, I believe: at any rate, she would have it so,--she must go to the 'Institoot.' They have a very good female teacher there, I hear; and the new master, that young Mr. Langdon, looks and talks like a well-educated young man. I wonder what they'll make of Elsie, between them!"

So they talked at the Judge's, in the calm, judicial-looking mansion-house, in the grave, still library, with the troops of wan-hued law-books staring blindly out of their titles at them as they talked, like the ghosts of dead attorneys fixed motionless and speechless, each with a thin, golden film over his unwinking eyes.

In the mean time, everything went on quietly enough after Cousin Richard's return. A man of sense,--that is, a man who knows perfectly well that a cool head is worth a dozen warm hearts in carrying the fortress of a woman's affections, (not yours, "Astarte," nor yours, "Viola,")--who knows that men are rejected by women every day because they, the men, love them, and are accepted every day because they do not, and therefore can study the arts of pleasing,--a man of sense, when he finds he has established his second parallel too soon, retires quietly to his first, and begins working on his covered ways again. [The whole art of love may be read in any Encyclopaedia under the title *Fortification*, where the terms just used are explained.] After the little adventure of the necklace, Dick retreated at once to his first parallel. Elsie loved riding,--and would go off with him on a gallop now and then. He was a master of all those strange Indian horseback-feats which shame the tricks of the circus-riders, and used to astonish and almost amuse her sometimes by disappearing from his saddle, like a phantom horseman, lying flat against the side of the bounding creature that bore him, as if he were a hunting leopard with his claws in the horse's flank and flattening himself out against his heaving ribs. Elsie knew a little Spanish too, which she had learned from the young person who had taught her dancing, and Dick enlarged her vocabulary with a few soft phrases, and would sing her a song sometimes, touching the air upon an ancient-looking

guitar they had found with the ghostly things in the garret,--a quaint old instrument, marked E.M. on the back, and supposed to have belonged to a certain Elizabeth Mascarene, before mentioned in connection with a work of art,--a fair, dowerless lady, who smiled and sung and faded away, unwedded, a hundred years ago, as dowerless ladies, not a few, are smiling and singing and fading now,--God grant each of them His love,--and one human heart as its interpreter!

As for school, Elsie went or stayed away as she liked. Sometimes, when they thought she was at her desk in the great school-room, she would be on The Mountain,--alone always. Dick wanted to go with her, but she would never let him. Once, when she had followed the zigzag path a little way up, she looked back and caught a glimpse of him following her. She turned and passed him without a word, but giving him a look which seemed to make the scars on his wrist tingle, went to her room, where she locked herself up, and did not come out again till evening,--old Sophy having brought her food, and set it down, not speaking, but looking into her eyes inquiringly, like a dumb beast trying to feel out his master's will in his face. The evening was clear and the moon shining. As Dick sat at his chamber-window, looking at the mountain-side, he saw a gray-dressed figure flit between the trees and steal along the narrow path that led upward. Elsie's pillow was impressed that night, but she had not been missed by the household,--for Dick knew enough to keep his own counsel. The next morning she avoided him and went off early to school. It was the same morning that the young master found the flower between the leaves of his Virgil.

The girl got over her angry fit, and was pleasant enough with her cousin for a few days after this; but she shunned rather than sought him. She had taken a new interest in her books, and especially in certain poetical readings which the master conducted with the elder scholars. This gave Master Langdon a good chance to study her ways when her eye was on her book, to notice the inflections of her voice, to watch for any expression of her sentiments; for, to tell the truth, he had a kind of fear that the girl had taken a fancy to him, and, though she interested him, he did not wish to study her heart from the inside.

The more he saw her, the more the sadness of her beauty wrought upon him. She looked as if she might hate, but could not love. She hardly smiled at anything, spoke rarely, but seemed to feel that her natural power of expression lay all in her bright eyes, the force of which so many had felt, but none perhaps had tried to explain to themselves. A person accustomed to watch the faces of those who were ailing in body or mind, and to search in every line and tint for some underlying source of disorder, could hardly help analyzing the impression such a face produced upon him. The light of those beautiful eyes was like the lustre of ice; in all her features there was nothing of that human warmth which shows that sympathy has reached the soul beneath the mask of flesh it wears. The look was that of remoteness, of utter isolation. There was in its stony apathy, it seemed to him, the pathos which we find in the blind who show no film or speck over the organs of sight; for Nature had meant her to be lovely, and left out nothing but love. And yet the master could not help feeling that some instinct was working in this girl which was in some way leading her to seek his presence. She did not lift her glittering eyes upon him as at first. It seemed strange that she did not, for they were surely her natural weapons of conquest. Her color did not come and go like that of young girls under excitement. She had a clear brunette complexion, a little sun-touched, it may be,--for the master noticed once, when her necklace was slightly displaced, that a faint ring or band of a little lighter shade than the rest of the surface encircled her neck. What was the slight peculiarity of her enunciation, when she read? Not a lisp, certainly, but the least possible imperfection in articulating some of the lingual sounds,-- just enough to be noticed at first, and quite forgotten after being a few times heard.

Not a word about the flower on either side. It was not uncommon for the schoolgirls to leave a rose or pink or wild flower on the teacher's desk. Finding it in the Virgil was nothing, after all; it was a little delicate flower, that looked as if it were made to press, and it was probably shut in by accident at the particular place where he found it. He took it into his head to examine it in a botanical point of view. He found it was not common,--that it grew only in certain localities,--and that one of these was among the rocks of the eastern spur of The Mountain.

It happened to come into his head how the Swiss youth climb the sides of the Alps to find the flower called the *Edelweiss* for the maidens whom they wish to please. It is a pretty fancy, that of scaling some dangerous height before the dawn, so as to gather the flower in its freshness, that the favored maiden may wear it to church on Sunday morning, a proof at once of her lover's devotion and his courage. Mr. Bernard determined to explore the region where this flower was said to grow, that he might see where the wild girl sought the blossoms of which Nature was so jealous.

It was on a warm, fair Saturday afternoon that he undertook his land-voyage of discovery. He had more curiosity, it may be, than he would have owned; for he had heard of the girl's wandering habits, and the guesses about her sylvan haunts, and was thinking what the chances were that he should meet her in some strange place, or come upon traces of her which would tell secrets she would not care to have known.

The woods are all alive to one who walks through them with his mind in an excited state, and his eyes and ears wide open. The trees are always talking, not merely whispering with their leaves, (for every tree talks to itself in that way, even when it stands alone in the middle of a pasture,) but grating their boughs against each other, as old horn-handed farmers press their dry, rustling palms together,--dropping a nut or a leaf or a twig, clicking to the tap of a woodpecker, or rustling as a squirrel flashes along a branch. It was now the season of singing-birds, and the woods were haunted with mysterious, tender music. The voices of the birds which love the deeper shades of the forest are sadder than those of the open fields: these are the nuns that have taken themselves away from the world and tell their griefs to the infinite listening Silences of the wilderness,--for the one deep inner silence that Nature breaks with her fitful superficial sounds becomes multiplied as the image of a star in ruffled waters. Strange! The woods at first convey the impression of profound repose, and yet, if you watch their ways with open ear, you find the life which is in them is restless and nervous as that of a woman: the little twigs are crossing and twining and separating like slender fingers that cannot be still; the stray leaf is to be flattened into its place like a truant curl; the limbs sway and twist, impatient of their constrained attitude; and the rounded masses of foliage swell upward and subside from time to time with long soft sighs, and, it may be,

the falling of a few rain-drops which had lain hidden among the deeper shadows. I pray you, notice, in the sweet summer days which will soon see you among the mountains, this inward tranquillity that belongs to the heart of the woodland, with this nervousness, for I do not know what else to call it, of outer movement. One would say, that Nature, like untrained persons, could not sit still without nestling about or doing something with her limbs or features, and that high breeding was only to be looked for in trim gardens, where the soul of the trees is ill at ease perhaps, but their manners are unexceptionable, and a rustling branch or leaf falling out of season is an indecorum. The real forest is hardly still except in the Indian summer; then there is death in the house, and they are waiting for the sharp shrunken months to come with white raiment for the summer's burial.

There were many hemlocks in this neighborhood, the grandest and most solemn of all the forest-trees in the mountain regions. Up to a certain period of growth they are eminently beautiful, their boughs disposed in the most graceful pagoda-like series of close terraces, thick and dark with green crystalline leaflets. In spring the tender shoots come out of a paler green, finger-like, as if they were pointing to the violets at their feet. But when the trees have grown old, and their rough boles measure a yard through their diameter, they are no longer beautiful, but they have a sad solemnity all their own, too full of meaning to require the heart's comment to be framed in words. Below, all their earthward-looking branches are sapless and shattered, splintered by the weight of many winters' snows; above, they are still green and full of life, but their summits overtop all the deciduous trees around them, and in their companionship with heaven they are alone. On these the lightning loves to fall. One such Mr. Bernard saw,--or rather, what had been one such; for the bolt had torn the tree like an explosion from within, and the ground was strewn all around the broken stump with flakes of rough bark and strips and chips of shivered wood, into which the old tree had been rent by the bursting rocket from the thunder- cloud.

----The master had struck up The Mountain obliquely from the western side of the Dudley mansion-house. In this way he ascended until he reached a point many hundred feet above the level of the plain, and commanding all the country beneath and around. Almost at his feet he saw the mansion-house, the chimney standing out of the middle of the roof, or rather, like a

black square hole in it,--the trees almost directly over their stems, the fences as lines, the whole nearly as an architect would draw a ground-plan of the house and the inclosures round it. It frightened him to see how the huge masses of rock and old forest- growths hung over the home below. As he descended a little and drew near the ledge of evil name, he was struck with the appearance of a long narrow fissure that ran parallel with it and above it for many rods, not seemingly of very old standing,--for there were many fibres of roots which had evidently been snapped asunder when the rent took place, and some of which were still succulent in both separated portions.

Mr. Bernard had made up his mind, when he set forth, not to come back before he had examined the dreaded ledge. He had half persuaded himself that it was scientific curiosity. He wished to examine the rocks, *to see what flowers grew there*, and perhaps to pick up an adventure in the zoölogical line; for he had on a pair of high, stout boots, and he carried a stick in his hand, which was forked at one extremity, so as to be very convenient to hold down a *crotalus* with, if he should happen to encounter one. He knew the aspect of the ledge, from a distance; for its bald and leprous-looking declivities stood out in their nakedness from the wooded sides of The Mountain, when this was viewed from certain points of the village. But the nearer aspect of the blasted region had something frightful in it. The cliffs were water-worn, as if they had been gnawed for thousands of years by hungry waves. In some places they overhung their base so as to look like leaning towers that might topple over at any minute. In other parts they were scooped into niches or caverns. Here and there they were cracked in deep fissures, some of them of such width that one might enter them, if he cared to run the risk of meeting the regular tenants, who might treat him as an intruder.

Parts of the ledge were cloven perpendicularly, with nothing but cracks or slightly projecting edges in which or on which a foot could find hold. High up on one of these precipitous walls of rock he saw some tufts of flowers, and knew them at once for the same that he had found between the leaves of his Virgil. Not there, surely! No woman would have clung against that steep, rough parapet to gather an idle blossom. And yet the master looked round everywhere, and even up the side of that rock, to see if there were no



signs of a woman's footstep. He peered about curiously, as if his eye might fall on some of those fragments of dress which women leave after them, whenever they run against each other or against anything else,--in crowded ballrooms, in the brushwood after picnics, on the fences after rambles, scattered round over every place that has witnessed an act of violence, where rude hands have been laid upon them. Nothing. Stop, though, one moment. That stone is smooth and polished, as if it had been somewhat worn by the pressure of human feet. There is one twig broken among the stems of that clump of shrubs. He put his foot upon the stone and took hold of the close-clinging shrub. In this way he turned a sharp angle of the rock and found himself on a natural platform, which lay in front of one of the wider fissures,--whether the mouth of a cavern or not he could not yet tell. A flat stone made an easy seat, upon which he sat down, as he was very glad to do, and looked mechanically about him. A small fragment splintered from the rock was at his feet. He took it and threw it down the declivity a little below where he sat. He looked about for a stem or a straw of some kind to bite upon,--a country-instinct,--relic, no doubt, of the old vegetable-feeding habits of Eden. Is that a stem or a straw? He picked it up. It was a hairpin.

To say that Mr. Langdon had a strange sort of thrill shoot through him at the sight of this harmless little implement would be a statement not at variance with the fact of the case. That smooth stone had been often trodden, and by what foot he could not doubt. He rose up from his seat to look round for other signs of a woman's visits. What if there is a cavern here, where she has a retreat, fitted up, perhaps, as anchorites fitted their cells,--nay, it may be, carpeted and mirrored, and with one of those tiger-skins for a couch, such as they say the girl loves to lie on? Let us look, at any rate.

Mr. Bernard walked to the mouth of the cavern or fissure and looked into it. His look was met by the glitter of two diamond eyes, small, sharp, cold, shining out of the darkness, but gliding with a smooth, steady motion towards the light, and himself. He stood fixed, struck dumb, staring back into them with dilating pupils and sudden numbness of fear that cannot move, as in the terror of dreams. The two sparks of light came forward until they grew to circles of flame, and all at once lifted themselves up as if in angry surprise. Then for the first time thrilled in Mr. Bernard's ears the

dreadful sound that nothing which breathes, be it man or brute, can hear unmoved,--the long, loud, stinging whirr, as the huge, thick-bodied reptile shook his many-jointed rattle and flung his jaw back for the fatal stroke. His eyes were drawn as with magnets toward the circles of flame. His ears rung as in the overture to the swooning dream of chloroform. Nature was before man with her anesthetics: the cat's first shake stupefies the mouse; the lion's first shake deadens the man's fear and feeling; and the *crotalus* paralyzes before he strikes. He waited as in a trance,-- waited as one that longs to have the blow fall, and all over, as the man who shall be in two pieces in a second waits for the axe to drop. But while he looked straight into the flaming eyes, it seemed to him that they were losing their light and terror, that they were growing tame and dull; the open jaws closed, the neck fell backward and downward on the coil from which it rose, the charm was dissolving, the numbness was passing away, he could move once more. He heard a light breathing close to his ear, and, half turning, saw the face of Elsie Venner, looking motionless into the reptile's eyes, which had shrunk and faded under the stronger enchantment of her own.

## CHAPTER XIV.

### FAMILY SECRETS.

It was commonly understood in the town of Rockland that Dudley Venner had had a great deal of trouble with that daughter of his, so handsome, yet so peculiar, about whom there were so many strange stories. There was no end to the tales that were told of her extraordinary doings. Yet her name was never coupled with that of any youth or man, until this cousin had provoked remark by his visit; and even then it was rather in the shape of wondering conjectures whether he would dare to make love to her, than in any pretended knowledge of their relations to each other, that the public tongue exercised its village- prerogative of tattle.

The more common version of the trouble at the mansion-house was this:-- Elsie was not exactly in her right mind. Her temper was singular, her tastes were anomalous, her habits were lawless, her antipathies were many and

intense, and she was liable to explosions of ungovernable anger. Some said that was not the worst of it. At nearly fifteen years old, when she was growing fast, and in an irritable state of mind and body, she had had a governess placed over her for whom she had conceived an aversion. It was whispered among a few who knew more of the family secrets than others, that, worried and exasperated by the presence and jealous oversight of this person, Elsie had attempted to get finally rid of her by unlawful means, such as young girls have been known to employ in their straits, and to which the sex at all ages has a certain instinctive tendency, in preference to more palpable instruments for the righting of its wrongs. At any rate, this governess had been taken suddenly ill, and the Doctor had been sent for at midnight. Old Sophy had taken her master into a room apart, and said a few words to him which turned him as white as a sheet. As soon as he recovered himself, he sent Sophy out, called in the old Doctor, and gave him some few hints, on which he acted at once, and had the satisfaction of seeing his patient out of danger before he left in the morning. It is proper to say, that, during the following days, the most thorough search was made in every nook and cranny of those parts of the house which Elsie chiefly haunted, but nothing was found which might be accused of having been the intentional cause of the probably accidental sudden illness of the governess. From this time forward her father was never easy. Should he keep her apart, or shut her up, for fear of risk to others, and so lose every chance of restoring her mind to its healthy tone by kindly influences and intercourse with wholesome natures? There was no proof, only presumption, as to the agency of Elsie in the matter referred to. But the doubt was worse, perhaps, than certainty would have been,--for then he would have known what to do.

He took the old Doctor as his adviser. The shrewd old man listened to the father's story, his explanations of possibilities, of probabilities, of dangers, of hopes. When he had got through, the Doctor looked him in the face steadily, as if he were saying, *Is that all?*

The father's eyes fell. That was not all. There was something at the bottom of his soul which he could not bear to speak of,--nay, which, as often as it reared itself through the dark waves of unworded consciousness into the breathing air of thought, he trod down as the ruined angels tread down a lost soul trying to come up out of the seething sea of torture. Only this one

daughter! No! God never would have ordained such a thing. There was nothing ever heard of like it; it could not be; she was ill,--she would outgrow all these singularities; he had had an aunt who was peculiar; he had heard that hysteric girls showed the strangest forms of moral obliquity for a time, but came right at last. She would change all at once, when her health got more firmly settled in the course of her growth. Are there not rough buds that open into sweet flowers? Are there not fruits, which, while unripe, are not to be tasted or endured, that mature into the richest taste and fragrance? In God's good time she would come to her true nature; her eyes would lose that frightful, cold glitter; her lips would not feel so cold when she pressed them mechanically against his cheek; and that faint birth-mark, her mother swooned when she first saw, would fade wholly out,--it was less marked, surely, now than it used to be!

So Dudley Venner felt, and would have thought, if he had let his thoughts breathe the air of his soul. But the Doctor read through words and thoughts and all into the father's consciousness. There are states of mind that may be shared by two persons in presence of each other, which remain not only unworded, but *unthoughted*, if such a word may be coined for our special need. Such a mutually interpenetrative consciousness there was between the father and the old physician. By a common impulse, both of them rose in a mechanical way and went to the western window, where each started, as he saw the other's look directed towards the white stone that stood in the midst of the small plot of green turf.

The Doctor had, for a moment, forgotten himself, but he looked up at the clouds, which were angry, and said, as if speaking of the weather, "It is dark now, but we hope it will clear up by-and-by. There are a great many more clouds than rains, and more rains than strokes of lightning, and more strokes of lightning than there are people killed. We must let this girl of ours have her way, as far as it is safe. Send away this woman she hates, quietly. Get her a foreigner for a governess, if you can,--one that can dance and sing and will teach her. In the house old Sophy will watch her best. Out of it you must trust her, I am afraid,--for she will not be followed round, and she is in less danger than you think. If she wanders at night, find her, if you can; the woods are not absolutely safe. If she will be friendly with any young people, have them to see her,--young men, especially. She will not love any

one easily, perhaps not at all; yet love would be more like to bring her right than anything else. If any young person seems in danger of falling in love with her, send him to me for counsel."

Dry, hard advice, but given from a kind heart, with a moist eye, and in tones that tried to be cheerful and were full of sympathy. This advice was the key to the more than indulgent treatment which, as we have seen, the girl had received from her father and all about her. The old Doctor often came in, in the kindest, most natural sort of way, got into pleasant relations with Elsie by always treating her in the same easy manner as at the great party, encouraging all her harmless fancies, and rarely reminding her that he was a professional adviser, except when she came out of her own accord, as in the talk they had at the party, telling him of some wild trick she had been playing.

"Let her go to the girls' school, by all means," said the Doctor, when she had begun to talk about it. "Possibly she may take to some of the girls or of the teachers. Anything to interest her. Friendship, love, religion,--whatever will set her nature at work. We must have headway on, or there will be no piloting her. Action first of all, and then we will see what to do with it."

So, when Cousin Richard came along, the Doctor, though he did not like his looks any too well, told her father to encourage his staying for a time. If she liked him, it was good; if she only tolerated him, it was better than nothing.

"You know something about that nephew of yours, during these last years, I suppose?" the Doctor said. "Looks as if he had seen life. Has a scar that was made by a sword-cut, and a white spot on the side of his neck that looks like a bulletmark. I think he has been what folks call a 'hard customer.'"

Dudley Venner owned that he had heard little or nothing of him of late years. He had invited himself, and of course it would not be decent not to receive him as a relative. He thought Elsie rather liked having him about the house for a while. She was very capricious,--acted as if she fancied him one day and disliked him the next. He did not know,--but (he said in a low voice) he had a suspicion that this nephew of his was disposed to take a serious liking to Elsie. What should he do about it, if it turned out so?

The Doctor lifted his eyebrows a little. He thought there was no fear. Elsie was naturally what they call a man-hater, and there was very little danger of any sudden passion springing up between two such young persons. Let him stay awhile; it gives her something to think about.--So he stayed awhile, as we have seen.

The more Mr. Richard became acquainted with the family,--that is, with the two persons of whom it consisted,--the more favorably the idea of a permanent residence in the mansion-house seemed to impress him. The estate was large,-- hundreds of acres, with woodlands and meadows of great value. The father and daughter had been living quietly, and there could not be a doubt that the property which came through the Dudleys must have largely increased of late years. It was evident enough that they had an abundant income, from the way in which Elsie's caprices were indulged. She had horses and carriages to suit herself; she sent to the great city for everything she wanted in the way of dress. Even her diamonds--and the young man knew something about these gems-- must be of considerable value; and yet she wore them carelessly, as it pleased her fancy. She had precious old laces, too, almost worth their weight in diamonds,--laces which had been snatched from altars in ancient Spanish cathedrals during the wars, and which it would not be safe to leave a duchess alone with for ten minutes. The old house was fat with the deposits of rich generations which had gone before. The famous "golden" fireset was a purchase of one of the family who had been in France during the Revolution, and must have come from a princely palace, if not from one of the royal residences. As for silver, the iron closet which had been made in the dining-room wall was running over with it: tea-kettles, coffee-pots, heavy-lidded tankards, chafing-dishes, punch-bowls, all that all the Dudleys had ever used, from the caudle-cup that used to be handed round the young mother's chamber, and the porringer from which children scooped their bread-and-milk with spoons as solid as ingots, to that ominous vessel, on the upper shelf, far back in the dark, with a spout like a slender italic S, out of which the sick and dying, all along the last century, and since, had taken the last drops that passed their lips. Without being much of a scholar, Dick could see well enough, too, that the books in the library had been ordered from the great London houses, whose imprint they bore, by persons that knew what was best and meant to have it. A man does not require much learning to feel pretty sure, when he takes one

of those solid, smooth, velvet- leaved quartos, say a Baskerville Addison, for instance, bound in red morocco, with a margin of gold, as rich as the embroidery of a prince's collar, as Vandyck drew it,--he need not know much to feel pretty sure that a score or two of shelves full of such books mean that it took a long purse, as well as a literary taste, to bring them together.

To all these attractions the mind of this thoughtful young gentleman may be said to have been fully open. He did not disguise from himself, however, that there were a number of drawbacks in the way of his becoming established as the heir of the Dudley mansion-house and fortune. In the first place, Cousin Elsie was, unquestionably, very piquant, very handsome, game as a hawk, and hard to please, which made her worth trying for. But then there was something about Cousin Elsie,--(the small, white scars began stinging, as he said this to himself, and he pushed his sleeve up to look at them,)--there was something about Cousin Elsie he couldn't make out. What was the matter with her eyes, that they sucked your life out of you in that strange way? What did she always wear a necklace for? Had she some such love-token on her neck as the old Don's revolver had left on his? How safe would anybody feel to live with her? Besides, her father would last forever, if he was left to himself. And he may take it into his head to marry again. That would be pleasant!

So talked Cousin Richard to himself, in the calm of the night and in the tranquillity of his own soul. There was much to be said on both sides. It was a balance to be struck after the two columns were added up. He struck the balance, and came to the conclusion that he would fall in love with Elsie Venner.

The intelligent reader will not confound this matured and serious intention of falling in love with the young lady with that mere impulse of the moment before mentioned as an instance of making love. On the contrary, the moment Mr. Richard had made up his mind that he should fall in love with Elsie, he began to be more reserved with her, and to try to make friends in other quarters. Sensible men, you know, care very little what a girl's present fancy is. The question is: Who manages her, and how can you get at that person or those persons? Her foolish little sentiments are all very well in

their way; but business is business, and we can't stop for such trifles. The old political wire-pullers never go near the man they want to gain, if they can help it; they find out who his intimates and managers are, and work through them. Always handle any positively electrical body, whether it is charged with passion, or power, with some non-conductor between you and it, not with your naked hands.-- The above were some of the young gentleman's working axioms; and he proceeded to act in accordance with them.

He began by paying his court more assiduously to his uncle. It was not very hard to ingratiate himself in that quarter; for his manners were insinuating, and his precocious experience of life made him entertaining. The old neglected billiard-room was soon put in order, and Dick, who was a magnificent player, had a series of games with his uncle, in which, singularly enough, he was beaten, though his antagonist had been out of play for years. He evinced a profound interest in the family history, insisted on having the details of its early alliances, and professed a great pride of race, which he had inherited from his father, who, though he had allied himself with the daughter of an alien race, had yet chosen one with the real azure blood in her veins, as proud as if she had Castile and Aragon for her dower and the Cid for her grandpapa. He also asked a great deal of advice, such as inexperienced young persons are in need of, and listened to it with great reverence.

It is not very strange that Uncle Dudley took a kinder view of his nephew than the Judge, who thought he could read a questionable history in his face,-- or the old Doctor, who knew men's temperaments and organizations pretty well, and had his prejudices about races, and could tell an old sword-cut and a bullet-mark in two seconds from a scar got by falling against the fender, or a mark left by king's evil. He could not be expected to share our own prejudices; for he had heard nothing of the wild youth's adventures, or his scamper over the Pampas at short notice. So, then, "Richard Venner, Esquire, guest of Dudley Venner, Esquire, at his elegant mansion," prolonged his visit until his presence became something like a matter of habit, and the neighbors settled it beyond doubt that the fine old house would be illuminated before long for a grand marriage.



He had done pretty well with the father: the next thing was to gain over the nurse. Old Sophy was as cunning as a red fox or a gray woodchuck. She had nothing in the world to do but to watch Elsie; she had nothing to care for but this girl and her father. She had never liked Dick too well; for he used to make faces at her and tease her when he was a boy, and now he was a man there was something about him--she could not tell what--that made her suspicious of him. It was no small matter to get her over to his side.

The jet-black Africans know that gold never looks so well as on the foil of their dark skins. Dick found in his trunk a string of gold beads, such as are manufactured in some of our cities, which he had brought from the gold region of Chili,--so he said,--for the express purpose of giving them to old Sophy. These Africans, too, have a perfect passion for gay-colored clothing; being condemned by Nature, as it were, to a perpetual mourning-suit, they love to enliven it with all sorts of variegated stuffs of sprightly patterns, aflame with red and yellow. The considerate young man had remembered this, too, and brought home for Sophy some handkerchiefs of rainbow hue, which had been strangely overlooked till now, at the bottom of one of his trunks. Old Sophy took his gifts, but kept her black eyes open and watched every movement of the young people all the more closely. It was through her that the father had always known most of the actions and tendencies of his daughter.

In the mean time the strange adventure on The Mountain had brought the young master into new relations with Elsie. She had saved him in the extremity of peril by the exercise of some mysterious power. He was grateful, and yet shuddered at the recollection of the whole scene. In his dreams he was pursued by the glare of cold glittering eyes,--whether they were in the head of a woman or of a reptile he could not always tell, the images had so run together. But he could not help seeing that the eyes of the young girl had been often, very often, turned upon him when he had been looking away, and fell as his own glance met them. Helen Darley told him very plainly that this girl was thinking about him more than about her book. Dick Venner found she was getting more constant in her attendance at school. He learned, on inquiry, that there was a new master, a handsome young man. The handsome young man would not have liked the look that came over Dick's face when he heard this fact mentioned.

In short, everything was getting tangled up together, and there would be no chance of disentangling the threads in this chapter.

## ON THE FORMATION OF GALLERIES OF ART

It is barely fifty years since England refused the gift of the pictures that now constitute the Dulwich Gallery. So rapidly, however, did public opinion and taste become enlightened, that twenty-five years afterwards Parliament voted seventy-three thousand pounds for the purchase of thirty-eight pictures collected by Mr. Angerstein. This was the commencement of their National Gallery. In 1790 but three national galleries existed in Europe,--those of Dresden, Florence, and Amsterdam. The Louvre was then first originated by a decree of the Constituent Assembly of France. England now spends with open hand on schools of design, the accumulation of treasures of art of every epoch and character, and whatever tends to elevate the taste and enlarge the means of the artistic education of her people,--perceiving, with far-sighted wisdom, that, through improved manufacture and riper civilization, eventually a tenfold return will result to her treasury. The nations of Europe exult over a new acquisition to their galleries, though its cost may have exceeded a hundred thousand dollars.

We are in that stage of indifference and neglect that one of our wealthiest cities recently refused to accept the donation of a gallery of some three hundred pictures, collected with taste and discrimination by a generous lover of art, because it did not wish to be put to the expense of finding wall-room for them. But this spirit is departing, and now our slowness or reluctance is rather the result of a want of knowledge and critical judgment than of a want of feeling for art.

To stimulate this feeling, it is requisite that our public should have free access to galleries in which shall be exhibited in chronological series specimens of the art of all nations and schools, arranged according to their motives and the special influences that attended their development. After this manner a mental and artistic history of the world may be spread out like a chart before the student, while the artist with equal facility can trace up to their origin the varied methods, styles, and excellences of each prominent

epoch. A gallery of art is a perpetual feast of the most intense and refined enjoyment to every one capable of entering into its phases of thought and execution, analyzing its external and internal being, and tracing the mysterious transformations of spirit into form. It has been well said, that a complete gallery, on a broad foundation, in which all tastes, styles, and methods harmoniously mingle, is a court of final appeal of one phase of civilization against another, from an examination of which we can sum up their respective qualities and merits, drawing therefrom for our own edification as from a perpetual wellspring of inspiration and knowledge. But if we sit in judgment upon the great departed, they likewise sit in judgment upon us. And it is precisely where such means of testing artistic growth best exist that modern art is at once most humble and most aspiring: conscious of its own power and in many respects superior technical advantages, both it and the public are still content to go to the past for instruction, and each to seek to rise above the transitory bias of fashion or local passions to a standard of taste that will abide world- wide comparison and criticism.

An edifice for a gallery or museum of art should be fire-proof, sufficiently isolated for light and effective ornamentation, and constructed so as to admit of indefinite extension. Its chief feature should be the suitable accommodation and exhibition of its contents. But provision should be made for its becoming eventually in architectural effect consistent with its object. The skeleton of such a building need not be costly. Its chief expense would be in its ultimate adornment with marble facings, richly colored stones, sculpture or frescoes, according to a design which should enforce strict purity of taste and conformity to its motive. This gradual completion, as happened to the mediæval monuments of Europe, could be extended through many generations, which would thus be linked with one another in a common object of artistic and patriotic pride gradually growing up among them, as a national monument, with its foundations deeply laid in a unity of feeling and those desirable associations of love and veneration which in older civilizations so delightfully harmonize the past with the present. Each epoch of artists would be instructed by the skill of its predecessor, and stimulated to connect its name permanently with so glorious a shrine. Wealth, as in the days of democratic Greece and Italy, would be lavished upon the completion of a temple of art destined to endure as long as

material can defy time, a monument of the people's taste and munificence. There would be born among them the spirit of those Athenians who said to Phidias, when he asked if he should use ivory or marble for the statue of their protecting goddess, "Use that material which is most *worthy* of our city."

Until recently, no attention has been paid, even in Europe, to historical sequence and special motives in the arrangement of galleries. As in the Pitti Gallery, pictures were generally hung so as to conform to the symmetry of the rooms,--various styles, schools, and epochs being intermixed. As the progress of ideas is of more importance to note than the variations of styles or the degree of technical merit, the chief attention in selection and position should be given to lucidly exhibiting the varied phases of artistic thought among the diverse races and widely separated eras and inspirations which gave them being. The mechanism of art is, however, so intimately interwoven with the idea, that by giving precedence to the latter we most readily arrive at the best arrangement of the former. Each cycle of civilization should have its special department, Paganism and Christianity being kept apart, and not, as in the Florentine Gallery, intermixed,--presenting a strange jumble of classical statuary and modern paintings in anachronistic disorder, to the loss of the finest properties of each to the eye, and the destruction of that unity of motive and harmonious association so essential to the proper exhibition of art. For it is essential that every variety of artistic development should be associated solely with those objects or conditions most in keeping with its inspirations. In this way we quickest come to an understanding of its originating idea, and sympathize with its feeling, tracing its progress from infancy to maturity and decay, and comparing it as a whole with corresponding or rival varieties of artistic development. This systematized variety of one great unity is of the highest importance in placing the spectator in affinity with art as a whole and with its diversities of character, and in giving him sound stand- points of comparison and criticism. In this way, as in the Louvre, feeling and thought are readily transported from one epoch of civilization to another, grasping the motives and execution of each with pleasurable accuracy. We perceive that no conventional standard of criticism, founded upon the opinions or fashions of one age, is applicable to all. To rightly comprehend each, we must broadly survey the entire ground of art, and make ourselves for the

time members, as it were, of the political and social conditions of life that give origin to the objects of our investigations. This philosophical mode of viewing art does not exclude an æsthetic point of view, but rather heightens that and makes it more intelligible. Paganism would be subdivided into the various national forms that illustrated its rise and fall. Egypt, India, China, Assyria, Greece, Etruria, and Rome, would stand each by itself as a component part of a great whole: so with Christianity, in such shapes as have already taken foothold in history, the Latin, Byzantine, Lombard, Mediæval, Renaissance, and Protestant art, subdivided into its diversified schools or leading ideas, all graphically arranged so as to demonstrate, amid the infinite varieties of humanity, a divine unity of origin and design, linking together mankind in one common family.

Beside statuary and paintings, an institution of this nature should contain specimens of every kind of industry in which art is the primary inspiration, to illustrate the qualities and degrees of social refinement in nations and eras. This would include every variety of ornamental art in which invention and skill are conspicuous, as well as those works more directly inspired by higher motives and intended as a joy forever. Architecture and objects not transportable could be represented by casts or photographs. Models, drawings, and engravings also come within its scope; and there should be attached to the parent gallery a library of reference and a lecture- and reading-room.

Connected with it there might be schools of design for improvement in ornamental manufacture, the development of architecture, and whatever aids to refine and give beauty to social life, including a simple academic system for the elementary branches of drawing and coloring, upon a scientific basis of accumulated knowledge and experience, providing models and other advantages not readily accessible to private resources, but leaving individual genius free to follow its own promptings upon a well-laid technical foundation. As soon as the young artist has acquired the grammar of his profession, he should be sent forth to study directly from Nature and to mature his invention unfettered by authoritative academic system, which more frequently fosters conventionalism and imposes trammels upon talent than endows it with strength and freedom.

Such is a brief sketch of institutions feasible amongst us from humble beginnings by individual enterprise. Once founded and their value demonstrated, the countenance of the state may be hopefully invoked. Their very existence would become an incentive to munificent gifts. Individuals owning fine works of art would grow ambitious to have their memories associated with patriotic enterprise. Art invokes liberality and evokes fraternity. The sentiment, that there is a common property in the productions of genius, making possession a trust for the public welfare, will increase among those by whose taste and wealth they have been accumulated. Masterpieces will cease to be regarded as the selfish acquisitions of covetous amateurs, but, like spoken truth, will become the inalienable birthright of the people,--finding their way freely and generously, through the magnetic influences of public spirit and pertinent examples, to those depositories where they can most efficaciously perform their mission of truth and beauty to the world. Then the people themselves will begin to take pride in their artistic wealth, to honor artists as they now do soldiers and statesmen, and to value the more highly those virtues which are interwoven with all noble effort.

In 1823, when the National Gallery of England was founded, the English were nearly as dead to art as we are now. A few amateurs alone cultivated it, but there was no general sympathy with nor knowledge of it. Yet by 1837, in donations alone, the gallery had received one hundred and thirty-seven pictures. Since that period gifts have increased tenfold in value and numbers. Connected with it, and a part of that noble, comprehensive, and munificent system of art- education which the British government has inculcated, are the British and Kensington Museums. Schools of design, with every appliance for the growth of art, have rapidly sprung into existence. Private enterprise and research have correspondingly increased. British agents, with unstinted means, are everywhere ransacking the earth in quest of everything that can add to the value and utility of their national and private collections. A keen regard for all that concerns art, a desire for its national development, an enlightened standard of criticism, and with it the most eloquent art-literature of any tongue, have all recently sprung into existence in our motherland. All honor to those generous spirits that have produced this,--and honor to the nation that so wisely expends its wealth! A noble example for America! England also throws open to the competition of

the world plans for her public buildings and monuments. Mistakes and defects there have been, but an honest desire for amendment and to promote the intellectual growth of the nation now characterizes her pioneers in this cause. And what progress! Between 1823 and 1850, in the Museum alone, there have been expended \$10,000,000. Within twelve years, \$450,000 have been expended on the National Gallery for pictures, and yet its largest accession of treasures is by gifts and bequests. Lately, beside the Pisani Veronese bought for \$70,000, eight other paintings have been purchased at a cost of \$50,000. In 1858, \$36,000 were given for the choice of twenty, of the early Italian schools, from the Lombardi Gallery at Florence,--not masterpieces, but simply characteristic specimens, more or less restored. The average cost of late acquisitions has been about \$6,000 each. In 1858, there were 823,000 visitors to both branches of the National Gallery. Who can estimate not alone the pleasure and instruction afforded by such an institution to its million of annual visitors, but the ideas and inspiration thence born, destined to grow and fructify to the glory and good of the nation? At present there are seventy-seven schools of art in England, attended by 68,000 students. In 1859, they and kindred institutions received a public grant of nearly \$450,000. The appropriation for the British Museum alone, for 1860, is £77,452.

To the Louvre Louis XVIII. added one hundred and eleven pictures, at a cost of about \$132,000; Charles X., twenty-four, at \$12,000; Louis Philippe, fifty-three, at \$14,500; and Napoleon III., thus far, thirty paintings, costing \$200,000, one of which, the Murillo, cost \$125,000. Russia is following in the same path. Italy, Greece, and Egypt, by stringent regulations, are making it yearly more difficult for any precious work to leave their shores. If, therefore, America is ever to follow in the same path, she must soon bestir herself, or she will have nothing but barren fields to glean from.



## DARWIN ON THE ORIGIN OF SPECIES

Novelties are enticing to most people: to us they are simply annoying. We cling to a long-accepted theory, just as we cling to an old suit of clothes. A new theory, like a new pair of breeches, ("The Atlantic" still affects the older type of nether garment,) is sure to have hard-fitting places; or even when no particular fault can be found with the article, it oppresses with a sense of general discomfort. New notions and new styles worry us, till we get well used to them, which is only by slow degrees.

Wherefore, in Galileo's time, we might have helped to proscribe, or to burn--had he been stubborn enough to warrant cremation--even the great pioneer of inductive research; although, when we had fairly recovered our composure, and had leisurely excogitated the matter, we might have come to conclude that the new doctrine was better than the old one, after all, at least for those who had nothing to unlearn. Such being our habitual state of mind, it may well be believed that the perusal of the new book "On the Origin of Species by Means of Natural Selection" left an uncomfortable impression, in spite of its plausible and winning ways. We were not wholly unprepared for it, as many of our contemporaries seem to have been. The scientific reading in which we indulge as a relaxation from severer studies had raised dim forebodings. Investigations about the succession of species in time, and their actual geographical distribution over the earth's surface, were leading up from all sides and in various ways to the question of their origin. Now and then we encountered a sentence, like Professor Owen's "axiom of the continuous operation of the ordained becoming of living things," which haunted us like an apparition. For, dim as our conception must needs be as to what such oracular and grandiloquent phrases might really mean, we felt confident that they presaged no good to old beliefs. Foreseeing, yet deprecating, the coming time of trouble, we still hoped, that, with some repairs and make-shifts, the old views might last out our days. *Après nous le déluge*. Still, not to lag behind the rest of the world, we read the book in which the new theory is promulgated. We took it up, like our neighbors, and, as was natural, in a somewhat captious frame of mind.

Well, we found no cause of quarrel with the first chapter. Here the author takes us directly to the barn-yard and the kitchen-garden. Like an honorable rural member of our General Court, who sat silent until, near the close of a long session, a bill requiring all swine at large to wear pokes was introduced, when he claimed the privilege of addressing the house, on the proper ground that he had been "brought up among the pigs, and knew all about them,"--so we were brought up among cows and cabbages; and the lowing of cattle, the cackling of hens, and the cooing of pigeons were sounds native and pleasant to our ears. So "Variation under Domestication" dealt with familiar subjects in a natural way, and gently introduced "Variation under Nature," which seemed likely enough. Then follows "Struggle for Existence,"--a principle which we experimentally know to be true and cogent,--bringing the comfortable assurance, that man, even upon Leviathan Hobbes's theory of society, is no worse than the rest of creation, since all Nature is at war, one species with another, and the nearer kindred the more internecine,--bringing in thousand-fold confirmation and extension of the Malthusian doctrine, that population tends far to outrun means of subsistence throughout the animal and vegetable world, and has to be kept down by sharp preventive checks; so that not more than one of a hundred or a thousand of the individuals whose existence is so wonderfully and so sedulously provided for ever comes to anything, under ordinary circumstances; so the lucky and the strong must prevail, and the weaker and ill-favored must perish;--and then follows, as naturally as one sheep follows another, the chapter on "Natural Selection," Darwin's *cheval de bataille*, which is very much the Napoleonic doctrine, that Providence favors the strongest battalions,--that, since many more individuals are born than can possibly survive, those individuals and those variations which possess any advantage, however slight, over the rest, are in the long run sure to survive, to propagate, and to occupy the limited field, to the exclusion or destruction of the weaker brethren. All this we pondered, and could not much object to. In fact, we began to contract a liking for a system which at the outset illustrates the advantages of good breeding, and which makes the most "of every creature's best."

Could we "let by-gones be by-gones," and, beginning now, go on improving and diversifying for the future by natural selection,--could we even take up the theory at the introduction of the actually existing species, we should be

well content, and so perhaps would most naturalists be. It is by no means difficult to believe that varieties are incipient or possible species, when we see what trouble naturalists, especially botanists, have to distinguish between them,-- one regarding as a true species what another regards as a variety; when the progress of knowledge increases, rather than diminishes, the number of doubtful instances; and when there is less agreement than ever among naturalists as to what the basis is in Nature upon which our idea of species reposes, or how the word is practically to be defined. Indeed, when we consider the endless disputes of naturalists and ethnologists over the human races, as to whether they belong to one species or to more, and if to more, whether to three, or five, or fifty, we can hardly help fancying that both may be right,--or rather, that the uni- humanitarians would have been right several thousand years ago, and the multi- humanitarians will be a few thousand years later; while at present the safe thing to say is, that, probably, there is some truth on both sides. "Natural selection," Darwin remarks, "leads to divergence of character; for more living beings can be supported on the same area the more they diverge in structure, habits, and constitution," (a principle which, by the way, is paralleled and illustrated by the diversification of human labor,) and also leads to much extinction of intermediate or unimproved forms. Now, though this divergence may "steadily tend to increase," yet this is evidently a slow process in Nature, and liable to much counteraction wherever man does not interpose, and so not likely to work much harm for the future. And if natural selection, with artificial to help it, will produce better animals and better men than the present, and fit them better to "the conditions of existence," why, let it work, say we, to the top of its bent. There is still room enough for improvement. Only let us hope that it always works for good: if not, the divergent lines on Darwin's diagram of transmutation made easy ominously show what small deviations from the straight path may come to in the end.

The prospect of the future, accordingly, is on the whole pleasant and encouraging. It is only the backward glance, the gaze up the long vista of the past, that reveals anything alarming. Here the lines converge as they recede into the geological ages, and point to conclusions which, upon the theory, are inevitable, but by no means welcome. The very first step backwards makes the Negro and the Hottentot our blood-relations;--not that reason or Scripture objects to that, though pride may. The next suggests a

closer association of our ancestors of the olden time with "our poor relations" of the quadrumanous family than we like to acknowledge. Fortunately, however,--even if we must account for him scientifically,--man with his two feet stands upon a foundation of his own. Intermediate links between the *Bimana* and the *Quadrumana* are lacking altogether; so that, put the genealogy of the brutes upon what footing you will, the four-handed races will not serve for our forerunners;---at least, not until some monkey, live or fossil, is producible with great toes, instead of thumbs, upon his nether extremities; or until some lucky geologist turns up the bones of his ancestor and prototype in France or England, who was so busy "napping the chuckie-stanes" and chipping out flint knives and arrow-heads in the time of the drift, very many ages ago,--before the British Channel existed, says Lyell<sup>1</sup>,--and until these men of the olden time are shown to have worn their great-toes in a divergent and thumb-like fashion. That would be evidence indeed: but until some testimony of the sort is produced, we must needs believe in the separate and special creation of man, however it may have been with the lower animals and with plants.

No doubt, the full development and symmetry of Darwin's hypothesis strongly suggest the evolution of the human no less than the lower animal races out of some simple primordial animal,--that all are equally "lineal descendants of sense few beings which lived long before the first bed of the Silurian system was deposited." But, as the author speaks disrespectfully of spontaneous generation, and accepts a supernatural beginning of life on earth, in some form or forms of being which included potentially all that have since existed and are yet to be, he is thereby not warranted to extend his inferences beyond the evidence or the fair probability. There seems as great likelihood that one special origination should be followed by another upon fitting occasion, (such as the introduction of man,) as that one form should be transmuted into another upon fitting occasion, as, for instance, in the succession of species which differ from each other only in some details. To compare small things with great in a homely illustration: man alters from time to time his instruments or machines, as new circumstances or conditions may require and his wit suggest. Minor alterations and improvements he adds to the machine he possesses: he adapts a new rig or a new rudder to an old boat: this answers to *variation*. If boats could engender, the variations would doubtless be propagated, like those of

domestic cattle. In course of time the old ones would be worn out or wrecked; the best sorts would be chosen for each particular use, and further improved upon, and so the primordial boat be developed into the scow, the skiff, the sloop, and other species of water-craft,--the very diversification, as well as the successive improvements, entailing the disappearance of many intermediate forms, less adapted to any one particular purpose; wherefore these go slowly out of use, and become extinct species: this is *natural selection*. Now let a great and important advance be made, like that of steam-navigation: here, though the engine might be added to the old vessel, yet the wiser and therefore the actual way is to make a new vessel on a modified plan: this may answer to *specific creation*. Anyhow, the one does not necessarily exclude the other. Variation and natural selection may play their part, and so may specific creation also. Why not?

\*Vide *Proceedings of the British Association for the Advancement of Science*, 1859, and *London Athenæum*, passim. It appears to be conceded that these "celts" or stone knives are artificial productions, and of the age of the mammoth, the fossil rhinoceros, etc.

This leads us to ask for the reasons which call for this new theory of transmutation. The beginning of things must needs lie in obscurity, beyond the bounds of proof, though within those of conjecture or of analogical inference. Why not hold fast to the customary view, that all species were directly, instead of indirectly, created after their respective kinds, as we now behold them,--and that in a manner which, passing our comprehension, we intuitively refer to the supernatural? Why this continual striving after "the unattained and dim,"--these anxious endeavors, especially of late years, by naturalists and philosophers of various schools and different tendencies, to penetrate what one of them calls "the mystery of mysteries," the origin of species? To this, in general, sufficient answer may be found in the activity of the human intellect, "the delirious yet divine desire to know," stimulated as it has been by its own success in unveiling the laws and processes of inorganic Nature,--in the fact that the principal triumphs of our age in physical science have consisted in tracing connections where none were known before, in reducing heterogeneous phenomena to a common cause or origin, in a manner quite analogous to that of the reduction of supposed independently originated species to a common ultimate origin,--thus, and in various other ways, largely and legitimately extending the domain of

secondary causes. Surely the scientific mind of an age which contemplates the solar system as evolved from a common, revolving, fluid mass,-- which, through experimental research, has come to regard light, heat, electricity, magnetism, chemical affinity, and mechanical power as varieties or derivative and convertible forms of one force, instead of independent species,-- which has brought the so-called elementary kinds of matter, such as the metals, into kindred groups, and raised the question, whether the members of each group may not be mere varieties of one species,--and which speculates steadily in the direction of the ultimate unity of matter, of a sort of prototype or simple element which may be to the ordinary species of matter what the *protozoa* or component cells of an organism are to the higher sorts of animals and plants,--the mind of such an age cannot be expected to let the old belief about species pass unquestioned.

It will raise the question, how the diverse sorts of plants and animals came to be as they are and where they are, and will allow that the whole inquiry transcends its powers only when all endeavors have failed. Granting the origin to be supernatural, or miraculous even, will not arrest the inquiry. All real origination, the philosophers will say, is supernatural; their very question is, whether we have yet gone back to the origin, and can affirm that the present forms of plants and animals are the primordial, the miraculously created ones. And even if they admit that, they will still inquire into the order of the phenomena, into the form of the miracle. You might as well expect the child to grow up content with what it is told about the advent of its infant brother. Indeed, to learn that the new-comer is the gift of God, far from lulling inquiry, only stimulates speculation as to how the precious gift was bestowed. That questioning child is father to the man,--is philosopher in short- clothes.

Since, then, questions about the origin of species will be raised, and have been raised,--and since the theorizings, however different in particulars, all proceed upon the notion that one species of plant or animal is somehow derived from another, that the different sorts which now flourish are lineal (or unlineal) descendants of other and earlier sorts,--it now concerns us to ask, What are the grounds in Nature, the admitted facts, which suggest hypotheses of derivation, in some shape or other? Reasons there must be, and plausible ones, for the persistent recurrence of theories upon this

genetic basis. A study of Darwin's book, and a general glance at the present state of the natural sciences, enable us to gather the following as perhaps the most suggestive and influential. We can only enumerate them here, without much indication of their particular bearing. There is,--

1. The general fact of variability;--the patent fact, that all species vary more or less; that domesticated plants and animals, being in conditions favorable to the production and preservation of varieties, are apt to vary widely; and that by interbreeding, any variety may be fixed into a race, that is, into a variety which comes true from seed. Many such races, it is allowed, differ from each other in structure and appearance as widely as do many admitted species; and it is practically very difficult, perhaps impossible, to draw a clear line between races and species. Witness the human races, for instance.

Wild species also vary, perhaps about as widely as those of domestication, though in different ways. Some of them appear to vary little, others moderately, others immoderately, to the great bewilderment of systematic botanists and zoologists, and their increasing disagreement as to whether various forms shall be held to be original species or marked varieties. Moreover, the degree to which the descendants of the same stock, varying in different directions, may at length diverge is unknown. All we know is, that varieties are themselves variable, and that very diverse forms have been educed from one stock.

2. Species of the same genus are not distinguished from each other by equal amounts of difference. There is diversity in this respect analogous to that of the varieties of a polymorphous species, some of them slight, others extreme. And in large genera the unequal resemblance shows itself in the clustering of the species around several types or central species, like satellites around their respective planets. Obviously suggestive this of the hypothesis that they were satellites, not thrown off by revolution, like the moons of Jupiter, Saturn, and our own solitary moon, but gradually and peacefully detached by divergent variation. That such closely related species may be only varieties of higher grade, earlier origin, or more favored evolution, is not a very violent supposition. Anyhow, it was a supposition sure to be made.

3. The actual geographical distribution of species upon the earth's surface tends to suggest the same notion. For, as a general thing, all or most of the species of a peculiar genus or other type are grouped in the same country, or occupy continuous, proximate, or accessible areas. So well does this rule hold, so general is the implication that kindred species are or were associated geographically, that most trustworthy naturalists, quite free from hypotheses of transmutation, are constantly inferring former geographical continuity between parts of the world now widely disjoined, in order to account thereby for the generic similarities among their inhabitants. Yet no scientific explanation has been offered to account for the geographical association of kindred species, except the hypothesis of a common origin.

4. Here the fact of the antiquity of creation, and in particular of the present kinds of the earth's inhabitants, or of a large part of them, comes in to rebut the objection, that there has not been time enough for any marked diversification of living things through divergent variation,--not time enough for varieties to have diverged into what we call species.

So long as the existing species of plants and animals were thought to have originated a few thousand years ago and without predecessors, there was no room for a theory of derivation of one sort from another, nor time enough even to account for the establishment of the races which are generally believed to have diverged from a common stock. Not that five or six thousand years was a short allowance for this; but because some of our familiar domesticated varieties of grain, of fowls, and of other animals, were pictured and mummified by the old Egyptians more than half that number of years ago, if not much earlier. Indeed, perhaps the strongest argument for the original plurality of human species was drawn from the identification of some of the present races of men upon these early historical monuments and records.

But this very extension of the current chronology, if we may rely upon the archaeologists, removes the difficulty by opening up a longer vista. So does the discovery in Europe of remains and implements of pre-historic races of men to whom the use of metals was unknown,--men of the *stone age*, as the Scandinavian archaeologists designate them. And now, "axes and knives of flint, evidently wrought by human skill, are found in beds of the drift at



Amiens, (also in other places, both in France and England,) associated with the bones of extinct species of animals." These implements, indeed, were noticed twenty years ago; at a place in Suffolk they have been exhumed from time to time for more than a century; but the full confirmation, the recognition of the age of the deposit in which the implements occur, their abundance, and the appreciation of their bearings upon most interesting questions, belong to the present time. To complete the connection of these primitive people with the fossil ages, the French geologists, we are told, have now "found these axes in Picardy associated with remains of *Elephas primigenius*, *Rhinoceros tichorhinus*, *Equus fossilis*, and an extinct species of *Bos*."<sup>1</sup> In plain language, these workers in flint lived in the time of the mammoth, of a rhinoceros now extinct, and along with horses and cattle unlike any now existing,--specifically different, as naturalists say, from those with which man is now associated. Their connection with existing human races may perhaps be traced through the intervening people of the stone age, who were succeeded by the people of the bronze age, and these by workers in iron.<sup>2</sup> Now, various evidence carries back the existence of many of the present lower species of animals, and probably of a larger number of plants, to the same drift period. All agree that this was very many thousand years ago. Agassiz tells us that the same species of polyps which are now building coral walls around the present peninsula of Florida actually made that peninsula, and have been building there for centuries which must be reckoned by thousands.

<sup>1</sup>See Correspondence of M. Nicklès, in *American Journal of Science and Arts*, for March, 1860.

<sup>2</sup>See Morlet, *Some General Views on Archæology*, in *American Journal of Science and Arts*, for January, 1860, translated from *Bulletin de la Société Vaudoise*, 1859.

5. The overlapping of existing and extinct species, and the seemingly gradual transition of the life of the drift period into that of the present, may be turned to the same account. Mammoths, mastodons, and Irish elks, now extinct, must have lived down to human, if not almost to historic times. Perhaps the last dodo did not long outlive his huge New Zealand kindred. The auroch, once the companion of mammoths, still survives, but apparently owes his present and precarious existence to man's care. Now, nothing that we know of forbids the hypothesis that some new species have

been independently and supernaturally created within the period which other species have survived. It may even be believed that man was created in the days of the mammoth, became extinct, and was recreated at a later date. But why not say the same of the auroch, contemporary both of the old man and of the new? Still it is more natural, if not inevitable, to infer, that, if the aurochs of that olden time were the ancestors of the aurochs of the Lithuanian forests, so likewise were the men of that age--if men they were--the ancestors of the present human races. Then, whoever concludes that these primitive makers of rude flint axes and knives were the ancestors of the better workmen of the succeeding stone age, and these again of the succeeding artificers in brass and iron, will also be likely to suppose that the *Equus* and *Bos* of that time were the remote progenitors of our own horses and cattle. In all candor we must at least concede that such considerations suggest a genetic descent from the drift period down to the present, and allow time enough--if time is of any account--for variation and natural selection to work out some appreciable results in the way of divergence into races or even into so-called species. Whatever might have been thought, when geological time was supposed to be separated from the present era by a clear line, it is certain that a gradual replacement of old forms by new ones is strongly suggestive of some mode of origination which may still be operative. When species, like individuals, were found to die out one by one, and apparently to come in one by one, a theory for what Owen sonorously calls "the continuous operation of the ordained becoming of living things" could not be far off.

That all such theories should take the form of a derivation of the new from the old seems to be inevitable, perhaps from our inability to conceive of any other line of secondary causes, in this connection. Owen himself is apparently in travail with some transmutation theory of his own conceiving, which may yet see the light, although Darwin's came first to the birth. Different as the two theories will probably be in particulars, they cannot fail to exhibit that fundamental resemblance in this respect which betokens a community of origin, a common foundation on the general facts and the obvious suggestions of modern science. Indeed,--to turn the point of a taking simile directed against Darwin, --the difference between the Darwinian and the Owenian hypotheses may, after all, be only that between homoeopathic and heroic doses of the same drug.

If theories of derivation could only stop here, content with explaining the diversification and succession of species between the tertiary period and the present time, through natural agencies or secondary causes still in operation, we fancy they would not be generally or violently objected to by the *savans* of the present day. But it is hard, if not impossible, to find a stopping-place. Some of the facts or accepted conclusions already referred to, and several others, of a more general character, which must be taken into the account, impel the theory onward with accumulated force. *Vires* (not to say *virus*) *acquirit eundo*. The theory hitches on wonderfully well to Lyell's uniformitarian theory in geology,--that the thing that has been is the thing that is and shall be,--that the natural operations now going on will account for all geological changes in a quiet and easy way, only give them time enough, so connecting the present and the proximate with the farthest past by almost imperceptible gradations,--a view which finds large and increasing, if not general, acceptance in physical geology, and of which Darwin's theory is the natural complement.

So the Darwinian theory, once getting a foothold, marches boldly on, follows the supposed near ancestors of our present species farther and yet farther back into the dim past, and ends with an analogical inference which "makes the whole world kin." As we said at the beginning, this upshot discomposes us. Several features of the theory have an uncanny look. They may prove to be innocent: but their first aspect is suspicious, and high authorities pronounce the whole thing to be positively mischievous.

In this dilemma we are going to take advice. Following the bent of our prejudices, and hoping to fortify these by new and strong arguments, we are going now to read the principal reviews which undertake to demolish the theory; --with what result our readers shall be duly informed.

Meanwhile, we call attention to the fact, that the Appletons have just brought out a second and revised edition of Mr. Darwin's book, with numerous corrections, important additions, and a preface, all prepared by the author for this edition, in advance of a new English edition.

# VANITY

## VANITY (1).

(ON A PICTURE OF HERODIAS'S DAUGHTER BY LUINI.)

Alas, Salome! Could'st thou know  
How great man is,--how great thou art,--  
What destined worlds of weal or woe  
Lurk in the shallowest human heart,--

From thee thy vanities would drop,  
Like lusts in noble anger spurned  
By one who finds, beyond all hope,  
The passion of his youth returned.

Ah, sun-bright face, whose brittle smile  
Is cold as sunbeams flashed on ice!  
Ah, lips how sweet, yet hard the while!  
Ah, soul too barren even for vice!

Mirror of Vanity! Those eyes  
No beam the less around them shed,  
Albeit in that red scarf there lies  
The Dancer's meed,--the Prophet's head.

## VANITY (2.)

### I.

False and Fair! Beware, beware!  
There is a Tale that stabs at thee!  
The Arab Seer! he stripped thee bare  
Long since! He knew thee, Vanity!  
By day a mincing foot is thine:  
Thou runnest along the spider's line:--  
Ay, but heavy sounds thy tread  
By night, among the uncoffined dead!

### II.

Fair and Foul! Thy mate, the Ghoul,  
Beats, bat-like, at thy golden gate!  
Around the graves the night-winds howl:  
"Arise!" they cry, "thy feast doth wait!"  
Dainty fingers thine, and nice,  
With thy bodkin picking rice!--

Ay, but when the night's o'erhead,  
Limb from limb they rend the dead!

## REVIEW AND LITERARY NOTICES

*Popular Astronomy. A Concise Elementary Treatise on the Sun, Planets, Satellites, and Comets.* By O.M. MITCHELL, Director of the Cincinnati and Dudley Observatories. New York. 1860.

In this volume Professor Mitchell gives a very clear, and, in the general plan pursued, a very good account of the methods and results of investigation in modern astronomy. He has explained with great fulness the laws of motion of the heavenly bodies, and has thus aimed at giving more than the collection of disconnected facts which frequently form the staple of elementary works on astronomy.

In doing this, however, he has fallen into errors so numerous, and occasionally so grave, that they are difficult to be accounted for, except on the supposition that some portions of the work were written in great haste. Passing over a few mere oversights, such as a statement from which it would follow that a transit of Venus occurred every eight years, mistakes of dates, etc., we cite the following.

On page 114, speaking of Kepler's third law, the author says, "And even those extraordinary objects, the revolving double stars, are subject to the same controlling law." Since Kepler's third law expresses a relationship between the motions of three bodies, two of which revolve around a third much larger than either, it is a logical impossibility that a system of only two bodies should conform to this law.

On page 182, it is stated, that Newton's proving, that, if a body revolved in an elliptical orbit with the sun as a focus, the force of gravitation toward the sun would always be in the inverse ratio of the square of its distance, "was equivalent to proving, that, if a body in space, free to move, received a single impulse, and at the same moment was attracted to a fixed centre by a force which diminished as the square of the distance at which it operated increased, such a body, thus deflected from its rectilinear path, would

describe an ellipse," etc. Not only does this deduction, being made in the logical form,

If A is B, X is Y;  
but X is Y;  
therefore A is B,

not follow at all, but it is absolutely not true. The body under the circumstances might describe an hyperbola as well as an ellipse, as Professor Mitchell himself subsequently remarks.

The author's explanation of the manner in which the attraction of the sun changes the position of the moon's orbit is entirely at fault. He supposes the line of nodes of the moon's orbit perpendicular to the line joining the centres of the earth and sun, and the moon to start from her ascending node toward the sun, and says that in this case the effect of the sun's attraction will be to diminish the inclination of the moon's orbit during the first half of the revolution, and thus cause the node to retrograde; and to increase it during the second half, and thus cause the nodes to retrograde. But the real effect of the sun's attraction, in the case supposed, would be to diminish the inclination during the first quarter of its revolution, to increase it during the second, to diminish it again during the third, and increase it again during the fourth, as shown by Newton a century and a half ago.

In Chapter XV. we find the greatest number of errors. Take, for example, the following computation of the diminution of gravity at the surface of the sun in consequence of the centrifugal force,--part of the data being, that a pound at the earth's surface will weigh twenty-eight pounds at the sun's surface, and that the centrifugal force at the earth's equator is  $1/289$  of gravity.

"Now, if the sun rotated in the same time as the earth, and their diameters were equal, the centrifugal force on the equators of the two orbs would be equal. But the sun's radius is about 111 times that of the earth, and if the period of rotation were the same, the centrifugal force at the sun's equator would be greater than that at the earth's in the ratio of  $111^2$  to 1, or, more exactly, in the ratio of 12,342.27 to 1. But the sun rotates on its axis much slower than the earth, requiring more than 25 days for one revolution. This

will reduce the above in the ratio of 1 to  $25^2$ , or 1 to 625; so that we shall have the earth's equatorial centrifugal force  $(1/289) \times 12,342.27 \div 625 = 12,342.27/180,605 = 0.07$  nearly for the sun's equatorial centrifugal force. Hence the weight before obtained, 28 pounds, must be reduced seven hundredths of its whole value, and we thus obtain  $28 - 0.196 = 27.804$  pounds as the true weight of one pound transported from the earth's equator to that of the sun."

In this calculation we have three errors, the effect of one of which would be to increase the true answer 111 times, of another 28 times, and of a third to diminish it 10 times; so that the final result is more than 300 times too great. If this result were correct, Leverrier would have no need of looking for intermercurial planets to account for the motion of the perihelion of Mercury; he would find a sufficient cause in the ellipticity of the sun.

Considered from a scientific point of view, some of the gravest errors into which the author has fallen are the suppositions, that the perihelia and nodes of the planetary orbits move uniformly, and that they can ever become exactly circular. At the end of about twenty-four thousand years the eccentricity of the earth's orbit will be smaller than at any other time during the next two hundred thousand, at least; but it will begin to increase again long before the orbit becomes circular. Astronomers have long known that the eccentricity of Mercury's orbit will never be much greater or much less than it is now; and moreover, instead of diminishing, as stated by Professor Mitchell, it is increasing, and has been increasing for the last hundred thousand years.

Finally, the chapter closes with an attempt to state the principle known to mathematicians as "the law of the conservation of areas," which statement is entirely unlike the correct one in nearly every particular.

It will be observed that we have criticized this work from a scientific rather than from a popular point of view. As questions of popular interest, it is perhaps of very little importance whether the earth's orbit will or will not become circular in the course of millions of years, or in what the principle of areas consists or does not consist. But if such facts or principles are to be stated at all, we have a right to see them stated correctly. However, in the



first nine chapters, which part of the book will be most read, few mistakes of any importance occur, and the method pursued by Newton in deducing the law of gravitation is explained in the author's most felicitous style.

*El Fureidîs*. By the Author of "The Lamplighter" and "Mabel Vaughan."  
Boston: Ticknor & Fields. 16mo.

That large army of readers whose mere number gave celebrity at once to the authoress of "The Lamplighter" will at first be disappointed with what they may call the location of this new romance by Miss Cummins. The scene is laid in Syria, instead of New England, and the "village" known to New Yorkers as Boston gives way to "El Fureidîs," a village in the valley of Lebanon. But while so swift a transition from the West to the East may disappoint that "Expectation" which Fletcher tells us "sits i' the air," and which we all know is not to be balked with impunity, there can be no doubt, that, in shifting the scene, the authoress has enabled us to judge her essential talent with more accuracy. Possessing none of the elements which are thought essential to the production of a sensation, "The Lamplighter" forced itself into notice as a "sensation book." The writer was innocent of all the grave literary crimes implied in such a distinction. The first hundred and fifty pages were as simple, and as true to ordinary nature, as the daisies and buttercups of the common fields; the remaining two hundred pages repeated the stereotyped traditions and customary hearsays which make up the capital of every professional story-teller. The book began in the spirit of Jane Austen, and ended in that of Jane Porter.

In "El Fureidîs" everything really native to the sentiment and experience of Miss Cummins is exhibited in its last perfection, with the addition of a positive, though not creative, faculty of imagination. Feeling a strong attraction for all that related to the East, through an accidental connection with friends who in conversation discoursed of its peculiarities and wonders, she was led to an extensive and thorough study of the numerous eminent scholars and travellers who have recorded their experience and researches in Syria and Damascus. Gradually she obtained a vivid internal vision of the scenery, and a practical acquaintance with the details of life, of those far-off Eastern lands. On this imaginative reproduction of the external

characteristics of the Orient she projected her own standards of excellence and ideals of character; and the result is the present romance, the most elaborate and the most pleasing expression of her genius.

There is hardly anything in the work which can rightfully be called plot. The incidents are not combined, but happen. A shy, sensitive, fastidious, high-minded, and somewhat melancholy and dissatisfied Englishman, by the name of Meredith, travelling from Beyrout to Lebanon, falls in love with a Christian maiden by the name of Havilah. She rejects him, on the ground, that, however blessed with all human virtues, he is deficient in Christian graces. One of those rare women who combine the most exquisite sensuous beauty with the beauty of holiness, she cannot consent to marry, unless souls are joined, as well as hands. Meredith, in the course of the somewhat rambling narrative, "experiences religion," and the heroine then feels for him that affection which she did not feel even in those moments when he recklessly risked his life to save hers. In regard to characterization, Meredith, the hero, is throughout a mere name, without personality; but the authoress has succeeded in transforming Havilah from an abstract proposition into an individual existence. Her Bedouin lover, the wild, fierce, passionate Arab boy, Abdoul, with his vehement wrath and no less vehement love, passing from a frustrated design to assassinate Meredith, whom he considered the accepted lover of Havilah, to an abject prostration of his whole being, corporeal and mental, at the feet of his mistress, saluting them with "a devouring storm of kisses," is by far the most intense and successful effort at characterization in the whole volume. The conclusion of the story, which results in the acceptance by Meredith of the conditions enforced by the celestial purity of the heroine, will be far less satisfactory to the majority of readers than if Havilah had been represented as possessed of sufficient spiritual power to convert her passionate Arab lover into a being fit to be a Christian husband. By all the accredited rules of the logic of passion, Abdoul deserved her, rather than Meredith. Leaving, however, all those considerations which relate to the management of the story as connected with the impulses of the characters, great praise cannot be denied to the authoress for her conception and development of the character of Havilah. Virgin innocence has rarely been more happily combined with intellectual culture, and the reader follows the course of her thoughts--and so vital are her thoughts that they cause all the real events of the story--with

a tranquil delight in her beautiful simplicity and intelligent affectionateness, compared with which the pleasure derived from the ordinary stimulants of romance is poor and tame. At least two-thirds of the volume are devoted to descriptions of Eastern scenery, habits, customs, manners, and men, and these are generally excellent. Altogether, the book will add to the reputation of the authoress.

*Life and Times of General Sam. Dale, the Mississippi Partisan.* By J.F.H. CLAIBORNE. Illustrated by John M'Lenan. New York: Harper & Brothers.

The adventures of General Dale, Mr. Claiborne tells us, were taken from his own lips by the author and two friends, and from the notes of all three a memoir was compiled, but the MSS. were lost in the Mississippi. We regret that Dale's own words were thus lost; for the stories of the hardy partisan are not improved by his biographer's well-meant efforts to tell them in more graceful language. Mr. Claiborne's cheap eloquence is perhaps suited to the unfastidious taste of a lower latitude; but we prefer those stories, too few in number, in which the homely words of Dale are preserved.

Dale does not appear to have done anything to warrant this "attempt on his life," being no more remarkable than hundreds of others. He saw several distinguished men; but of his anecdotes about them we can only quote the old opinion, that the good stories are not new, and the new are not good. As there is nothing particularly interesting in the subject, so there is no peculiar charm thrown around it by the manner in which Mr. Claiborne has executed his task. A noticeable and very comic feature is presented in the praises which he has interpolated, when ever any acquaintance of his is referred to. We readily acquiesce, when we are told that Mr. A is a model citizen, and that Mr. B is alike unsurpassed in public and private life; but the latter statement becomes less intensely gratifying when we learn the fact that Mr. C also has no superior, and that there are no better or abler men than D, E, F, or G. We were aware that Mississippi was uncommonly fortunate in having meritorious sons, but not that so singularly exact an equality existed among them. Are they all best? It is like the case of the volunteer regiment in which they were all Major-Generals. Occasional eminence we can easily believe, but a table-land of merit is more than we are prepared for; and we

are strongly led to suspect that praise so lavishly given may be cheaply won.

*The Money-King and Other Poems.* By JOHN G. SAXE. Boston: Ticknor & Fields. 16mo.

We regret having overlooked this pleasant volume so long. In a previous collection of poems, which has run through fifteen editions, Mr. Saxe fully established his popularity; and the present volume, which is better than its predecessor, has in it all the elements of a similar success. The two longest poems, "The Money-King" and "The Press," have been put to the severe test of repeated delivery before lyceum audiences in different parts of the country; and a poet is sure to learn by such a method of publication, what he may not learn by an appearance in print, the real judgment of the miscellaneous public on his performance. He may doubt the justice of the praise or the censure of the professional critic; but it is hard for him to resist the fact of failure, when it comes to him palpably in the satire that scowls in an ominous stare and the irony that lurks in an audible yawn,--hard for him to question the reality of triumph, when teeth flash at every gleam of his wit and eyes moisten at every touch of his sentiment. Having tried each of these poems before more than a hundred audiences, Mr. Saxe has fairly earned the right to face critics fearlessly; and, indeed, the poems themselves so abound in sense, shrewdness, sagacity, and fancy, in sayings so pithy and wit so sparkling, are so lull of humor and good-humor, and flow on their rhythmic and rhyming way with so much of the easy abandonment of vivacious conversation, that few critics will desire to reverse the favorable decisions of the audiences they have enlivened.

Among the miscellaneous poems, there are many which, in brilliancy, in keen, good-natured satire, in facility and variety of versification, in ingenious fancy, in joyousness of spirit and pure love of fun, excel the longer poems to which we have just referred. We have found the great majority of them exceedingly exhilarating reading, and, if our limits admitted an extended examination, we feel sure that the result of the analysis would be the eliciting of unexpected merits rather than the detection of hidden defects.

*Say and Seal.* By the Author of "Wide, Wide World," and the Author of "Dollars and Cents." In Two Volumes. Philadelphia: J.B. Lippincott & Co.

Another story from "Elizabeth Wetherell" is a welcome addition to our scanty stock of American novels. Our real American novels may be counted on our fingers, while the tales that claim the name may be weighed by the ton. At the present time, we count Hawthorne among our novelists, and Mrs. Stowe, and perhaps Curtis, since his "Trumps"; but as for our thousand and one unrivalled authors, "whose matchless knowledge of the human heart and wonderful powers of delineation place them far above Dickens or Thackeray," they are all, from Sylvanus Cobb, Junior, down to Ned Buntline and Gilmore Simms, beneath serious notice, and may be left to the easy verdict of the readers of the cheap magazines and illustrated newspapers, in whose columns they have gained a world-wide obscurity. Miss Warner's books have always a genuine flavor of originality, and an acute, living appreciation of Yankee character, that give them a right to rank, unchallenged, as real and valuable novels. In their simplicity, their freshness, their quiet humor and not less quiet fun, their frequent narrowness and stiffness, and their deep and true religious sentiment, they have the real essence of the New England character.

In every novel there are three principal elements,--the Hero, the Heroine, the Villain,--all three gracefully blending, in the Plot. We cannot especially congratulate our authors upon their Hero. In a favorite farce, the slightly bewildered Mr. Lullaby observes musingly, "Brown? Brown? That name sounds familiar! I must have heard that name before! I'll swear I've heard that name before!" We have a dim consciousness of having met "Mr. Linden" before, albeit under a different name. A certain Mr. Humphreys, whom we remember of old, strongly resembles him: so does one Mr. Guy Carleton. We were very well pleased with our old friend Humphreys, (or Carleton,) and would by no means hint at any reluctance to meet him again; but a new novel, by its very announcement, implies a new hero,--and if we come upon a plain family-party, when fondly hoping for an introduction to some distinguished stranger, we may be excused for thinking ourselves hardly treated. Is it so infallible a sign of superiority, moreover, to speak

constantly in riddles? This Sphinx-like style is eminently characteristic of Mr. Linden. Then again, our authors have been too ambitious. They laboriously assert Mr. Linden to be a marvel of learning,--a man of vast and curious literary attainments: but all that their hero does to maintain this reputation and vindicate their opinion is to quote trite passages of poetry, which are all very well, but which every gentleman of ordinary cultivation is expected to know, and which no gentleman of ordinary cultivation is expected to quote,--things that are remembered only to be avoided as utterly threadbare. One unfortunate instance may be found at the beginning of the second volume. Mr. Linden's acquirements are to receive peculiar lustre from a triumph over no ordinary competitor,--over the intelligent and well-read Doctor Harrison. Naturally, we expect something recondite, and are by no means satisfied with the trite

"Cupid and my Campaspe played  
At cards for kisses," etc.

Mr. Linden might as well have astonished the company by such a transcendent proof of erudition as

"All the world's a stage,  
And all the men and women," etc.

Or, passing "from grave to gay, from lively to severe," (for novelty in quotations we find to be contagious,) have recounted the wildly erratic history "of that false matron known in nursery rhyme, Insidious Morey," or quoted

"How doth the little busy bee."

After which he might have soared into unapproachable heights of surpassing literary erudition, by informing his awe-struck hearers that the latter poem was written by Doctor Watts! The fact is, any attempt to give the novelist's characters a learning which the novelist does not possess is always hazardous.

The Heroine, Miss Faith Derrick, is a pretty, but not remarkably original creation, who taxes our magnanimity sorely at times by her blind

admiration of her lover when he is peculiarly absurd, but whose dumb rejection of Doctor Harrison, though a trifle theatrical, is really charming. Faith is better than Linden: Linden is "*superbe, magnifique*"; but Faith is "pretty good."

But the conception of the Villain is very fine. In Doctor Harrison we hail a new development of that indispensable character. Of course, the gentlemanly, good-humored Doctor is not to be considered a villain in the ordinary acceptance of the word; he is only a technical villain,--a villain of eminent respectability. It is almost unnecessary to add, that he is immeasurably more attractive than the real hero, Mr. Linden.

We regret to say that the conception is not carried out so well as it deserves to be. Doctor Harrison descends to some low business, quite unworthy of him, such as tampering with the mails. This is not only mortifying, but entirely unnecessary; inasmuch as Doctor Harrison has a subordinate villain to do all the low villany, in the person of Squire Deacon, who shoots at Mr. Linden from behind a hedge (!), and is never called to account therefor,--a strange remissness on the part of everybody, which seems to have no recommendation except that it leaves him free to do this very work of robbing the mails, and which, by his failure to do it, is left utterly unexplained and profoundly mysterious. All this is very bad. The Doctor's meanness is utterly inconsistent; and the bare thought of a sober and uncommonly awkward Yankee, like Squire Deacon, deliberately making two separate attempts at assassination, is unspeakably ludicrous. Moreover, we are hopelessly unable to see the need of having the unfortunate Mr. Linden shot at all. Everything was going on very well before, as nearly as we could see, and nothing appears to come of it, after all,--not even the condign punishment of the incongruous and never-to-be- sufficiently-marvelled-at assassin, who is suspected by several people, and yet remains as unharmed as if murder on the highway were altogether too common an occurrence in New England to excite more than a moment's thought.

This leads us to speak of the Plot; and we are constrained to say that a more inartistic, unfinished piece of work we cannot remember. There is a lamentable waste of capital on Squire Deacon's sportsmanlike propensities. Why not have something come of them? We are not anxious to have the

man hanged, or even indicted; but we did expect a magnanimous pardon to be extended to him by Mr. Linden; and although that gentleman was altogether too magnanimous before, we should have acquiesced mildly. And what becomes of Mrs. Derrick? There we are in earnest; for Mrs. Derrick is an especial favorite with us. It seems as if our authors had become bewildered, and, finding themselves fairly at a loss what to do with their characters, who drift helplessly along through a great part of the second volume, had seized desperately on the hero and heroine, determined to save them at least, and, having borne them to a place of refuge, had concluded to let the others look after themselves.

What redeems the novel, and gives it its peculiar and exquisite charm, is the execution of certain detached passages. We have never seen the drollery of a genuine Yankee to more advantage than in "Say and Seal." An occasional specimen we venture to quote.

On Mr. Linden's first appearance at Mrs. Derrick's house, where he is known only as the new teacher, nobody knows and nobody dares ask his name; and recourse is accordingly had to the diplomacy of the "help."

"'Child,' said Mrs. Derrick, 'what on earth is his name?'

"'Mother, how should I know? I didn't ask him.'

"'But the thing is,' said Mrs. Derrick, 'I *did* know; the Committee told me all about him. And of course he thinks I know,--and I don't,--no more than I do my great-grandmother's name, which I never did remember yet.'

"'Mother, shall I go and ask him, or wait till after supper?'

"'Oh, you sha'n't go,' said her mother. 'Wait till after supper, and we'll send Cindy. He won't care about his name till he gets his tea, I'll warrant... Faith, don't you think he liked his supper?'

"'I should think he would, after having no dinner,' said Faith.

"'There's Cindy, this minute! Run and tell her to go right away, and find out what his name is,--tell her *I* want to know,--you can put it in good words.'



"Cindy presently came back, and handed a card to Faith.

"'It's easy done,' said Cindy. 'I jest asked him if he'd any objections towards tellin' his name,--and he kinder opened his eyes at me, and said, "No." Then I said, says I, "Mis' Derrick do' know, and she'd like ter." "Miss Derrick!" says he, and he took out his pencil and writ that. But I'd like ter know *what* he cleans his pencil with,' said Cindy, in conclusion, for I'm free to confess *I* never see brass shine so in my born days.'"

Cindy's "free confessions" are an important feature of the book.

In Chapter VI, Squire Deacon and his sister hold a brief Yankee dialogue, of which this is a sample:--

"'Sam! what are you bothering yourself about Mr. Linden for?'

"'How long since you was made a trustee?' said the Squire, beginning his sentence with an untranslatable sort of grunt, and ending it in his teacup.

"'I've been *your* trustee ever since you was up to anything,' said his sister. 'Come, Sam,--don't you begin now! What's made you so crusty?'

"'It a'n't the worst thing to be crusty,' said the Squire. 'Shows a man's more'n half baked, anyhow.'

"'Well, what has he done?'

"'Sure enough!' said the Squire, 'what *has* he done? That's just what I can't find out.'

"'What do you want to find out for? What ails him?'

"'Suppose he hasn't done nothin'. Is that the sort o' man to teach litteratur in Pattaquasset?'

"'Now, Sam Deacon, what do you expect to do by all this fuss you're making?' said his sister, judicially.

"What's the use of cross-examining a man at that rate? When I do anything, you'll know it."

The characters are all invested with reality by skilfully introduced anecdotes, or by personal traits carelessly and happily sketched. But it is a costly expedient to give this reality, when our authors bring in pet names, and other "love-lispings," which are sacred in privacy and painfully ridiculous when exposed to the curious light. Many of us readers find all this mawkish and silly, and others of us are pained that to such scrutiny should be exposed the dearest secrets of affection, and are not anxious to have them exposed to our own gaze. It is too trying a confidence, too high an honor, to be otherwise than unwelcome. With this criticism we close our notice of "Say and Seal," in which we have been sparing neither of praise nor blame, earnestly thanking the authors for a book that is worth finding fault with.

*How Could He Help It? or, The Heart Triumphant.* By A.S. ROE. New York: Derby & Jackson.

A fair representative of a class of books that are always pleasant reading, although written without taste, cultivation, or originality,--because they are obviously dictated by a kind heart and genuine earnestness. In this volume the numerous heroes (so similar in every respect that one might fancy them to be only one hero mysteriously multiplied, like Kehama) and the fair heroines (exactly equalling the heroes in number, we are happy to assure the tenderhearted reader) are not in the least interesting, except for sheer goodness of heart. This unaided moral excellence, however, fairly redeems the book, and so far softens even our critical asperity that we venture only to suggest,--first, that the utterly unprecedented *patois* of Mrs. Kelly is not Irish, for which a careful examination of the context leads us to think it was intended,--secondly, that "if he had have done it" is equally guiltless of being English,--thirdly, that, if our author, desiring to describe the feelings of a lover holding his mistress's hand, was inspired by Tennyson's phrase of "dear wonder," he failed, in our opinion, to improve on his original, when he substituted "the fleshy treasure in his grasp."

*The New Tariff-Bill.* Washington. 1860.

We do not propose to submit the English of this new literary effort of the House of Representatives at Washington to a critical examination, (though it strikingly reminds us of some of the poems of Mr. Whitman, and is a very fair piece of descriptive verse in the *b'hoy*-anergic style,) or to attempt any argument on the vexed question of Protection. But there is a section of the proposed act which has a direct interest not only for all scholars, but for that large and constantly increasing class whose thirst for what may be called voluminous knowledge prompts them to buy all those shelf-ornamenting works without which no gentleman's library can be considered complete. Though in the matter of book-buying the characters of gentleman and scholar, so seldom united, are distinguished from each other with remarkable precision,--the desire of the former being to cover the walls of what he superstitiously calls his "study," and that of the latter to line his head, while the resultant wisdom is measured respectively by volume and by mass,--yet it is equally important to both that the literary furniture of the one and the intellectual tools of the other should be cheap.

The "Providence Journal" deserves the thanks of all students for having called attention to the fact, that, under the proposed tariff, the duties will be materially increased on two classes of foreign books: the cheap ones, like "Bohn's Library,"--and the bulky, but often indispensable ones, such as the "Encyclopaedia Britannica." The new bill, in short, proposes to substitute for the old duty of eight *per cent. ad valorem* a new one of fifteen cents the pound weight. Could we suspect a Committee of Members of Congress of a joke appreciable by mere members of the human family, could we suppose them in a thoughtless moment to have carried into legislation a mildened modicum of that metaphorical language which forms the staple of debate, we should make no remonstrance. We recognize the severe justice of an ideal *avouirdupois* in literary criticism. We remember the unconscious sarcasm of the Atlantic Telegraph, as it sank heart-broken under the strain of conveying the answer of the Heavy Father of our political stage to the graceful "good-morning" of Victoria. The enthusiastic member of the Academy of Lagado, who had spent eight years in a vain attempt to extract

sunbeams from cucumbers, might have found profitable employment in smelting the lead even from light literature, not to speak of richer deposits. Under an act thus dubiously worded, and in a country which makes Bancroft a collector of the customs and Hawthorne a weigher and gauger, the works of an Alison and a Tupper would be put beyond the reach of all but the immensely rich. The man of moderate means would be deprived of the exhaustless misinformation of the Scottish Baronet, who has so completely disproved the old charge against his countrymen of possessing an *ingenium perfervidum*, (which Dr. Johnson would have translated by *brimstone temperament*,) and of the don't-fail-to-spread-your-umbrella-when-it-rains- or-you'll-spoil-your-hat wisdom of the English Commoner, who seems to have named his chief work in a moment of abnormal inspiration, since it has become proverbial as the severest test of human philosophy.

But we cannot suspect the Congressional Committee of a joke, still less of a joke at the expense of those anglers in the literary current whose tackle, however bare of bait, never fails of a sinker at the end of every line. They have been taught to look upon books as in no wise differing from cotton and tobacco, and rate them accordingly by a merely material standard. It has been the dealers in books, and not the makers of them, who have hitherto contrived to direct public opinion in this matter. We look upon Public Opinion with no superstitious reverence,--for Tom's way of thinking is none the wiser because the million other Toms and Dicks and Harries agree with him,--nevertheless, even a fetish may justly become an object of respectful interest to one who is to be sacrificed to it.

However it may be with iron, wool, and manufactured cotton, it is clear that a duty on books is not protective of American literature, but simply a tax on American scholarship and refinement. The imperfectness of our public libraries compels every student to depend more or less upon his own private collection of books; and it is a fact of some significance, that, with the single exception of Hildreth, all our prominent historians, Sparks, Irving, Bancroft, Prescott, Ticknor, Motley, and Palfrey, have been men of independent fortune. If anything should be free of duty, it should seem to be the material of thought.

If Congress be really desirous of doing something for the benefit of American authors, it would come nearer the mark, if it directed its attention to the establishment on equitable grounds of some system of International Copyright. A well-considered enactment to this end would, we are convinced, be quite as advantageous to the manufacturers as to the producers of books. "We believe that a majority of the large publishing houses of the country have been gradually convinced of the inconveniences of the present want of system. Many of them have found it profitable to enter into an agreement with popular English authors for the payment of copyright, and works thus reprinted cost the buyer no more than under the privateering policy. But without some definite establishment of legal rights and remedies, the publisher is at the mercy of a dishonorable, sometimes of a vindictive competition, and must run the risk of having the market flooded within a week with a cheaper and inferior edition, reprinted from the sheets of his own which had been honorably paid for. We do not pretend to argue the question of literary property, the principle of it being admitted in the fact that we have any copyright-laws at all. Our wish is to show, that, in the present absence of settled law, the honest publisher is subjected to risks from the resultant evils of which the whole reading community suffers. The publisher, to protect himself, is forced to make his reprint as cheaply as possible, and to hurry it through the press with the disregard of accuracy inseparable from hasty publication,--while the reader is put in possession of a book destructive of eyesight, crowded with blunders, and unsightly in appearance. Maps and plates are omitted, or copied so carelessly as to be worse than useless; and whoever needs the book for study or reference must still buy the original edition, made more costly because imported in single copies, and because taxed for the protection of a state of things discreditable in every way, and not only so, but hostile to the true interests of both publishers and public.

We do not claim any protection of American authorship from foreign competition, but we cannot but think it unfair that British authorship should be protected (as it now practically is) at the cost of our own, and for the benefit of such publishers as are willing to convey an English book without paying for it. The reprint of a second-rate work by an English author has not only the advantage of a stolen cheapness over a first-rate one on the same subject by an American, but may even be the means of suppressing it

altogether. The intellectual position of an American is so favorable for the treatment of European history as to overbalance in some instances the disadvantages arising from want of access to original documents; yet an American author whose work was yet in manuscript could not possibly compete with an English rival, even of far inferior ability, who had already published. If, within the last few years, a tolerably popular history of France had been published in England, and cheaply reprinted here, (as it surely would have been,) we doubt whether Mr. Godwin would have undertaken his laborious and elaborate work,--or, if he had, whether he would have readily found a bookseller bold enough to pay an adequate price for the copyright. And it is to be remembered that an American publisher gives this preference to an English over an American book simply because he can get it for nothing, by defrauding its author of the just reward of his industry or genius. That an author loses his equitable claim to copyright for the simple reason that by publication he has put himself in our power is an argument fit to be used only by one who would make use of a private letter that had accidentally come into his possession to the damage of the writer.

The necessity of some kind of equitable arrangement was so strongly felt by American publishers that a kind of unwritten law gradually established itself among them. It was tacitly understood, that, when a publisher had paid an English author for advance sheets, no rival American edition should be published. But it already appears too plainly that an arrangement with no guaranty but a private sense of honor is liable to constant infringement for the gratification of personal enmity, or in the hope of immediate profit. The rewards of uprightness and honorable dealing are slow in coming, while those of unscrupulous greed are immediate, even though dirty. Under existing circumstances, free-trade and fair-play exist only in appearance: for the extraordinary claim has been set up, that an American bookseller has an exclusive right to all the future works of an English author any one of whose former productions he has reprinted, whether with or without paying for it; so that, however willing another publisher may be to give the author a fair price for his book, or however desirous the latter may be to conclude such a bargain, it is practically impossible, so long as privateering is tolerated in the trade.

We have said nothing of the advantages which would accrue to our own authors from a definite settlement of the question of international copyright between England and America. How great these would be is plain from the fact that the editions of American books republished in England are already numbered by thousands. With the growth of the English Colonies the value to an American author of an English copyright is daily increasing. Indeed, it is a matter of consideration for our publishers, whether Canada may not before long retaliate upon them, and by cheaper reprints become as troublesome to them as Belgium once was to France.

It is not creditable that America should be the last of civilized nations to acknowledge the justice of an author's claim to a share in the profits of a commercial value which he has absolutely created. England is more liberal to our authors than we to hers, but it is only under certain strictly limited contingencies that an American can acquire copyright there. Were all our booksellers as scrupulous as the few honorably exceptional ones among them now are, there would be no need of legislative regulation; but, in the present condition of things, he who undertakes to reprint an English book which he has honestly paid for is at the mercy of whoever can get credit for poor paper and worse printing. There is no reason why a distinction should be made between copy-right and patent-right; but, if our legislators refuse to admit any abstract right in the matter, they might at least go so far as to conclude an international arrangement by which a publisher in either country who was willing to pay for the right of publication should be protected in its exercise. No just objection could be made to a plan of this kind, which, if not so honest as a general international law of copyright, would be profitable to our publishers, and to such of our authors at least as had acquired any foreign reputation.

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